

MAX·FARGUS



BY OWEN JOHNSON

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Title: Max Fargus

Author: Owen Johnson

Release date: July 22, 2014 [eBook #46358]

Most recently updated: October 24, 2024

Language: English

Other information and formats: www.gutenberg.org/ebooks/46358

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"ANY ONE UP THERE?" *Frontispiece*

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By
OWEN JOHNSON

*Author of "Arrows of the Almighty" and
"In the Name of Liberty."*



New York
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UNION SQUARE NORTH

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**New York
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Published, September, 1906

The Plimpton Press Norwood Mass. U.S.A.

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MAX FARGUS

CHAPTER I

THE HOUSE OF THE TIN SAILOR

In a street, uniform and dedicated it would seem to commonplace existences, there was taking place, on a certain evening in March, 187-, a chapter in one of the most perplexing and mysterious of dramas which the scramble for wealth has known; whose denouement, unsuspected by neighbors and hidden from the press, holds the secret of the rise of one of the most forceful and brutal individualities that have dominated the city.

Near Stuyvesant Square, which then presented in the waste of New York, a charming oasis, serene and calm with the quiet of Colonial dignity; in one of the side streets east of Second Avenue there extended an unbroken march of red brick houses, uniform as though homes were fashioned wholesale. The block was clear of the skirts of fashion which gathered about the square, yet rescued from the squalor into which the street suddenly sank as it passed east under the brutal yoke of the Elevated.

It belonged to mediocre life, to those who earned two thousand a year, who paid a third of their income in rent, went rarely to the theater and always to church, where occasionally the children fetched the family beer in pail and pitcher; a street of one servant or none at all; one of those indistinct half-way stations of the city where fortune and misfortune, ascending and descending, pass; where one finds the small shopkeeper, the clerk who is rising next to the doctor whose patients have left him, or the lawyer who has missed his leap. Towards the east a saloon made the corner, while a few doors nearer a brothel displayed its red ensign, before which, in the daytime, the children romped without distinction. Already several doorways invited board and lodging, signs of the invasion which sooner or later would claim the street.

A third of the way down the block, on the north side, there projected above a doorway the figure of a tin sailor, balancing two paddles which the breeze caused to revolve. Some one in whom the instinct of home was strong had

placed it there in protest against the tyranny of uniformity, while succeeding tenants, grateful for the indication, had left it undisturbed.

By eleven o'clock of the night on which this story opens, beside the distant red lantern of the brothel and a few top-story lights there was only the parlor window, under the odd weather-vane, whose bright edge cut into the blackness of the street. The shade, contrary to custom, was lowered, but at each approaching step the silhouette of a woman crossed it hurriedly in the direction of the door.

Shortly after the bells of a dozen churches had cried the hour, a man coming from the west passed under the lamp-post, carrying a satchel and striding with that nervous intensity which the tumult of New York injects into the legs.

As he perceived the lighted window his advance suddenly relaxed, until opposite the door, in default of a number, he began to seek in the shadow the presence of the creaking boatman. Then, noticing the silhouette on the shade, as though assured of his destination he sprang up the steps. Before he could seize the bell the door was thrown open and he passed into the house.

A woman in the thirties, pretty, dressed in white, closed the door after him and remained weakly leaning against the wall, awaiting in agitation his first word. He gave her a nod, took a step, turned and looked at her sharply, then busied himself with his coat. Suddenly the woman stretched out her hand and cried, with the hopelessness of one for whom the question can bring but one answer:

"Bofinger, what is it? Tell me!"

"Oh, it's good news," he said laconically, placing his bag on the floor, "good enough."

"He's alive—my husband is alive!" she stammered, her eyes filling with nervous, incredulous tears.

"Alive!" he exclaimed, rising his voice to a shout, while his head jerked about. But in a moment the amazement gave way to unbelief and he continued, with the irony of one impatient with feminine hypocrisy, "Max

Fargus, my dear Sheila, is dead; done for by bandits, accommodating little greasers, bless their souls!"

He turned his back on her scornfully, busying himself with finding a hook in the dark hallway. The woman had received the news like a blow in the face. She swayed back against the door, her hands went to her lips, then to her throat as though to stifle a cry, and for a moment she seemed about to fall. Then suddenly her eyes returned in fear to the contemptuous back of the lawyer and she controlled herself by a violent effort, passing before him into the parlor to hide the agitation on her face.

"Shed a few tears for the public, my dear," he called out, following her with the impertinence of a man who has a right to dispense with civilities. "You can afford them; for eventually you'll come into as tidy a fortune as was ever won in six months' time. But before we get down to business, Sheila my dear, I am starving; could you get me a bite."

Seizing further opportunity to prepare herself for the encounter she passed into the dining-room, after bidding him be seated with a conventionality as marked as his affectation of intimacy. As he was settling in a chair he suddenly remembered his bag and returned to the vestibule.

The parlor breathed an air of imitation and a striving for luxury, which after the first impression of ridicule had a certain note of pathos. Everything was of the factory, with the odor of the bargain-counter. One saw the decoration before the body, overwhelmed by a confused sense of plush and gilt, of reds and greens, of false cherubs and artificial flowers, of airy, bejeweled furniture for which, in the department stores, one imagines in vain a purchaser. In the medallion carpet all the colors fought, in the portieres the Byzantine wrestled with the Gothic, the Roman with the Greek.

Before selecting a comfortable chair, Bofinger peeled off a pair of yellow gloves, looked about in indecision and placed them gingerly on an étagère. Next, whisking out a lilac handkerchief, he slapped vigorously the dust from his shoes. Then bringing forth a number of documents from the bag he smoothed them nervously on his knee, replaced them, and suddenly raised his head to follow the movements of the woman with a perplexed intensity, in which there was both irritation and anxiety.

On the body of a dandy was set the head of a comedian. One and the other produced a like impression of sham. He was too solicitous of his clothes, too conscious of his manner. His collar was worn with discomfort, his checked tweed cutaway was too tight, his shoes too new; while, on establishing himself in his chair, he had thrown open his coat on a buckskin vest, heavily sealed, and a purple tie, held in four-in-hand by a fat horseshoe, with the ill-at-ease of the man who never quite familiarizes himself with his own audacity.

The head had the prominent bones of the Yankee with a suggestion of the Italian in the sallowness of the complexion and the limpidity of the eyes, which when most gracious had a warning of treachery. He smiled much, but the smile was as constrained as his dress. Though not far in the thirties, his face was sown with lines, while at each thought flurries showed on the forehead and the cheeks, which from constant conscription had come to never remaining still. His ears were so small that they seemed almost a deformity. The nose, which was impressive and slightly pointed, told more of cunning than of sagacity; the mouth, open and pliant, was the mouth of the demagogue and the orator, which lets escape the torrent of phrases.

One divined the man who played at will the tyrant or the servitor, who browbeat the timid and flattered the strong, who bellowed in a police court, but who tiptoed for a favor and could on occasion listen obsequiously. Finally his jet hair, which he enforced into parting in the middle and plastered to his scalp, in the back rose like the comb of a cockatoo. This rebellious movement to the repression of the front was significant of the whole man.

When Mrs. Fergus returned with a tray all traces of emotion had vanished. Watching her, the lawyer voiced the amazement that had been in his mind from the first.

"Sheila, you are astonishingly pretty to-night."

"Really!" she said, and despite her alarm she sent a glance to the mirror.

Over the loose white muslin, free at the throat and at the elbows, she wore a filmy scarf of red chiffon, subtle as a mist, which, encircling her shoulders, came to a loose knot and fell to her feet in a sanguine line. It was a striking

effect which perplexed the eye, and threw in bold relief the waves of her black hair and the rather high color of her complexion; but emphasized in the general voluptuousness the surprising contrast of the eyes which, gray with a slight blue tinge, were cold, without passion or enticement.

Intrigued at the contrast of her indifference with her first agitation, Bofinger was careful not to open the conversation, knowing that it is easier to penetrate the hypocrisy of an enforced question than to discover truth in a guarded answer.

Mrs. Fargus, seeing at last that the situation compelled her to speak, rested her chin on her palm and said as though to herself:

"So Fargus is dead!"

"Eh, eh!" the lawyer cried instantly, shooting a sharp look, "a moment ago that overwhelmed you. But you are reconciled already, I suppose."

She showed some confusion, but returned immediately:

"Sure I'm shocked; poor fellow, after all he did love me."

Displeased to find her self-possessed, the lawyer, not to waken her mistrust, seemed to accept her attitude by launching into a diatribe.

"Yes, yes, cling to your respectability. You women are all the same. Virtue always! Do you do it to fool us or yourselves? Come now, you know that old Fargus's death is a stroke of luck! Why the deuce, then, don't you admit it?"

"You don't understand," she said coldly.

He searched her face with aroused curiosity, saying to himself, "No, my lady, you bet I don't." Then continuing his plan of battle he occupied himself with his plate.

"You brought him, the body, back," she asked presently.

"No," he answered irritably, and pushed back his plate with impatience.

"Why not?" she asked, noticing his annoyance.

"That is a long story and goes with the rest," he said rising. "Now, my dear, we'll get down to it."

In the parlor, as he was taking a chair, he recollected himself and demanded with a jerk of his head:

"Any one up there?"

"I sent the girl away," she answered, "as you said."

"Nevertheless," he replied slowly, "I guess I'll satisfy myself of that."

"Yes, I supposed you would," she said with a shrug, "I left the gas on."

The unlooked-for reply halted him. He vacillated a moment suspiciously, wondering whether to accept the situation, but, the shyster prevailing, he turned on his heel and went up the stairs.

The woman smiled with the consciousness of a first advantage. But no sooner did the steps creak than she abandoned herself to a paroxysm of despair, twisting and turning the scarf in her hands until it cut them, as though to fight with the physical sting the agony of the mind. Yet in this violent return to her first agitation there was nothing to suggest grief for another; rather she seemed a prey to the torments of the gambler who, by a sudden upset, sees a fortune elude his fingers, dissipating in the air. She was, at the first glance, of that gay and fragile class who comprehend nothing but pleasure and see pleasure bounded only by the narrow limits of youth, into which they wish to compress all emotions, all desires, and all sensations; who pursue their ideals, palpitating and with bandaged eyes, and are consumed alike by their gratification and their hunger. On them weigh perhaps the heaviest the inequalities of society. Mixtures of desires and scruples, peculiarly American, swayed by conflicting ideals and prejudices, they wish to taste of the glittering world at any price except at the price of outward respectability. A young man attracted to Sheila Fergus by her facile beauty would have mistaken her for an adventuress or a saint. A man of the world, knowing her weakness and her fetishes, would have recognized that she might become either.

As soon as the step of Bofinger was heard returning, she drew herself hastily together, but the lawyer, to further satisfy himself, passed into the

kitchen.

She rose, inhaled a long breath, extended her arms as though to shake off the rigidity of her emotion, and finding herself pale, pinched her cheeks. The lawyer returned too conscious of his tactical disadvantage to notice the traces of her agitation.

"So you feel at rest now," she said maliciously.

"My dear, take it as a tribute to you," he answered. "You had the air of truth but you might have been—"

"More clever?"

"Exactly," he said. "You can't be sure with a woman."

To shut off further reference he cast himself back in his chair, brought his fingers to a cage, and demanded, as though from impulse, "Sheila, answer this—and carefully, for it is vital. Before Fargus left for Mexico did he show any suspicion?"

"Why, no," she answered, too visibly surprised not to be telling the truth; "sure he didn't."

"What, not the slightest suspicion of our relations?" he persisted. "Think well,—Fargus who was suspicion itself! And he didn't at some time suspect either you or me!"

She reflected a moment, started to answer, and then shook her head.

"No, no, not once."

The hesitation was not lost on the lawyer, who continued:

"But did he seem much in love?"

"Why, he adored me!" she cried. She examined him curiously, noting again his restrained irritation, and asked, "What funny questions! Why do you ask them?"

"On account of a number of suspicious circumstances," he answered irritably. "Well, you know Fargus; he was not an ordinary man. However—"

He took up his documents, sifting them to count them. Then, at the moment when Sheila, preparing to listen, was off her guard, he launched the question he had held in reserve.

"Did he tell you why he went to Mexico?"

"Why," she said, "I suppose, on business."

"He told you what business."

"No."

The two looked in each other's eyes.

"She lies," thought the lawyer.

"He knows I lie," she said to herself, palpitating, but she did not dare avert her glance.

CHAPTER II

IN THE EYES OF THE LAW

To Sheila's surprise, instead of the browbeating she had learned to expect, she saw that for some incomprehensible reason it suited him to accept the denial.

"He went to investigate a silver mine," he said after a moment.

"A mine!" she exclaimed; and the knowledge that he had not challenged the lie gave to the exclamation a vehemence so well simulated that it left him somewhat shaken in his first impression.

"That at least is my conviction," he said. "Now for the story."

He spoke rapidly, recounting in trivial detail the various steps by which he had traced Fargus to Mexico and into the dangerous mining region of Durango. From time to time Sheila, who suffered under these numerous details, interrupted, saying:

"Leave that."

"Be more brief."

"But tell me, tell me first of his death!"

"Here we are," Bofinger said finally, after completing without deviation his methodical recital. "On the twenty-fifth day of January, the last day of his life, he quarreled with his attendants and dismissed them. Despite all warnings he then pushed on in the sole company of an Indian breed and arrived at two o'clock at the ranch of a Mexican, Manuel Stroba. Here is his affidavit, the importance of which you'll see later."

As he prepared to read it, she snatched it from his hand, crying:

"Afterward! Go on; oh, do go on!"

"At three o'clock, Fargus left the ranch, intending to make a mission five miles away. The next morning Stroba, in passing through a defile six miles on, the scene of a dozen hold-ups, found the bodies of the two horses. The packs were scattered on the ground alongside of the coat and hat of Fargus stained with blood, in fact everything to indicate a violent conflict, except—except not the slightest trace of Fargus or the half-breed."

She sprang up.

"But then," she cried all in one breath, "he could be alive!"

He looked at her, astonished again at her emotion.

"If it happened yesterday—perhaps," he admitted; adding quickly, with the emphasis a man gives to a statement of which he is determined to be convinced, "but this happened on the twenty-sixth of January and we are now the end of March. If he was taken by bandits, it was for ransom, and if he lived they would have served notice immediately. No, Fargus is dead—dead without a doubt. For me, I suspect the half-breed. He could have murdered him, buried the body, shot the horses, and arranged things to make it seem as though he had shared the same fate. Unfortunately," he added moodily, "unfortunately there is no conceivable way of proving that most necessary fact!"

The ominous significance of his last remark was lost on her. The flash of hope which had so mystified the lawyer disappeared in the dejection caused by his logic. There passed through her an immense breath, which like a tumultuous burst of wind seemed to whirl away a multitude of longings and desires. She remained silent, overwhelmed and convinced.

"But you said there were suspicious circumstances," she said at last. "What circumstances?"

"First," he replied, watching her, "why should he have taken such a journey, at such a risk?"

She shook her head.

"And the next?"

"This. No one in the mines, not a soul, knew of his coming;—in fact, no one had ever heard of the existence of Max Fergus."

This time she could not repress an exclamation.

"So, that does surprise you," he said quickly.

"Why, yes—of course," she admitted grudgingly. She rose, took a step, and reseated herself. "Still, if he were thinking of buying a mine, wouldn't it be like him to look it over first without being known. That might be it."

Bofinger understood that she wished thus to convey to him her knowledge, but without appearing to notice the contradiction, he suddenly broke out:

"What luck, what damnable luck! And I did everything, scoured the country, offered a dozen rewards for the body! No use, not a trace, not a single clew!"

Sheila, who had expected to find him triumphant, recognized again with growing anxiety the note of disaster in his voice.

"Something is wrong?" she said, leaning forward suddenly.

He rose, gave her a glance as though to estimate the probabilities of her attitude, then, oblivious to her presence, suddenly allowed all his anger and defeat to appear.

"It is inconceivable, monstrous, absurd! It is enough to make me superstitious! But that's the way it goes in this world! I surmount everything. I put to sleep the suspicions of a crazy man, play him till he marries you. Good! Everything succeeds like magic. He goes to Mexico on some tantrum and is killed. So far magnificent! Fergus out of the way, the property ours. Nothing could be better. One would say heaven had ordained it. And then—there comes an impossible, an absurd turn,—a preposterous, idiotic bit of luck, and we are stranded high and dry!" He flung himself down and, jarring the table with his fists, cried: "It is enough to make me believe in Providence!"

"But what, what has happened?" she cried, now thoroughly alarmed. "Is there a will?"

"True, you don't see it. You're not a lawyer," he said, stopping short. "Ah, the law is a beautiful thing, a marvelously beautiful thing, my dear! You are satisfied he is dead, aren't you?"

She hesitated, looking at him, wondering if there might be a doubt.

"Of course you are!" he said savagely. "So am I, so would any one,—not the shadow of a doubt. Well, my dear, under the beautiful and equitable system of common-law from which we receive justice, nothing of the sort is allowed. Fergus cannot die for seven years!"

"I don't understand," she said helplessly.

"Because there is no eye-witness of his death nor discovery of the body, the law, my dear, will not admit he is dead for seven years."

"Ah!"

She followed him anxiously, perceiving there was more than she comprehended.

"My dear girl, don't you see what that means?"

"No, not quite."

"It means Fergus being alive, in the eye of the law,—for seven years you can neither marry nor touch"—he paused to give the full blow to his next words—"nor touch one cent of the property."

"But that is terrible! That is not just!" she protested mechanically, still incapable of estimating the sentence. The blow was too crushing, and, before they overwhelm, the great misfortunes demand time. "And that is what you call justice!"

"I, I call it law!" he said with a laugh.

"Well—what can we do?" she asked, turning to him in frightened appeal.

"Nothing—wait."

"But I am his wife—do you mean that I—"

"Cannot touch one cent!"

"But I am his wife!"

"Wedded to a corpse," he said with a shrug of his shoulders.

"And I can neither marry nor inherit the property?"

"Just that."

"For seven years?"

"Correct."

"Seven years," she repeated, drawing her hand across her eyes.

"It is hard."

"Seven years!" she burst out, rising with a cry of despair that thrilled the lawyer. "But that is a lifetime!"

"Eh, its long enough."

"A lifetime!" she repeated more quietly, staring at him with blank eyes.

"It's hard on me too," he said roughly.

"On you!" she cried with a laugh such as despair alone can render horrible. "Oh, on you!"

All at once he understood that the cry had been torn from her by the vision of the youth she saw expiring.

"There now—" he said desperately. "After all, seven years are soon over, and half a million is something to wait for."

"What good will it do me then!" she said, sinking into a chair and covering her face with her hands. Then seized with a convulsive sobbing, she cried, "No, no, it is too cruel. I won't do it, I won't, I can't!"

"Come, don't be a fool," he said angrily, taking her by the shoulder.

"Seven years, seven years!" she cried hysterically. "What good will it do me then, what do I care for money then! Oh, my youth, my youth! And this is the end of it. I knew it, I knew it! Fargus, you were not human! Fargus, you did this to punish me!"

All at once she rose, shaken and frantic as a prophetess, and seizing her hair in her hands cried:

"Oh, those years, I see them, those seven terrible years!"

She began to wander about the room avoiding the lawyer, invoking always the youth which she seemed to see expiring before her, in the inexorable limits of nature.

Bofinger, after a vain attempt to check her, remained helpless in the presence of such hysteria. A moment later he stole from the room, took his satchel and went to the door. There he stopped, waited, saw her convulsed with sobbing, frowned, raised his shoulders and slipped out.

On the sidewalk the gods of suspicion, which ruled him, made him cry suddenly:

"Hell! I am a fool to be so tender-hearted. She's been lyin' to me to hide some mystery. That was the time to put the screws on!"

He hesitated, scanning the shade. From time to time a silhouette passed, frantic and suffering. This shadow, without life or body, representing nothing but an agony, horrified him. He turned and hastened away.

CHAPTER III

THE FIRM OF GROLL AND BOFINGER

Six months previous to the events of the last chapter, four men were awaiting the opening of the afternoon session of the police court, in an office whose glass front displayed to the travel of Tenth Street the legend,

HYMAN GROLL & ALONZO BOFINGER

Counselors-at-Law.

Opposite, the Jefferson Market Court loomed from the triangular island which is formed by the junction of Sixth and Greenwich Avenues, whose muddy torrents descend, roaring, to shake it from its foundation.

The court is one of seven similar mouths, down which one may look aghast, into the cauldron at the depths of society. Vice nowhere has a more horrid aspect, for nowhere is it more mean and repulsive with the inequalities of suffering. Journalism, to strip the novice of all his illusions, sends him to this rude school, where he shortly learns not only that evil as well as good is inevitable and eternal, but that justice, in common with eternity, must be accepted in faith, for to explore its depths is to recoil in horror. To him, who knows the misery which bears the weight of the social superstructure, justice has the aspect of a seal over a living tomb, and the present building is a mockery. Where there should stand a waste of gray is a meaningless mass of red brick. In place of a stern, ponderous block of granite, unsoftened by ledge or cornice, crude with the crudity of man's justice to man, there rises in architectural legerdemain a jumble of turret and tower, as though variety and gaiety could be sought in this saddest and dreariest of the manifestations of society.

Confronting the barred windows of the prison annex, from Sixth to Seventh Avenues, runs a short row of clingy, undersized houses, given over to the lawyers of the army of "Shysters," who, much as a ragpicker rakes a garbage heap, scrape from the petty crimes of the court a miserable income. The lawyer who succeeds has his runners whipping up the gutters and the

alleys, his alliances suspected or open with the criminal and the police, while the miserable fee which results from this elaborate system must often be divided into three parts.

The city, which does nothing in character and wantonly mingles loveliness and evil, the ridiculous and the tragic, has not marked the spot for avoidance but has forced the lawyers to dispute their foothold with half a dozen small shops. The marketers, who come to the grocery, basket on arm, share the sidewalk with the prostitute and the dive-keeper. At four o'clock each afternoon the street is momentarily flushed by the influx of children from a neighboring school, who also witness the reluctant entrances into these mysterious offices, where despair dominates beyond what the court itself can inflict.

In this row, the offices of Groll & Bofinger were the most pretentious and immaculate. The glass front sparkled. The gilt announcement arrested the eye afar, while a green shade, raised half-way from the bottom, effectually screened the occupants and suggested a little of the mystery of the pawnshop, which offers obscurity to the despair of its clients. An office boy, prematurely gone into long trousers, lolled in the doorway, finishing by means of a hat pin the butt of a cigar and searching the passers-by with something of the restlessness of the pointer, alert to flush a new client.

Within the office the dwarfed ceiling and the frown of the opposite prison left a dim area by the window and sunk the rest into shadow. In the rear two dull glass doors threw a foggy interruption which filled with foreboding the imagination of the client who entered these confidential cabinets. Otherwise, the office was matter-of-fact and characterless; where one expected dust, confusion, and slouch, everything was clean, ordered and new, seeking an atmosphere of respectable mediocrity. This decent surface, nevertheless, after the first introduction never failed to impress the initiated with the treachery of an ambushade.

By the window Bofinger, with a leg over the table, was chatting with a reporter, Joseph LeBeau, who from nervousness was perched on the back of a chair, feet on the seat, gulping down frankfurter sandwiches from a paper bag. On the bench near by his comrade Ganzler, from a news agency, was stretched on his fat back, a law book under his shaved head, hat over his

eyes, pretending to snatch the sleep he had squandered during the night. In the rear the figure of Groll, withdrawn from the conversation, presented nothing but an indistinct bulk.

Ganzler was one of those rats of journalism which are as necessary to the press as the criminal confederate to the police, a bohemian to whom reporting was a destiny rather than a profession. He touched all men on the worst side, knew blackmailer and sharper by name, enjoyed their company and fell into their ways, did them favors when they turned up in the Police Court, was their intermediary with the force and, in return, ran without fear streets where a detective would not venture alone. He knew each subtle channel of graft about the court and won the confidence of all by dipping into the same ugly mess. He was coarse, acute, with a memory which never let slip a fact, made of iron, tricky, but too immersed in the life he reported to lend to the bare facts that inspiration which needs a far perspective. He was rated sure and indispensable. In journalism that is at once a guarantee and an epitaph.

Joseph LeBeau had not been in the service long enough to disguise either his curiosity or his horror. He was a blonde young man remarkable for that height of forehead which the image of Walter Scott has impressed upon the memory, and which, while invariably betokening great imagination and intellectuality, appears alike in poets and casuists. In the brown eyes were perception and wit fed by an untiring curiosity of life. At twenty-five, unless dissipation has scarred it, the face of a man is a record yet to be written and the first marks are significant. From the nostrils to the corners of the mouth two furrows had already set, which when he smiled recalled that statue of Voltaire which, above the fret of the Boulevard St. Germain, mocks those who cannot see life is but a jest.

Though rich, he dressed carelessly. The felt hat askew on his head was weather-worn. The blue tie straggled from its knot. The trousers sustained by a belt bagged from the hips to the boots which showed the white seam of a crack.

Nevertheless, beside him, Bofinger in his immaculate trousers, stiff white vest, and planked shirt had the air of a countryman who dresses once a year for a wedding or a funeral, while there was about LeBeau an atmosphere of

aristocratic certainty which gave the impression that his bohemianism was a mood into which, as into all things, he had ventured to sample the sensation.

He had been listening vacantly to Bofinger, intent more on pursuing some train of thought of his own. At length he crumpled up the bag and asked with that impertinence which reporters use to arrive more directly to their ends:

"Alonzo, did you ever in the course of your distinguished services happen to defend an honest man?"

Bofinger feigned an air of reflection, then with a superior smile answered:

"How many do you know?"

The paper bag hurled at the waste basket fell back, spilling its crumbs. LeBeau without attention to the accident drew out a cigar, crossed his legs and began gravely:

"How many do I know? You don't believe in the animal then? That phrase, my poor Bo, condemns you to mediocrity. Man, honesty is not a fixed virtue! Any one may become honest, at times, and for a variety of reasons."

"Joseph, you alarm me," said Ganzler, stirring under his hat. "Alarm me and disturb my slumbers."

"Honesty as a variety is an absolute necessity to man," continued LeBeau, half in raillery, half in conviction. "It stimulates our imagination and resuscitates our powers for sinning. We reserve it as a sort of moral bath; when we feel ourselves getting too black, why, we seek out an honest action and cleanse ourselves. It is a moral bath and a very slight application removes the stains. Blessed be our human nature!"

"Joe, your view of human nature is horrible," interjected Ganzler. "Say, can't we trust any man to remain dishonest?"

"Not even you, you old grafter," LeBeau said with a complimentary oath.

"I pass that. But Bo?" continued Ganzler. Then answering his own question he added: "Bo, though, isn't to be relied on, he's not a steady character. Say

Groll then—now go slow, you ain't going to tell us Groll's in any danger? I'd hate to think that."

The impudence of journalists is unbounded. All is permitted them if only they say it with an air of insincerity. On their side they abuse their prerogative, as women avail themselves of banter to leave the sting of truth. As LeBeau remained silent and thoughtful, Bofinger rose and examined the street, while Ganzler turning to the wall grunted:

"That was a poser."

"If I am right," LeBeau said with deliberation. "Of the four of us, Groll is the surest to end honest and respectable." He added: "He's a conservative—the present is but a ladder."

Ganzler and Bofinger, who saw in his gravity an exquisite irony, went off into riotous laughter, but LeBeau had the satisfaction of seeing, in the shadow, Groll abruptly raise his head.

"A man is neither good nor bad, honest or dishonest," he continued, "but a sensitive organism that under different conditions responds to different impulses."

"Hello, here's Flora," said Ganzler.

A woman entered, young and with a memory of good looks. Bofinger rose and the two disappeared through one of the glass doors.

"The man who succeeds," said LeBeau, speaking to Groll, "is he who studies the conditions that may turn an honest man to dishonesty, and those that bring a rascal to repentance. The important thing is not to fix the price of each man. Not at all. The thing is to use rogues not as rogues, but as rogues in whom is the fatal impulse to honesty."

"Hello, that's an idea," said Ganzler.

The door of the cabinet creaked and Bofinger, sticking out his head, said with an oath:

"Same story—she wants more time!"

Groll without a word let fall his fist; Bofinger, interpreting the refusal, disappeared. A cry was heard. The door shut, LeBeau resumed.

"That's what Bofinger doesn't see, and yet it is the obstacle he ought always to be dreading. Nothing more dangerous than honesty. Why, it is often nothing but an obstinate revulsion of pride in a man who for a whim or a moment resents being counted on as a rascal. That is temperamental honesty, liable at any moment to trip up a case. Then, a man can become honest by terror, or anger, or superstition, or sheer caprice. The truth is, in these days, you can count on no man's dishonesty. So confident am I of this beautiful truth that I prophesy Bo will end a shyster lawyer in a shyster court."

The woman reappeared, trailed by Bofinger, who shrugged his shoulders at her sullen departure.

"No use, Flora," broke in Ganzler, impudently, "you dress too well for that game. Pay and be protected. The system is better than another one we know."

The girl stopped for a furious retort, in one of those passions which shake the existence of the outcast and bring a hundred times into their lives the lust of murder. Then compressing her lips she wheeled and bolted out.

Ganzler laughed uneasily; LeBeau, forgetting his theme, watched her retreat. From behind, she showed a pleasing figure and the movements of a young girl.

"Take the other side," Bofinger said, returning to his perch. "Every man is more or less dishonest. Admit that proposition."

"It is debatable," said LeBeau, whose eyes still followed the woman.

"We graft or allow grafting—and what's the difference?" Bofinger pursued contemptuously. "A man who touches society the way we do has got no illusions I can tell you. Do you know how I could live if I wanted to—without its costing me a cent? Talk to me of your honesty! For lodging I could put up at a dozen hotels who want protection. For meals there are restaurants by the hundred who don't want to be looked into too closely. Stand in with the force and anything is yours."

"You said clothes?" inquired Ganzler with particular interest.

"Well, it ain't so hard to find a sweat shop that's breaking the law, is it?" Bofinger replied with a smile. "Liquor and tobacco are too easy. Theaters that break the rule of the fire department will keep you amused. Pawnshops on the queer will give you a fine assortment of jewelry, and you can get a hack when you want it from any night hawk who expects to get into court."

"Correct," said Ganzler, with an approving nod, "and convincing."

"Fact is, there is pretty nearly nothing you couldn't get served up to you," Bofinger ended, with too much pride for either to misunderstand it. "Nothing—because you can always find some one who is grafting in a large or small way. Hell, how absurd justice is! Take this case just now. If adultery is a crime, why don't they prosecute a woman of the world in a divorce scandal instead of some miserable brute who lives by selling herself for a few little dollars!"

Ganzler admired the fine flush of indignation and nodded wisely. LeBeau, remembering the scene with Flora, smiled ironically.

"A poor man calls in a lawyer to defend him," continued Bofinger, whom the thought of injustice aroused. "A rich man's lawyer plans for him how to escape arrest. What's the difference? A million, that's all! With a million anything is respectable."

"It is," took up LeBeau, in haste to air his opinions on that topic. "Why? With a million direct responsibility ceases. You no longer need to steal in person, you break laws by proxy. Justice does not yet recognize indirect responsibility. A million—there's our standard! Make it anyway. So long as the track is masked society will judge you only by the way you use it. At the bottom of all is this," he summed up, pulling out his watch: "The world abhors petty sinning. Take a ten-dollar bribe, you are despicable. Distribute on election day one hundred thousand dollars for bribery and you are a leader of men. Take one life—murder! Sacrifice a thousand lives for a commercial advantage, you are a captain of industry! Crime is in the motive and the scale. When a man steals from hunger or kills for revenge the motive is evident and the guilt apparent. But for ambition, for fame, for

supremacy—the motive is human and grandiose. The grand scale precludes the crime! You are right, Bo, you are right there. The million's everything!"

"Yes," Bofinger said pensively, whistling on his fingers, "but to get that first essential million you've got to run some risks."

"Otherwise life would be too easy," LeBeau said with a smile. "The only difficulty to-day is, as you say, to get the first million."

"It is all luck," Bofinger said moodily, and he remained silent, his gaze plunged into the street.

LeBeau scrutinized him, smiling at the appetite he had awakened, seeing the man in the bare, and wondering if there were any crime before which such a nature would retreat, were it once a question of the opportunity he coveted. He woke his companion, who jumped up rubbing his eyes, asking:

"Well, are you through with your honest man?"

"True, we had forgotten him," LeBeau said, glancing at Bofinger.

"Bo, good news!" Ganzler cried, looking through the window. "I see a client."

Across the street a little man, clad in black from a shovel hat to a cloak which he carried slung over his shoulder, was examining undecidedly the row of lawyers' offices. The shoulders, which were unusually broad, so diminished his size that they gave him the look of a dwarf. It was an odd figure, incongruous in the street, with an air of belonging to the traditions of the stage. The two reporters, amusing themselves at his expense, decided successively that he was a bandit, a barber, an actor, a magician, a poet, and an engraver of tombstones.

"There he goes," cried Ganzler. "He's frightened off. He's guilty!"

"Maybe it was the honest man after all," said LeBeau, laughing. "Only honesty looks guilty nowadays. Too bad, that was your chance. Beware the honest man, though!"

The two reporters departed for the court after helping themselves to cigars. Immediately from the back of the room a voice cried peremptorily:

"Alonzo, you talk too damn much!"

"What of it?" Bofinger said, wincing under his chief's reproof. "I only told them what they knew."

"Say nothing and you risk nothing."

Extricating himself from his seat Groll moved into the light, discovering the shoulders of a hunchback, a massive bust on legs which were weak, ill-matched, and pitiful.

The heavy head fell from the high cheekbones and the yellowish eyes, which bulged like marbles, along the bold and fleshy nose to a lengthened jaw where the folded lips adhered to each other as though to repress all indiscreet speech. It was an unusual face, vacuous and immobile, that seemed to contain instead of blood some fishy fluid, which left it incapable of emotion.

On settling into his seat his arms sprawled over the desk, bracing the weight of the head and shoulders on the elbows, while from the mass the eyes, vacant and magnetic, conveyed to Bofinger for the thousandth time the impression of an immense spider in the center of its web.

Physical deformity has an extreme effect on human nature. Either it produces an heroic and resigned optimism, or it forms, by divesting them of the passions which shackle men, characters of implacable selfishness, who are strong because they were born weak and know no pity because nature has shown them none.

Calculating and self-absorbed, Groll was yet not of those gamblers who, staking all at each leap, infrequently arrive through desire and infatuated confidence to heights seemingly beyond their force. He moved slowly to his end, with that unhuman oriental patience which, allied to the imagination of the American, forms in its rare conjunction characters that death alone can thwart. He knew how to bide his time without, as commonly occurs, the waiting consuming him. At thirty-eight, age when the American reckons his life a success or a failure, he had not lost a whit of his complacency. He had never known youth, he had not therefore been disturbed by its pangs for instant preeminence.

With all that he was approaching forty a shyster lawyer, living on the blackmail he shared with the police. The future did not seem to hold anything further. Nevertheless, he had forced a career even out of this slough of petty misery. He had begun by examining carefully the problem of vice and the law, asking himself anxiously if the system of blackmail was transitory. He soon became convinced that so long as public sentiment would not admit that vice exists and legalize it, vice must exist through corruption. He then conceived an audacious plan, which was no less than to unite under one system, with himself as the head, all the traffic in blackmail which then filtered through a thousand intersecting channels. The man who could achieve such an organization, he saw would dominate the city so long as he was content to remain obscure. Towards this end he had moved irresistibly, picking his associates and his agents, biding only the moment when his fortune would permit him to launch the system on a grand scale. So well had he locked up in his own breast the secret of this gigantic plan that Bofinger himself did not suspect it.

In character he was frugal, temperate, and peaceful, without vices or distractions, qualities which in another man would have been virtues, so strangely does the controlling motive determine betwixt virtue and vice. Born three centuries ago he might have been a bigot, pursuing religion with the same fanaticism which he brought to the conquest of his present design.

Bofinger continuing to defend himself, Groll interrupted decisively:

"One is never strong enough to be confident. Only a fool feels secure. Talk to Ganzler who is one of us—but not to LeBeau, who for a sensation might write us up and bring everything tumbling about our ears! Also don't show your hand! Play close to your chest." He stopped, considered his associate, and perceiving the reproof was felt, added: "Now for business. What did they say at that new joint in Eighteenth Street?"

Bofinger, who had taken his scolding like a guilty schoolboy, hastened gratefully to the opening, saying:

"They won't give up a cent."

"Did you make clear our pull?"

"Yes."

"What, do they think they can operate in this district for nothing?"

"That seems to be it."

"We'll have it raided to-night," Groll said thoughtfully but without irritation.

"We must make an example. It will have a good effect. Besides Flaherty tells me he's got to pull off something quick."

He drummed on the desk, while Bofinger, seeing he had something in mind, waited.

"Alonzo, we've been working on a wrong principle," he said suddenly.

"This idea of being lenient with the women will bring us in trouble. We must be paid promptly and cut out the excuses. That's what gets them excited, and when they get worked up they are liable to do anything. When they understand they must pay up they'll take it as a matter of course. Putting it off gets them to brooding over their wrongs. After this, no more putting off. Otherwise run them in the next day and send them up to the Island. Two or three examples will straighten things out. Make it easier for us and easier for them."

"Shall I warn them?" Bofinger asked.

"No," he said after a moment. "The example will be better if you don't. Send a couple up."

For a few minutes he gave directions in the same mild, unvarying voice, and then departed, each step paid by an effort.

Bofinger with a remainder of his irritation threw himself into a chair. The discussion with LeBeau had touched him too closely to be soon dismissed. The reporter had not been mistaken in his estimate. Bofinger was a man constantly in revolt against his condition, ready to risk anything for the opportunity to rise. But he wanted fortune, as the gambler seeks it, in a day, on some marvelous cast. This conversation with LeBeau, who had all he coveted and seemed to disdain it, left him in a fury. He recapitulated in his mind a dozen schemes of blackmail and sharp practise, rejecting each as inadequate and petty.

"It's all luck," he said almost aloud. "I'd like to be a woman. It's only a woman can jump from anywhere. If I only had their chance!"

In the midst of this reverie, the door was suddenly thrown open without the ceremony of a knock, and a curt voice demanded:

"Be this Mr. Groll?"

The lawyer, shocked out of his dreaming, looked up and recognized the singular figure of the little man in the shovel hat.

CHAPTER IV

THE LITTLE MAN OF THE SHOVEL HAT

The newcomer stood rigidly. In the dimness of the office he had the look of a musty portrait where the artist has allowed the body from the shoulders to sink into obscurity, the better to emphasize the chalkiness of the face.

"I am Mr. Bofinger," the lawyer said. "What can I do for you?"

The client, without answer, remained blinking at the lawyer. The clothes were shabby, of a style unfamiliar. The trousers bulged and wrinkled like sails in the wind. In the coat the elbows were polished and the cuffs eaten away. The narrow, ill-revealed eyes had all the cunning of the valet, spying the details that escape another, but with the insolence of the man who is accustomed to give command. The cast of countenance was Eastern, dominated about the thick lips by a set scowl of mistrust, which struck the lawyer at once, as well as the almost fanatic intensity of his gaze. The feet, the knuckles, and the nostrils, as in abnormal or extreme natures, were pronounced.

He remained at the doorway with undisguised interest, examining the unfamiliar surroundings with the defiance of one prejudiced against the profession.

Bofinger, who divided humanity into those who could pay and those who could not, satisfied on this score despite the poverty of the habiliment, rose and said:

"Come in, take a seat."

The visitor with a start removed his hat, discovering a fleeing forehead matted with coarse dark hair, and sliding forward ten feet fell into a chair. Standing his hands had obtruded, seated he sought to conceal his feet. Then suddenly, speaking from the corner of his mouth, he said:

"You're rather young."

"I have been fortunate," Bofinger said modestly, concealing his astonishment at this opening, by pretending to discover a tribute.

"Close-mouthed?"

"As an undertaker."

"Honest?"

"What, sir!"

"And honest?" the little man repeated, seizing a knee in either hand and looking him stubbornly in countenance.

With unfeigned astonishment, Bofinger shot to his feet, glared down a moment at the cynical, unrelenting scrutiny; then, with a bob of his head, wheeled, returned to his desk and said softly as he took up his paper:

"Kindly close the door—after you!"

There was a moment's interval, while each watched the other, the lawyer fearing the success of his manoeuvre, the client weighing its sincerity as he balanced on his chair and blinked in indecision. All at once he jerked upright, flung aside his shock of hair and blurted:

"Mr. Bofinger—"

"No, sir, I beg you," the lawyer cut in, elevating two fingers. "Such questions cannot be addressed to reputable members of my profession—"

"I want to say—"

"No sir, it is useless. If I don't produce in you the necessary impression of confidence, then there ain't no use in prolonging—there ain't no use, I say —"

"Say, I take that back," the other interrupted decisively.

Convinced that the question had been designed to test him, Bofinger allowed a requisite interval to salve his dignity, before replying:

"You are, I see, unfamiliar with the etiquette of attorney and client. For that reason and because I see your business is of a kind to alarm you I'll pass over what you have just said. But I insist that without further delay" (here he consulted his watch) "you come to the matter in point, Mr. ——"

The little man shook his head nervously.

"You don't wish to give your name?"

"I don't."

"That ain't unusual," Bofinger said graciously. "Well, how can I help you?"

Thus faced, the client said carefully:

"It is a delicate matter."

At this trite introduction, Bofinger could not restrain a certain disappointed loosening of his body. He crossed his legs, caged his fingers and, meditating on the ceiling, volunteered:

"A woman?"

"Yes."

The visitor shifted in his seat, pulling at the knees of his trousers. Bofinger repressed a smile and a yawn.

"You couldn't have gotten into better hands," he said in sing-song. "Are there any letters? Does she hold documentary evidence?"

"No—no!"

"Good. Divorce or breach of promise?"

"What are you talking about?" his client said angrily. "I want information."

"I see," Bofinger said, resuming the scent, "and very stupid of me. Information preparatory to marriage, ain't it?"

"Certainly not!"

Bofinger, nettled at his insuccess, said grandly:

"If you will elucidate."

"It is an adoption."

The manner and the answer revived all the lawyer's curiosity.

"You said—"

"Adoption!" snapped the little man with evident ill humor.

"Very good. The case now is clear. With a view to adoption, I am to investigate the past life and present surroundings of the child."

"Yes."

"It is a girl?"

"A woman—a young woman."

At this answer the lawyer experienced an extraordinary quickening of interest that finally dispelled any fear of a commonplace case. This time he did not force a repetition of the essential statement, but adopting a matter-of-fact tone, poised a pencil and asked:

"What is the name?"

"Vaughn—Sheila Vaughn."

"And the address?"

"I don't know."

Bofinger raised his head in astonishment.

"But you know her—have met her."

His client, with a nod, suddenly abandoned his reticence and as though now he had come head high into the matter, there was nothing for it but to strike out boldly, began imperiously:

"I'm to meet her at four o'clock in Washington Square, northeast corner. You be there, follow her after I go, and get her address. Find out everything about her, where she comes from, where she lives, what she does."

"One moment," Bofinger said suddenly. "How long have you known her?"

The little man frowned, looked at him in disapproval of the question, and finally replied:

"Four months."

"Good."

"Look here, Mr. Bofinger, I want to know everything, complete. You know what that means?"

"Certainly."

The chair grated, the little man snapped to his feet, clapping down his hat.

"And see here. I forbid—that is, I want you to see that she don't suspect what's going on, not for a second. You hear—she's not to know I'm looking her up."

"That goes without saying. Now can I have a few days? Say—three from now. Where do you want me to report, Mr. ——"

"Mr. Bofinger," he cried angrily, "you ain't going to catch me with your lawyer's tricks. You thought you'd worm out of me where I lived, didn't you?" He stopped, glared at Bofinger and then cried: "Do you know what I think? I think you're nothing but a pettifogging lawyer—that there ain't no partner, and I'm no better'n a fool to talk to you. What do you say to that?"

"That I'm dealing with a lunatic!" Bofinger said brusquely. "I've had enough of you. Take your case somewhere else!"

"No, no," he answered chuckling. He remained shifting from foot to foot, swinging his big hands and blinking at the lawyer, who, from long contact with rascals, presented an offended innocence on the most honest countenance imaginable. At the end of a moment, reassured or not, the little man ground on his heel, squared his shoulders, and without so much as a word shuffled away.

Bofinger, with a few rapid steps, flung out the back passage into a sort of blind alley, choked with a damp display of mounting wash, hailed Toby the

office boy from a knot of young gamblers, and returning showed him through the window the retreating figure of his late client.

"Name and address. Be quick and be damned careful." He spun a half dollar in the air, adding, "Waiting for you, Toby, if you're back within an hour."

"I'm on," Toby answered. He drew in a whistle, blinked one eye affectionately at the silver and disappeared like a shadow, calling back, "Put it on the ice, boss!"

Bofinger stood a moment, rubbing his chin. Then with a grin he dropped into his chair, saying contemptuously:

"An adoption!"

CHAPTER V

BOFINGER LOSES HOPE

Bofinger, with his instinct for blackmail, already saw clearly into the case. A misanthrope in love, who, to conceal his purpose, hid his identity and feigned to be considering an adoption; and a woman who, on her side, refused to reveal her address presented to him the familiar conjunction of senility and the adventuress. When he had asked his client how long he had known Sheila Vaughn he had had a motive. To him, the vital issue was to learn whether this shabby, odd client had means. Confident that the woman must have already secured that information, when he learned that the intimacy had already existed four months he felt certain that if she had played so carefully it was for no mean stake.

To his keen sense of his own opportunities the eccentric character of his client, all suspicion and mistrustful cunning, provoked a professional eagerness to meet and dupe so unusual an antagonist. He did not formulate a plan yet, but he had that strange, excited premonition of success, which, though it deceive a hundred times, gains always with the temperament of the gambler an easy credence.

He went to the court-room, where he transacted some business, and towards four o'clock hastened back to the office. To his great irritation Toby was nowhere to be seen, but on going to his desk he discovered a note on which was scrawled:

MAX FARGUS

The Oyster House Man.

Bofinger pounced upon it with a cry of exultation. Max Fargus, proprietor of half a dozen oyster houses, was a character known to the city by a score of anecdotes of eccentricity and greed. He crushed the paper in his hand and swung out triumphantly.

"Fargus is worth half a million, if a cent," he said joyfully. "What luck, eh! The woman is playing for marriage of course. Bo, I begin to see where you come in!"

As he hastened towards the Square, dodging amid the filth of Sixth Avenue, he amused himself by sketching the portrait of the woman as he imagined her.

"Yes, sure, its a question of marriage," he thought. "It must be if she has played as close as that for four months. She's a clever one, I bet, an old hand. I wonder if I know her."

The Square suddenly discovered itself, that smiling barrier which interposes between the horrors of Third Street, a locality so foul that a conflagration alone could cleanse it, and the thoughtless royal avenue which digs its roots here and stretches upward to flower like a royal palm in the luxuriance of Central Park.

At this period Washington Square had not fallen before the vandal march of business, though already the invaders showed their menacing front above the roofs. To-day nothing remains of that glory save the north side, which, in its red and white uniforms, makes face with solid front to the enemy from whom it expects nothing but obliteration.

"Now for it," thought Bofinger as he entered the grateful shades which the foliage, nowhere more generous, lavished there. On a bench at the foot of a sycamore he had perceived the somber note of his odd client and the green flush of a dress. Slackening he came towards them, his eyes eagerly on the woman. He had expected a young girl, he found a woman in the thirties, but fresh and defying an exact estimate. A simple bonnet, with border of lace, which drooped like petals, effectually concealed her face. The dress of a peculiar shade of May-green silk showed a neck as modest as that of a young girl, and draped itself demurely and indefinitely.

She was busy over some embroidery, but at the moment of his passing the needle was idle, and with her eyes on the ground she was pondering on some remark of her companion. Everything spoke of the natural—the innocence and prudery of her pose, the gradual motion of her body, the artless quiet of her attention; of the coquette or the actress—not a sign.

Bofinger caught this rapid impression as one seizes the flight of a star. He passed, his hopes sank. His anger rose and he cried with an oath:

"Hell, what luck—she's honest!"

It was the one obstacle that never failed to upset his temper. To be defeated by rascality, by a clever turn of chicanery, never disturbed him—that was legitimate. But honesty, in his philosophy, was such a colossal absurdity that before it he never could control his impatience. So it was with a sense of having been defrauded that he repeated:

"Damn the luck, she *seems* honest."

He sat down at some distance, yet near enough to wait anxiously a better look. In a moment the woman lifted her head and he saw her face as she nodded deferentially to her companion. The black hair was divided in the middle and fell over the temples in the fashion of a thousand madonnas. He thought that she had even a look of stupidity. She put the embroidery into a bag and the movements of her arm was stiff, lacking grace, the gestures of a woman without coquetry.

"Sold again!" Bofinger murmured, overcome by such evidence. "Perhaps after all I jumped too soon. The old boy is crazy enough to adopt her."

With an abrupt leave-taking, Fargus arose and departed eastward. The woman without lightness or geniality had accepted his bow, bobbing her head and, betraying her inexperience by a slight diffident start, reseated herself with embarrassment.

Presently she stood up, smoothed her skirt, tucked her bag under her arm and moved off, clutching her parasol by the waist.

"Oh, a woman who walks like that," Bofinger said to himself as he followed her up Fifth Avenue, "must be virtuous. She's the honest working girl supporting an invalid mother and all that. It's true, such things do happen. Ah, we turn east now."

She had disappeared around the corner of Twelfth Street. Without distrust, Bofinger followed so negligently that on rounding the corner he ran full upon her waiting in ambush. The surprise made him lose his self-

possession; he passed hurriedly, without daring to meet her glance. But to his immense relief he saw she had not even noticed him and divined that it was for Fargus alone that she took such precautions.

"Eh, eh! What does that mean?" he said joyfully to himself. But this new hope gradually flickered out, as he considered logically: "After all, she has a right to hide where she lives. Besides, if she were an adventuress, she would have suspected me. That's true, that proves nothing."

He continued eastward and turned north up Irving Place, perceiving to his satisfaction that she would do the same. At Fourteenth Street he covered himself in the crowd, while the woman taking the other side went west to Seventh Avenue, again starting north.

Seeing that she no longer feared pursuit Bofinger approached nearer. At one crossing, to avoid a puddle she caught up her skirts in either hand, the parasol projecting awkwardly.

"She walks like a country school ma'am, going to school in rubber boots!" he thought savagely, finding relief, as his irritation grew, in ridiculing the woman. "How long is she going to keep me trotting after her, I wonder?"

As though in answer to his question she turned west and suddenly mounted the steps of a brown stone front close to the southern corner.

"Respectable, of course!" Bofinger ejaculated, passing and marking the number. He went to Eighth Avenue, descended a block and returned eastward. The respectability of the house completed his dejection, which showed itself in the listless drag of his feet.

All at once as he neared Seventh Avenue again his indifferent glance, wandering along the street, was stopped by the peculiar actions of a woman in a light duster, who was holding the door across her and spying the street with caution. The veil which fell from a saucy toque of light blue straw was thick enough to hide her features. With only a languid amusement Bofinger was watching her when, in stepping from the vestibule, the woman caught her duster on the door. The next moment she snatched it around her, but in the second's interval Bofinger beheld a flash of green, of that peculiar May-green silk which a half an hour before had first attracted his eye to the companion of Max Fargus.

Her alarm, the dress so carefully concealed, the position of the house back to back with the one she had entered, revealed the whole stratagem. A great thankfulness welled up in him, and like all men whom a flip of fortune redeems, he received the turn exultingly, as an evidence that he might count on illimitable favors.

He laughed with an easy heart at the simplicity of the trick which had deceived him, and as he followed her he laughed anew at the transformation of the woman. Everything was changed. The skirts hidden under the duster were yet gathered about her in a way to suggest the slender lines of the body. She walked daintily, placing her feet with care. Even to the alert poise of the head and the rapid grace of her movement, everything breathed an air of coquetry and art.

Bofinger, lost in this analysis, continued to laugh, sharing emotion between railing at his stupidity and admiration for the actress who had not neglected a single detail. He thought of the awkward start she had made when Fargus had left, and of the way she had reminded him of the country woman stalking in rubber boots, and recalling such details he followed joyously, scenting success with such an ally.

After a few blocks she went west and entered a house, letting herself in with a key.

"Hello, I know that place," Bofinger said to himself, recognizing the boarding-house as a haven of improvident actors. "So Miss Vaughn is of the stage. I can believe it." Then he added with decision: "What a treasure, eh! She's clever enough to hoodwink a dozen Farguses!"

The exact meaning of this sentiment was, no doubt, that a woman who could deceive him must be capable of great things.

CHAPTER VI

MISS MORISSEY IS MISS VAUGHN

At the end of half an hour, which he gave to a careful consideration of his plans, Bofinger returned to the boarding-house. A plot of burned and scrawny grass served as a front lawn. A cast-iron nymph, relic of prosperity, stained and chipped, its head-dress holding the straws of an old nest, gave the note to the place and prophesied the interior. At his pull, the loose knob, as though unaccustomed to use, came forth so far that he feared he had wrenched it bodily out, before a faint twinkle from within persisted to his ears. Three times he repeated this operation, before a shadow on the glass announced a slow relief.

A frail old woman, moving tediously, ushered him into the hall, shading her weak eyes while she awaited his errand.

Bofinger, drawing forth his pocketbook, selected a business card, discarded that for one that bore his name alone, and finally, after a moment's consideration, replaced the pocketbook and said:

"Just tell the lady who came in a half an hour ago that a gentleman wants to speak to her."

"Ain't ye goin' to send no name?" the woman asked in dull astonishment.

"It is not necessary."

"And ye don't know her well?"

"I don't."

"I guess, then, I've got to climb up," she answered wearily. "I was hopin' you might go up. What did ye say her name was?"

"The lady who came in a while ago; she wore a light duster."

"Oh, Miss Morissey—ye want to see her, do ye?"

"That's it, Miss Morissey—please."

"She wouldn't hear if I called. She's on the third," she answered, with a sigh and a look of reproach. "Ye can sit down there—" She took a step but turned with a sudden solicitude. "Don't bear too hard."

Mindful of the caution Bofinger balanced gingerly on the shaky chair, watching the landlady laboring up the stairs, a step at a time, childish fashion.

An air of dinginess and neglect pervaded the hall and the distant dining-room. In the carpets were frayed shallows, on the banisters two spindles diverged from the line. The blistered plaster was dropping from the ceiling, while on the wall the grimy, green paper had regions of musky yellow. Curtains and shutters rigidly excluded the daylight, while everywhere the carpeted silence spread the feeling of a cemetery of abandoned hopes.

From the second floor the thin complaint of the landlady came down.

"Miss Morissey! oh, Miss Morissey!"

So persuaded was Bofinger by the all prevailing famine that he rose and cautiously regained his hat from the loose rack. The landlady, climbing on, kept calling from time to time, fruitlessly, "Miss Morissey! Miss Morissey!"

A door whined, and in the dusk of the landing above a vague head came to peer down at the lawyer. The landlady returned, descending with the same efforts, and announced:

"Ye can go up, top floor back, feel to the right as far as ye can go, and knock."

Seized with the general decadence he toiled upward with slow, lifeless steps. An odor of stale tobacco hung in the air. At the first floor a door left purposely open showed a man in shirt sleeves, shaving, while a woman in a wrapper arrived in time to study his passing. Through the darkness into which he now ascended came an atmosphere of musk and the scraping of a violin. Groping down the blind passage with outstretched fingers, his hands finally struck against the wall. He felt to the right, found a door, and knocked. A voice replied, uncertainly:

"Yes—come in."

He stepped out of the blackness, blinking a moment at the sudden light. The woman he saw was indeed Sheila Vaughn.

"Miss Morrissey?" he asked, shutting the door carefully.

"Yes."

He bowed and, indifferent to her questioning, remained sweeping the room with precise scrutiny. In the walls the same decrepitude was manifest, in the furniture the same infirmity. A patch of brown paper replaced a pane in the window, the globe on the gas-jet was bitten and smoked. On the rakish bed was laid out the green silk dress, a clothes brush on top. In its place she wore a soiled muslin, raveled at the cuffs and the neck, while the neat boots had given way to frayed red slippers. A wrapper, a musty dress or two, in impoverished contrast to the elegance on the bed, hung from a row of pegs.

The eye of the lawyer, after noting each evidence of unusual poverty, rested on the table where a few photographs were displayed. He advanced and picking up each in turn said pleasantly:

"Ah, Miss Morrissey, you have had a career?"

The woman, who had followed him with amazement and alarm, said stiffly:

"What do you want with me?"

"Miss Morrissey," Bofinger said, replacing the photographs with a nod, "I want to see you on business—particular business. Can I sit down?"

"Sit down."

Reassured by the matter-of-fact method of his address, she motioned him to a chair, drawing one for herself.

"If you please, I'll sit here," he said, placing himself so that the light would fall on her face. He drew his glasses, peered at her earnestly, and began:

"My dear Miss Morrissey, you are certainly a most interesting person—pardon me if I am too curious."

"What's your name?" she said quickly.

"Mr. Bofinger—Mr. Alonzo Bofinger."

"You are a lawyer?" she asked slowly.

"Yes, Miss *Vaughn*, I am."

"Ah!"

The interjection escaped her. Immediately she rallied, rose and shifted her chair, that the light might be equally shared. Her eyes showed anxiety but more interest, as she asked with false calm:

"Then what do you want with—Miss Vaughn?"

"Sheila Vaughn," Bofinger said loudly, thinking the time right to overwhelm her, "I represent Mr. Max Fargus."

He paused for evidence of disconcertion, but whatever her emotions she replied evenly:

"Yes, I know him."

"Mr. Fargus has commissioned me to make the most exact inquiries about you."

"Why?" she asked, studying his face intently.

"My client is thinking of an adoption."

"Indeed!" she said, really astonished; but the smile that succeeded showed him she was not the dupe of the subterfuge.

"That was the reason he gave me. I suspect, though, that it is rather a question of marriage."

"Very probably," she said, nodding. In measure, as she studied the sly countenance, her assurance had returned. "And what'll you do?"

"Madam," Bofinger said impressively, "I must report what I have discovered."

"And that's what?"

"That I followed Miss Vaughn to a house where she disappeared and Miss Morrissey emerged—by a back passage. That Miss Morrissey is quite a different character from Miss Vaughn, especially in style," he added, smiling reminiscently. "That Miss Morrissey is evidently of the stage, living in a boarding-house, which I happen to know is a resort of actors on their uppers. I shall be forced to describe the contrast in your dress and the destitution of your wardrobe; pardon me, if I am forced to use the word,—deception. This, I say it frankly, is but the beginning of my investigation."

"It's already a good deal, isn't it?" she said thoughtfully.

"You must judge of that, Miss Vaughn."

"Are you sure" she asked with a smile, "quite sure that you'll tell all that?"

He turned in astonishment and saw that she had taken his measure. Realizing that he could no longer count on the advantage of terrifying her, he acknowledged the turn by abandoning his magisterial attitude, and discarding his glasses.

"Sheila," he said genially, "I don't intend to do anything of the kind."

She frowned, laughed, rose, rearranged her skirts and, with a return of coquetry, asked maliciously:

"Will you please tell me how my extraordinary friend came to employ you?"

He did not like it that she should have read him so easily, but this pique yielding to the humor of the question, he said with a grin:

"I guess Fargus thinks all lawyers a set of scoundrels. Anyhow he picked me at random, thinking he would stand as good a chance that way as any other. To which I'll add, since perfect confidence is necessary between us, he was wrong in his theory and unlucky in its application. However, his misfortune is our gain."

At the word "our," calmly spoken, Sheila turned anxiously.

"You have some plan then?" she said abruptly. "And what do you expect out of it?"

"One moment," Bofinger said with a deprecating smile; "before we discuss such vulgar details there must be, I repeat, absolute confidence. Miss Vaughn, you have sized up quickly the fact that your future lies solely in my hands. I ain't going to deceive you—my interests depend on you. Let's begin at the start. What's your side of the affair?"

He threw himself back into a listening attitude and looked at her encouragingly. The daylight had begun to weaken. Across the sordid back lots an occasional gas-jet flared upon a room too miserable to be hidden. Before the direct avowal Sheila hesitated, incapable of his brutal frankness, woman-like considering some justifying motive. The lawyer with a cynical smile comprehended the dumb play and waited until she broke out lamely:

"My side—you know it already. He wants to marry me—and I—I am willing. That's all. How could it be anything else?" She put out her hand as though calling on her surroundings to explain.

"What have you told him?" Bofinger asked, seeing that he must prompt the recital.

"I am living with an aunt, whom I support by needlework," she admitted reluctantly.

"Come, my dear," Bofinger said encouragingly. "If you don't want to tell me how you managed it—you're clever enough, you fooled me for a moment—tell me where you are."

"I don't know," she said frankly. "He's half crazy, you know. I'm never sure of him."

"Well, has he spoken?"

"Of marriage? No—that is, not outright."

"Well, where are you?"

"Why, I am waiting," she said with a shrug. "He makes love to me all the time."

"And I suppose, my clever dear," Bofinger said, taking the opportunity to promote familiarity. "You've made him think you're pining away?"

"I'm no such fool," she answered with an indefinable smile. "Indeed I tell him that I don't care the least bit for him. That if he wants to win my affection he's going to have a hard time, but—" she added with a laugh, "I let him believe that's not entirely impossible."

"You're right," Bofinger said appreciatively. "Of course you're right."

A weak knock sounded on the door. Bofinger, who did not wish to be seen, rose, looking anxiously at Sheila.

"It's only dinner," she explained, going to the door.

"Nevertheless," he said hurriedly, showing his back and going to the window, "don't let any one in."

Obedient to his request, she received the meal from the child who brought it, paying out the pennies and barring the door.

"Let's see," he said, returning to the table, "what you call a dinner."

On the table were arranged half a sausage, half a loaf of bread, and a pint of milk. He looked at them a moment and then with a contemptuous motion tossed the loaf and the sausage out of the window.

Sheila, with a cry, sprang forward.

"No more of that stuff," he said with a sneer. He drew his pocketbook and laid on the table a fifty-dollar note. "There's ready money, pay your debts and be ready for me at half-past seven."

"Why, what do you mean?" she blurted out, fastening greedily on the money. "Is that for me? Why?"

Bofinger, who watched anxiously the effect, was exultant at the hunger in her eyes.

"I hold her there," he thought. Then aloud he said cheerily, "I'm going to take you to your aunt's, my dear, and respectable quarters where you need not be afraid of being found. And we'll do that right away, for old Fargus is

suspicious enough to have me watched as well as you. We'll take no risks. Now if you'll light the gas."

As she complied, he pulled his note-book and, tearing out a page, was proceeding to write, when he stopped and considered the woman as though to measure her cunning. Suddenly he asked:

"Sheila, are you educated?"

"Yes."

"You can write—like a lady?"

"Of course."

"Let's see," he insisted, passing her the paper and pencil. She wrote her name and his in a free, regular hand.

"Very good," he nodded, scanning her signature. "Now just a moment."

He wrote with pains, while she waited in perplexity, until at length, with a glance of satisfaction, he returned the page to his pocket, stiffened in his chair and said drily:

"Now, if you please, we'll talk business!"

CHAPTER VII

THE COMPACT

Sheila looked at him in astonishment. A world intervened between the two attitudes. The man she had fathomed and did not fear had given place to something hard, impassive, and mechanical. She saw she had marched into a trap and the perspiration rose cold between her shoulders as she moved uneasily, seeking with a smile to regain the man from the lawyer.

"Come, it isn't so bad as that!" she said with a moue. "You see how I am fixed. What do you ask?"

"Half!"

She looked at him open-mouthed. A moment intervened before she asked in perplexity:

"What? Half of what?"

"Half!" he answered, raising his voice. "Share and share alike!"

"Do you think I'm a fool?" she cried angrily, springing up. "A fool?"

"Half!" he insisted, pressing the point of his pencil obstinately into the table. "Of all he gives you—one half to me!"

"Oh, that's too absurd!" she cried with a clap of laughter.

"My dear Miss Morissey, sit down, sit down and listen," he said acridly. "We are to be partners, share alike or the game's off. Whatever you get, whatever money passes from his hands to yours, for whatever reason, for expenses or for pleasure, for carfare even, one half comes to me—to my account. Accept and I take all expenses. You leave here to-night and marry Fargus in two months. Otherwise I break you with a word, as easily as this."

He took a glass from the table, placed it without anger under his foot, and crushed it.

She came suddenly to him, tears of fear in her eyes, and placing her hand on his shoulder said:

"You're not going to be as hard as that—I am starving, in rags—have a little pity on me. Or is it the way of you lawyers," she said, forcing an anxious smile, "to ask for more than you expect? If so, you are wrong. I will be generous. Help me to marry Fergus and I'll give you one thousand dollars."

"One thousand dollars!" he cried uproariously. "You fool, do you know what the old miser is worth? A quarter of a million! Half, half I say!"

She still sought the man in the lawyer and, throwing herself on her knees, cried:

"But that would make me a slave! You can't mean that—you are too young to be so merciless. Make your own terms, say anything reasonable, and it's yours."

"Miss Morissey," he said pompously, "you are mistaken in the person you're addressing. Mr. Bofinger has left the room. You're dealing now with the lawyer. Let me tell you right now, as a lawyer, I don't set one price to get another. I always get what I ask. When I have once made up my mind what's coming to me, I never relent. I am not twenty-one," he added with a smile. "I do not throw away thousands, either for caresses or tears. Get up!"

She regained her feet, affrighted, perceiving that this obsession of the lawyer was the more implacable that it was set in vanity and pride.

"Don't drive me to despair!" she said with an ugly flash of anger.

He began to laugh.

"You are wrong," she said sullenly, "to squeeze such a bargain. I will refuse."

"Come," he said, rising, and with a brutal movement laying his hand over the bank-note. "Is it for you to make conditions? I know your kind, a fine dress outside, rags to your skin—rags, that's the story, rags and crumbs, beggary and starvation. And you bargain with me! Come, that's too good. Suppose I offer *you* a thousand and take the rest? I could do it. I hold the whip hand. I make the terms. Enough of this. Come, choose."

He held the bill loosely in his fingers, withdrawing it gradually. She followed its retreat with haggard looks, until, when he was on the point of replacing it in his pocket, she shot forth her hand, and said sullenly:

"Give me it—I am starving!"

"There, my dear, that's sensible," he said with a burst of good humor. "You can have the best dinner to-night New York can give! What! Are you hankering after cold bread and sausage? Is poverty so lovely that you regret it? And, Sheila, do you think that boiled ham is any more satisfying than a crust? Look at me. I swear I suffer as much on a pittance as you do on nothing. I also, my dear, am hungry for a little bit of the cream. No, you are not one bit more miserable, here in this room, than I; I, who if I had had ten thousand dollars to start with would be worth a million to-day. Do you think a man like me—with my talents, don't suffer too? Come, we're more than partners—comrades! We each want the same thing, don't we? So let's play the game together and square now! There's no limit to what we can do!"

She felt the wolfish sincerity in his avowal and perceived that it was useless to struggle, but, disliking his new mood, she said coldly:

"I'd rather talk to the lawyer."

"Which reminds me," he said, driving into his pocket. "Kindly sign this paper. It is an acknowledgment of a common-law marriage between us."

"Between *us*!" she exclaimed, utterly bewildered.

"Purely technical, my dear," he said with a reassuring smile. "My affections ain't enlisted. The document is simply for my protection and is, as you will see, the only one that can guarantee me you'll live up to your agreement."

"So that means I am to be absolutely in your power?" she said slowly.

"Absolutely."

"And if I don't do as I agree—"

"I'd produce the contract and prove your marriage to Fergus void. You see how it protects me?"

"And suppose Fargus dies?" she persisted. "You see I want to know all."

"In that case," he said cheerily, "We should probably—after a decent period—get married ourselves."

"That's what I wanted to know!" she cried, hurling the contract angrily away. "Very well. I will never, never sign such a paper, never!"

She began to whip up and down the room like a panther, her lips moving, repeating incessantly, "Never, never!"

Bofinger, without shifting, allowed her passion to run its limit. Then when, from its very violence, exhaustion compelled her at last to fall into a chair, he said softly:

"So, so. Then, my dear, you had no idea of holding to the agreement, had you? Come now, why are you so furious? Because you find that I am not to be tricked? Take the pen and sign."

She shook her head weakly and put it away with her hand, as a child refusing medicine.

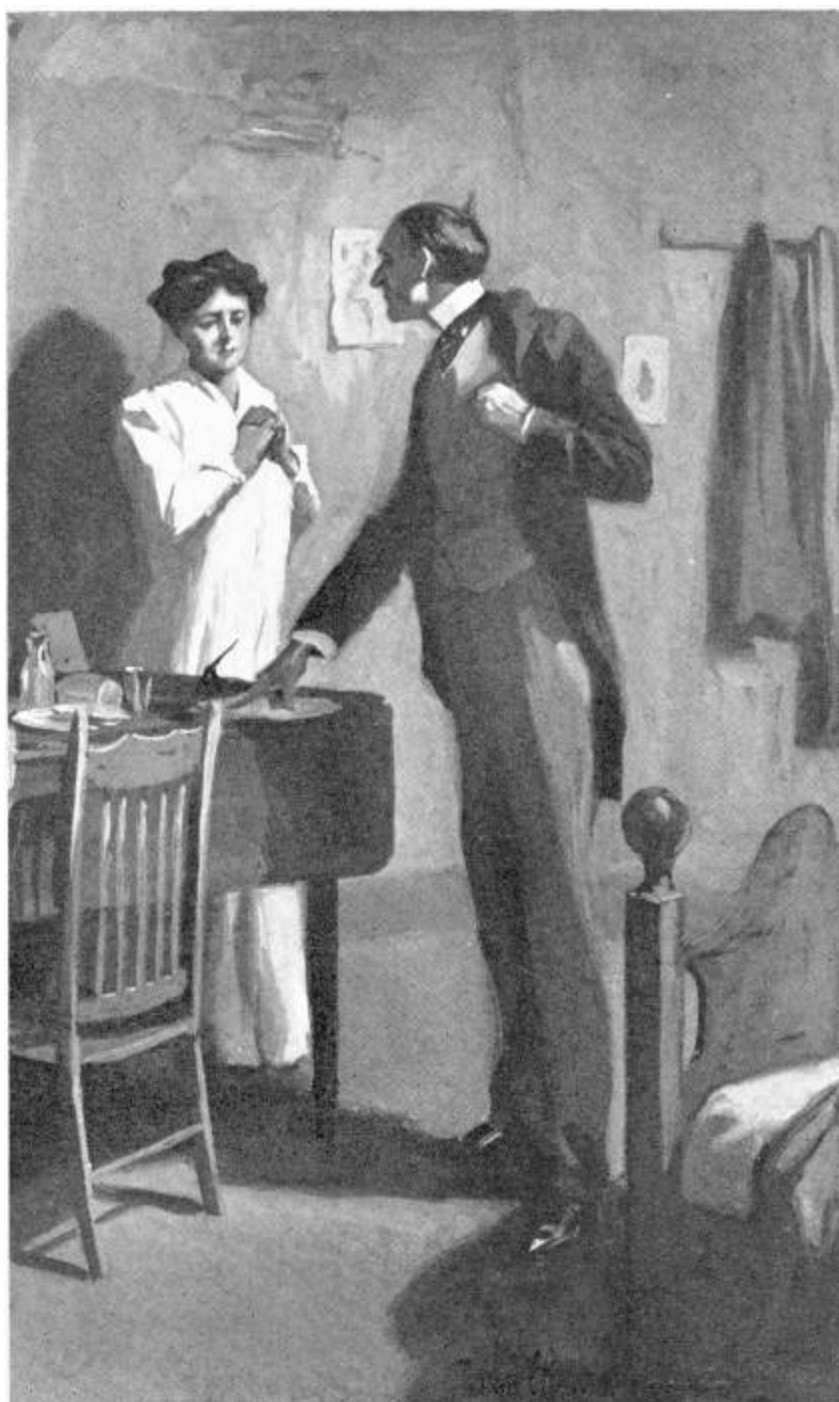
"I shan't give you time to repent," he said, pursuing his advantage. "If you refuse, I take a cab from here to Max Fargus. I don't propose that you shall see him first. It's hard luck, of course it is, that you can't get it all, but luck has given me a chance to divide the pie—and what are you going to do about it? Come, come," he said, again advancing the contract to the yielding woman. "Sign and get through with this wretchedness. What holds you? Do you love squalor? Do you prefer this to luxury and riding in your own carriage—for play your cards well and that's what you can get. There, sign this and learn what it is to live."

The devil could not have persuaded her more eloquently. She allowed him to slip the paper under her unresisting fingers.

"Sign, my dear," he repeated softly, moderating his impatience. "There now, we are sensible. Don't try to disguise your handwriting. I have your signature, you know."

She dropped the paper and pen with a cry of fear and recoiling exclaimed:

"No, no, I won't sign. I am afraid of you—afraid of what you may make me do. You would stop at nothing!"



"NO, NO, I WON'T SIGN!"

"Yes, Sheila," he said, trying to give to his words an air of conviction, for he realized that he had been too clever. "I stop at a good many things and always on the windy side of the law. I am not a fool. As for the rest, I am not close. Play square and you will find me a good fellow."

From his pocketbook he added two bills of fifty dollars to the first, and with a smile offered them to her.

"In return for your signature, of course."

He again placed the document before her, laid the three bills at its side and, giving her a little tap on the shoulder, said:

"Come, Sheila, this place gives me the horrors. Let's get through and out of here."

She gazed at the three bills, then took the pen, looking moodily up into his face. There, despite the smile with which he sought to reassure her, she saw such avidity in his eye that suddenly there rose to her mind the scene where Faust sells his immortal soul to the devil, and, turning from Bofinger to the covenant, she shuddered. Then half averting her face she pressed the pen to the paper and signed.

He pounced upon it, without concealing his joy, compared the signatures and thrust both papers into his pocket. She had the three bank notes twisting in her fingers.

"Pack up, pay up, and be ready in an hour," he said, no longer delaying for fair speeches. "I'll have the marriage witnessed to-night. In an hour, Sheila."

"Yes."

She opened the door, followed him to the stairs, and leaned over the banister to watch his descent. Below, a faint blurred light marked the drop of the stairs. His steps were hushed on the carpeted flight, only the white of his hand, slipping down the railing, showed the winding retreat. All at once she was shaken with a loathing and a dread of this unseen man, and leaning over, she whispered,

"Stop. Come back!"

On the banisters the white spot paused, then slid rapidly down, and a shadow, like the passage of a bat, obscured the glow in the hall. The door shivered noisily.

She waited and then went slowly to her room. The three bank-notes were on the table, waiting. At the foot, the pen had rolled on the floor.

She flung down into a chair and snatched up the bills as though to tear them into shreds. A moment later they slipped from her fingers into her lap.

"No, I won't do it!" she said aloud, staring with horror at the green notes, stained and bruised by the clutch of battling hands.

But though she had renounced them, she could not withdraw her eyes. When the hour was three quarters gone, with a cry she jumped up, crumpled the bills into her breast, and began feverishly to make ready.

CHAPTER VIII

THE DISCOVERER OF THE OYSTER

Max Fargus, on leaving Sheila to be shadowed by the lawyer, departed in such a fever of amorous suspense that it became absolutely essential to his intense nature to inflict some cruelty on his fellow beings. The nearer he approached to the realization of his infatuation the more imperative became these sudden revulsions to savagery. With this temperamental debauch in mind, he hastened to Broadway, purposing to surprise his principal establishment and find food for his spleen.

By a back entrance he glided into the kitchens, where he passed like a storm among the scullions, who feared him like the Evil One. But this time, to pour out the floods of his wrath on oyster openers and dish washers no longer satisfied him. The crisis in his affections was too vital for him to find relief in petty browbeating. Realizing that only a master stroke could satisfy him to-day, he climbed the stairs and passed moodily through the restaurant, where the waiters watched him from the corners of their eyes. Then passing into his office he shut himself up and waited angrily for an inspiration.

All at once he struck the bell and shouted joyfully:

"Send Bastien here!"

At the end of a brief moment a portly, florid Frenchman slipped through the door and glided to attention, waiting blandly the moment it pleased his employer to speak. Fargus, enjoying the surprise his announcement would bring, feasted his eyes interminably on the victim a flash of genius had suggested to him. The head waiter, who by a miracle had for three years avoided the suspicions of his master, without troubling himself at this savage inspection, shifted his balance, coughed faintly, and fell to studying the clouded tops of his employer's shoes.

"Bastien," Fargus began softly, "do you know why I want you?"

"No, sir, I don't, sir."

"Can't guess?"

"Why, no, sir," Bastien said, beginning to show some perplexity.

"I sent for you," Fargus said, hanging on each word, "to tell you, Bastien, that I don't need your services any more."

"Me?" exclaimed the head waiter, who could not have been more astonished had a bomb exploded under his legs.

"You, Bastien."

"Beg pardon, sir, you said—"

"Discharged!"

"Me—me?"

"You, Bastien."

"What for, sir?" he cried all in a gulp. "Haven't I served you three years without your finding a word of fault?"

"Exactly!" said Fargus, whose black eyes under the frowning eyebrows, like threatening muzzles, had been holding in their pent-up rage. "Exactly. For all that time I have never found fault—found—Bastien. There's the trouble. There's where you started my suspicions. You're clever, my man, but there you overreached yourself."

Before the impossibility of such a charge, Bastien for the first time in his life lost his self-possession and remained, desperately fastening his hope on the chances of a joke. Fargus, shaking with malicious, dumb laughter ran on:

"Too sharp, my man, too clever: You forget I know the business from A to Z. If you'd stolen a little I should have said nothing. Don't tell me you don't steal. You steal—all steal—and if I haven't caught you it's because you stole too well, or, OR," he cried, raising his finger theatrically, to confound him with the shrewdness of his guess, "OR, because you thought you'd wait until you were put where you could touch the keys of the safe! Aha, have I hit it—you scoundrel!"

"Before God, Mr. Fargus—" the frightened waiter started to protest, but Fargus, with a contemptuous laugh, waved him off, crying:

"Discharged, discharged!"

"What, you turn me out," Bastien said sullenly, "because you haven't found fault with me?"

"Yes! It is impossible, I say, to be so virtuous without some evil purpose."

"But not for good, sir—I can come back?"

"No!" Fargus shouted with a crash of his fist. "No you don't! You gave yourself away that time! If you were innocent you wouldn't take it so meekly. I only suspected before, now I KNOW!"

Bastien, helpless before such madness, remained a moment staring stupidly at him. Then suddenly, convinced of the hopelessness of appeasing such an obsession, he forgot the waiter, and as a man, outraged and indignant, raised his fists and cursed him. At the uproar the clerks and the waiters ran in, while Fargus, rubbing his hands with delight, shouted above the din of oaths:

"So, at last you rage! Now you show your true character! And for three years you have tried to put me to sleep with your meek face! You villain, I'll tell you what I'll do—I'll have your accounts investigated, before you get a cent!"

Bastien, purple in the face, screamed that he would have a lawyer.

"You will, will you!" Fargus cried, bounding up. "And I'll have a judge on you! Oscar, Peter, put him out! Throw him out! Joseph, call a policeman!"

The waiters, who had suffered the usual indignities from the fallen chief, without waiting a second urging seized the struggling Bastien and propelled him from the office.

Fargus, with lips still trembling from his excitement, listened with clenched fists to the dwindling tumult that announced the progress of the eviction. Then gradually his breathing grew quieter, the anger passed from his eyes, he reseated himself, held his head a moment in his hands, then, stretching

back, threw out his arms and smiled a smile of vast contentment. Peace had returned to his soul.

His history, from the age of nineteen, had been the record of a ledger, of the hour of rising, eating, working, and returning to sleep. He spent not one cent more one day than another. He woke invariably at half past four he was in bed by one o'clock. He spent five cents on carfare each morning, and saved five by walking home each night. He lunched and dined at his restaurants. His one extravagance was to breakfast at a coffee stall, kept by a woman who thirty years before had jilted him for a longshoreman, where for six cents he might remind her each day of the fortune she had flung aside.

So much for the history of the man. Before nineteen his youth had been one of storm. Three great disillusionments had marked the period, the greatest which can befall a man, in the loyalty of a friend, in the virtue of his mother, and in the love of a woman. The friend was a newsboy, the mother a pedler, and the woman a waitress in a restaurant on the wharves. Society, which regards honor, virtue, and faith, and the capability of sorrow, peculiar to itself, can see nothing but the ridiculous in such tragedies. To the frail boy, however, with his misanthropic bent, these three trials changed the complexion of the sky and brought a rage against humanity, and with it an abiding, vindictive purpose to treat it always as an enemy.

His worldly progress had been the journey of the mole. Burrowing through his youth, obscure and undivined, he had broken ground one day and emerged, to the surprise of his associates, rich and successful. Starting as a chore boy, rising to a waiter in a small oyster house near the docks, he had progressed to the proprietorship of one lunch counter, to the ownership of a restaurant, of an oyster house, of three; until the city knew him at last as the owner of half a dozen resorts, Fargus's West Side Oyster Rooms, Fargus's Bowery Oyster Parlors, Fargus's Broadway Oyster & Chop House, etc. He had but one vanity, a weakness pardonable in self-made men, he had come to regard himself as the discoverer of the oyster.

On the night of the interview with Bofinger, to the upsetting of all routine he left his office an hour earlier. The hat boy, hastily summoned, arrived

trembling, but to the amazement of every one Fargus departed without a word of reproof.

The violence which had eased his craving for cruelty had departed and left him timid and infatuated, with the elusive figure of Sheila running before him and mocking his desires. Instead of following his invariable course down Broadway, he turned into the quieter side streets seeking an opportunity for reflection.

He did not walk like the generality of men, who propel themselves from the back foot, but like the animals who draw themselves forward by their claws. This peculiarity, which was not so noticeable when he was in a hurry, sprang into notice the moment his gait relaxed, when he appeared, as to-night, to be prowling over the ground, alert as a panther to bound forward a dozen feet.

So immersed was he in the perplexities of his passion that he failed to notice the sudden swooping down of three soldiers of the night, until a hand fell on his shoulder and an angry voice commanded:

"Stop short, damn ye!"

Fargus, thus threatened, answered without disconcertion:

"Well, my friend, what can I do for you?"

At this moment, the third of the party, coming up, broke in with a shout:

"Bill—you fool, what'cher stopping him for? It's the old screw!"

"It is, eh?" the other cried with an oath. "And what if it is?"

"Go through him, then, if you're so green!" continued the first, "and if you pull more than a nickel I'll double what you get."

"Quite right," Fargus said cheerfully. "I've been here forty-nine years and no one's ever found any more on me than the next day's car fare." He drew from his pocket five pennies which he displayed for confirmation. "And what's more, you can't find another cent in my room!"

"Ah, come on. Don't waste time over that guy," said the third. "We've turned him inside out a dozen times."

"The hell you have!" the other cried in disgust, and struck up his hand, causing the pennies to scatter into the street.

The three footpads lurched into the darkness. Fargus, fondling his chin, stood a moment chuckling at their discomfiture before striking a match and betaking himself to the task of recovering his pennies. The fifth having been secured on his hands and knees he started rapidly home, penetrated a squalid, heated street, filled with children slumbering on the steps, and halting at a flight of tenements stumbled up a dark stairway and found his door.

Lighting the butt of a candle, which he had drawn from his pocket, he entered a room with one window, murky and pinched, which he called his home, and whose horror can only be appreciated when it is realized that three families had shared the room before him.

In the further corner stood a cot, without covering, and a pine washstand. By the window was a small leather trunk. In the whole room there was not another object. Placing the flickering stump on the washstand, Fargus secured the door. Then going to the trunk he unlocked it, drew out the bedding and made the bed. Once undressed he went in his nightgown to the window and, resting his chin in his palm, gazed up a moment at the black rim of the opposite tenement.

Forty-nine years before, in the little room under the heated roof opposite, he had opened his eyes to the struggle of life. From there, as a child, he had a thousand times gazed down on the room he now occupied as a region of unattainable felicity. To possess such a paradise, all to himself, seemed then the zenith of earthly ambition. It was his earliest conception of the possibilities of wealth, it had never changed. He had remained in his present home twenty-one years, without a larger desire.

To-night he stayed but a short time at the window, the contemplation of his progress did not bring him its accustomed satisfaction. He was conscious of a great unrest, of having suddenly laid his way along unfamiliar and perilous paths, where everything was problematical and uncertain.

"If the lawyer finds everything all right," he said to himself, turning away, "I'll marry her. But if he don't—"

He blew out the candle with the breath of his irritation and flung down on the bed, saying to himself querulously:

"Am I going to sleep to-night, I wonder? Well, supposing he don't—what then?"

CHAPTER IX

THE MISANTHROPE IN LOVE

It was now a little over four months since Sheila Vaughn had intruded upon the well-ordered and sufficient existence of the misanthrope. On that memorable day in June Fargus, for the first time, had broken his prison-like routine and taken in the middle of the afternoon an hour's relaxation. Three bits of good fortune, arriving together, had inclined him to such an unusual vacation: the monthly contract for clams, thanks to his shrewdness was ten per cent below the market; second, he had concluded a deal by which he took over the establishment of his chief competitor for the theater trade, at terms offered only by a bankrupt; third, he had discovered that his monthly personal expenses had fallen thirty-five cents below the average.

For the first time in his life, then, he felt the imperative need of drawing breath for a moment's gratified contemplation. He sauntered over to Washington Square where, yielding to the pleasure of the spring and his own good humor, he installed himself on a shady bench, buying a newspaper in an automatic seeking for some reason to be idling there. The foliage was complete, yet with the zest of its youth still on it. The fountain in the center flung its spray against the rich green background. Gardeners were setting out the flower beds. The chirp of sparrows and the glee of children blended together in the stirring of the leaves. The air was fragrant and gentle, good to breathe. Fargus, contemplating the scene, forgot his paper, and remained contented and idle, with something that approached a smile.

By one of the thousand and one chances which determine our mortal journey, call it fate or call it coincidence, it presently happened that his eye was arrested by the figure of a woman, advancing towards him. The green silk dress she wore, as though alive to the breeze, was in a continual flutter, the edges billowing as though served by the playful hand of cherubs. In the poise of her figure there was a slight, pleasant consciousness, but the face was given to abstraction and a dreamy, wistful contemplation of the park. A

parasol swung languidly from her wrist, occasionally resting lightly on the ground.

She seemed so a part of the gentle prospect that Fergus nodded approvingly, without realizing that it was not nature, but a woman, who had thus drawn his admiring glance.

Arrived near him, she cast about for a vacant seat, and presently, with a glance, came and sat beside him.

His first impulse was to recoil, all a-bristle and scowling, but as his companion continued oblivious to his displeasure he relaxed and from the tail of his eye stole a glance at the slender hands crossed on the top of her parasol. Suddenly he heard a soft voice say:

"I beg your pardon, could you give me the time?"

He withdrew gruffly, glaring at the woman, on whose face appeared first surprise and then a restrained amusement.

"I beg your pardon, have you the time?"

At this gentle reminder he became confused and, fumbling for his watch, with a jerk extended it to her on his palm, without vouchsafing a word.

"Thank you," she said, nodding. "You don't speak English?"

"What do you mean?" he said, startled into speech.

"Oh, I see," she said with a malicious smile. "I was wrong. You do look foreign, though. It's pleasant here, isn't it?"

Insensibly, resenting the ingenuity that drew him on, he was led into conversation and then all too soon abandoned by her rising and departing with an inclination of her head, sent to him over her shoulder as she swept up the shimmering green dress. Fergus jumped up and glanced guiltily at his watch. Then, with a scowl, brushing aside a bevy of children, he rushed back to his office.

The following day, at the same hour, before he had quite understood what had guided his steps, he found himself straying again into the Square. She

was already there, in the same green dress, on the bench where they had sat, her arms resting languidly, her head a little back, yielding to the charm of the sky. He faltered as he approached, went on, and then making a sudden turn came and sat beside her.

Two months passed, and in the soul of the misanthrope an infatuation took root and grew, tumultuous and struggling with the stubborn forces of his hatred, without his being able, from word or look, to determine that the woman was leading him on. His first advances, awkward and innocent, to his surprise were abruptly rejected, nor was he able once to transgress the strict limits of acquaintanceship.

Despite such austerity, he would not have been Fergus had he been without suspicions. He apprehended a deep purpose and set himself to preparing his retreat in the belief that some day she would attempt to discover his identity. The precaution was unproductive and, without his suspecting it, arrived too late. When in turn he sought to follow her he was surprised by the same ambush which had nearly entrapped Bofinger, and obtained his pardon only by a solemn promise to refrain from further attempts.

The repulse and her steady indifference heaped fuel on the rising flame of his infatuation. He arrived at the stage where he no longer could see the ridicule of his own actions. He asked her to the theater, with the palpitations of a schoolboy blundering through his first escapade, and her constant refusals left him helpless and miserable.

Finally, he sought by discreet questions to discover her existence.

"Why do you always wear the same dress?" he began abruptly.

"I am poor," she answered so naturally that Fergus was left abashed.

"You work for a living then?" he persisted.

"I do embroidery and fancy sewing."

"You are alone?"

"I live with my aunt."

"You support her, I suppose?" he said with almost a sneer.

"I help."

He left her brusquely, enraged at her story, convinced of its insincerity. What infuriated him was that all he had to do was not to return. But that was an experiment he had no desire to try.

Finally he obtained from her a promise to spend a Sunday afternoon with him in Central Park. The concession once laboriously won, he feigned to see the second stage of her campaign. He ran precipitately, full of joyous madness, to a jeweler's, whence, for the enormous price of ten dollars and a half he bore away a horseshoe of pearls, after lingering romantically over a lover's heart to offer her which he finally lacked the daring.

The next afternoon the mischievous package in his vest pocket left him no peace. He blew hot and he blew cold. He said to himself that he would never have the audacity to offer it, and the next moment imagined impassioned speeches which never reached the tip of his tongue.

Finally, when they had paused to rest, in one of the unfrequented bypaths which wind about the lakes, he plunged his hand into his pocket, and bringing forth the box said in a fit of desperation:

"For you. For luck."

He did not dare to look at her. He had a sinking feeling of having thrown away all by his folly—and he did not know that he was in love.

Sheila turned, saw him trembling like a frightened bird under the hand, took the box and held up the pin. Fergus, scarce believing his fortune, dared to steal a look. She counterfeited admirably a flush of pleasure and regret.

"Oh, how wonderful!" she exclaimed, holding it at arm's length and allowing her eyes to show the longing for its possession. "But it is too valuable, I could not take it—no." She looked at it again regretfully, then turning to him added: "You are very kind—but I mustn't, I can't take that!"

Then, by quick movement, she averted her head, as though she wished to conceal from him her tears.

The fire mounted into his temples. He caught her hand, drawing her to him and crying:

"Sheila, Sheila, my darling!"

"Oh! OH!"

She sprang up, wrenching free her hand. Fergus, swept away by his infatuation, followed her, seizing her by her arm. With a rapid movement of anger she threw him off and, dashing a stinging hand across his face, cried:

"All or nothing!"

Then flinging the pin into the dust she stamped on it, covered her face with her hands and, bursting into sobs, ran away; leaving Fergus so thoroughly undone that he could neither speak or move.

"Ah, she wants to marry me, does she?" he cried with a clap of rage, when he had recovered a little from his amazement. He picked up the twisted brooch, dusted it off and cried again, overcome by the enormity of her crime: "She wants to marry me! That's her game, then! Marry me! Huh!"

With a roar he made off, swaying between incredulity and rage, contempt vying with derisive laughter. Full of fury and tempest he passed the night, eating out the slow hours until the next afternoon when he descended like a lion upon the Square, to force an understanding. She was not there.

"What, she won't come!" he cried, thunderstruck at such a solution. He sunk on the bench, waiting desperately for some glimpse of the woman. His rage departed like a puff of wind, leaving him beaten, lonely, and blank.

"She will come to-morrow," he said, as he trudged wearily home.

She came neither that day nor the succeeding days. Then in Fergus the last seeds of resistance died and left nothing but a barren, disheartened surrender. He had no longer any doubts as to his true state, her absence taught him what he could suffer.

A week passed before a chance meeting on the street brought them together again. He sought her forgiveness abjectly and without shame. For a while she refused to give ear to his protestations, his explanations and his promises. At last she inclined her head and replied seriously:

"Very well. But I shall reserve my opinion, for the future."

With this resumption of their daily meetings, his suspicion started up anew, without his still being able to find a hook whereon to hang them. She remained cold and uninterested, refusing always to believe in his vows of affection. It is true, he had not spoken of marriage.

"Sheila, you don't care for me," he said once to her in unreasoning anger.

"I don't," she said with a nod.

"And it won't make any difference to you if you never see me again."

"Yes, it would. You have been kind, and my life is lonely," she said reflectively. "I will miss you."

"You say that as if you were going away," he said irritably.

"True. I haven't told you. We go next week to Chicago."

"And why should you go to Chicago?" he cried furiously.

"My aunt must go—she's had a legacy left her, a small one but it'll mean a good deal. Of course, I have to go with her," she added, a little regretfully.

The next morning, in a panic, Fergus had sought out Bofinger.

CHAPTER X

BOFINGER REPORTS

Fargus, who slept as badly as a bridegroom on the wedding eve, was up before five o'clock. After replacing the bedding in the trunk he departed for his morning's breakfast. Three blocks to the west near the river front, in a frame building which occupied a corner, a flaring yellow sign, over a sunken basement, announced,

NELLIE THE COFFEE-WOMAN

Ladies & Gents Parlors.

Three wooden steps, rotted by the weather, descended past the food bulletins into a sanded room. It was in this underground resort, with its rough clients, that Fargus had served his apprenticeship, faithfully his master and his master's daughter, pretty Nell O'Hara, who had jilted him for the privilege of maintaining the present Mr. Biggs in idleness among his bottles. Fargus descended the familiar steps and entered. Never once did he return to the presence of his first love without a pang of mortification that all the triumphs of his changed fortune could not obliterate.

A ponderous woman on whose expanding trunk time had recorded each successive year was behind the counter. Of the charm that once was Nell's nothing remained but a certain reminiscent prettiness of the face.

Fargus, who entered as a conqueror, took his seat at the counter, asking maliciously, as he never failed to do:

"And how's your man, Nell?"



"AND HOW'S YOUR MAN, NELL?"

"The same," she answered, as though the simple statement required no explanation. "And are you doin' well, Mr. Fergus?"

"I bought another restaurant, Nell," he said. "Yes, I'm doin' well. It's a little larger than the old place."

He saw she understood the malice of his last remark and enjoyed the new opening of the old wound. To-day his vindictiveness was tempered by a feeling of wonder. With Sheila in mind he looked at this woman, mottled and worn with toil, and asked himself how it was possible that she could still have the power to make him suffer. The thought recalled Sheila and abruptly he arose and departed. But, not wishing to lose an opportunity for vengeance, he returned and said wisely:

"Nell, perhaps I'll have something to tell you before long, a bit of news that may interest you. My love to your man."

He departed for the oyster markets for his purchases, but without the zest that gave to these excursions the exhilaration of the battle-field.

"I'm a fool," he said to himself angrily, "to let a woman upset me so. How the devil, though, am I going to wait two days more to hear from that lawyer!"

Bofinger had resolved to conceal his relations with Fargus from Groll, taking the risk of an inopportune visit of his client. He knew well the consequences of such treachery once discovered, but the avidity of great stakes gave him the daring to play with fire. He was in the office, chatting with Groll and LeBeau, when towards one o'clock he perceived from his sentry by the window the incongruous figure of Fargus, advancing from the direction of Sixth Avenue. He yielded to a moment's panic, then rapidly, with a hasty excuse, stepped out of the door and departed, not too quickly, towards the west.

"They may notice him again," he thought, "but it's not so risky as going to meet him."

He slackened his gait at the corner, bought a newspaper and, perusing it, went slowly northward. A moment later Fargus shuffled up, all out of breath.

"Oh, it's you," Bofinger exclaimed in surprise. "That's lucky; you want to see me? Shall we go back to the office?"

"There's some one there," Fargus said nervously.

"Yes, there's my partner and a reporter," Bofinger replied with an air of reflection. "Perhaps you'd rather—"

"Let's walk on," Fargus interrupted. Then, no longer holding back his anxiety, he blurted out, "Well, what? Have you found out anything?"

"I think I've made a good beginning," the lawyer said in his professional manner. "Of course in one day—"

"I was passing," Fargus said, avoiding his eye, "I thought—"

"Well, sir," Bofinger broke in tactfully, "I have investigated enough, I guess, to satisfy you. To begin, Miss Sheila Vaughn is an orphan living with an aunt whom she supports by her needlework."

At this confirmation of Sheila's story the misanthrope gave a sigh of relief, which showed the lawyer what pangs a contrary answer would have cost him. Immediately, seizing the arm of the lawyer, he stammered:

"Are you sure? Can you be sure? How are you sure?"

"My dear sir," Bofinger objected, "I ain't goin' to make a statement on insufficient evidence. I followed Miss Vaughn without any difficulty. She lives in a respectable boarding-house on the West side. Here is the address, for your information," he added, passing him a slip. "I marked the house and went back pretending to seek a room. Two circumstances, fortunately, helped me to gather a great deal of information. In the first place, the servant who showed me around asked nothing better than to talk."

"Well, well?" Fargus broke in irritably.

"A little patience," Bofinger said with a smile. "Things have got to be told in their order. I learned from the servant that Miss Vaughn and her aunt Miss Morrissey have lived in the same rooms for over six years. The aunt is a retired school-teacher, having perhaps a very small income. Miss Vaughn, evidently, is the mainstay, doing fancy embroidery and needlework. The

servant told me that she was very devout. Now for the second circumstance, but this won't be to your liking."

"What do you mean?" Fargus demanded, instantly alarmed.

"I learned that Miss Vaughn and her aunt are going to leave."

"You are sure?" Fargus cried in despair. He had only half believed the announcement from the lips of the woman.

"I am. With an inspiration, I instantly asked to see their room. What do you think of that? On this pretext I saw not only the room but Miss Vaughn and her aunt. Well, they impressed me very favorably, quiet and devoted—"

"But when is she going, and where?" Fargus broke in impatiently.

"They go to Chicago in a few days—a very few."

"And did you find out why?"

"I did," Bofinger said with a nod, and began again. "Of course I did not try to pump them, but when I left I said to the maid—"

"Never mind that, tell me now why they are going."

"Miss Morissey, the aunt," Bofinger said, stopping short, "has had a small legacy left her and is going to settle her affairs."

"Then what she told me was true after all!" Fargus exclaimed, without perceiving how clearly he portrayed his real sentiments.

"Now, of course," Bofinger said glibly, stealing a glance at his dejected client. "I shall at once take up the threads and push my investigation rapidly."

"Mr. Bofinger," Fargus said, coming out of his abstraction, "that's enough. Don't do anything more. I've got now all I wanted to know."

"Then you are satisfied?" Bofinger replied in feigned astonishment.

"Yes." He walked a while, studying the sidewalk, and then asked slowly: "Mr. Bofinger, you see all kinds of people—you ought to be a judge. I'm

going to put a question to you. Would you, if you were me, in my position, adopt Miss Vaughn?"

"Really, my dear sir," Bofinger said carefully. "I can't take the responsibility of answering that."

"Is she the right sort—steady and dependable?"

"Oh, if you mean is she worthy of being adopted—certainly yes! But," he added with a show of frankness, "if you do want my opinion, I think the young lady is too independent a character to permit it."

Fargus hesitated a moment, with an impulse to confidences, then, retreating awkwardly, he began to draw out his pocketbook, saying:

"Thanks, you've done well."

"Then you want nothing further?" Bofinger said, smiling at the way his hand fumbled in his coat.

"No, no," Fargus said hastily. "You've done enough. That's what I wanted. You've done fine."

He turned his back on the lawyer and examined the pocketbook, close to his nose, for he was short-sighted. After long weighing of reasons, he plucked forth two bills as one might draw out a thorn, and spinning about hastily he thrust them into the lawyer's hand, as though mistrusting his second thoughts. Bofinger saw that each was for twenty dollars. With a flash, he stiffened and said sternly:

"My dear sir, I would like you to know that, in my profession, we fix the remuneration."

Fargus, believing himself entrapped, looked with repressed rage at the money he had surrendered. Bofinger allowed him this moment of torture, before continuing on the same key:

"My fee, sir, for these services is twenty dollars."

And with a gesture that was sultanesque he returned the other bank-note.

Fargus received one of the shocks of his life. The idea that any one could refuse money so confounded him that he did not have wit enough to extend his hand. But only for a moment; then, with a grunt of joy, he snatched up the bill, crying with genuine feeling:

"Mr. Bofinger, you'll not regret this!"

"Thank you, that is my invariable fee—good day," the lawyer said, holding his hat like a statue. Then, snapping back to life again, he returned exultantly to the office. In the short interview he had grown immeasurably in his own eyes. But one thing distressed him, the thought that so much talent must be locked in his own bosom. He drew a long breath and, walking on his toes, said with conviction:

"Ah, Bofinger, you were made for bigger things!"

CHAPTER XI

MARRIAGE AS A BATTLEFIELD

Two weeks later Sheila and Max Fargus left church as man and wife and, entering a cab, set out for their new home near Stuyvesant Square. The comedy which Bofinger had devised had thus come to a successful end. The lawyer was not mistaken. Fargus, in despair at the thought of Sheila's leaving, had offered himself that afternoon. She did not accept at once, she asked time for reflection; but promised, in response to his frantic appeals, to remain in New York. Miss Morissey, her aunt, departed for Chicago on the next afternoon. Fargus did not see her.

Sheila, after several days, allowed herself to be persuaded. But in consenting to be his wife she promised nothing more. She frankly avowed herself happy to have the opportunity of a home, admitted a certain friendly esteem, which she did not pretend was irrevocable, but made him understand that to win her love lay in his hands alone. On these terms she asked him, with many misgivings, if it was right for a woman to marry.

Fargus argued the question furiously and without rest, and succeeded, to his delight, in disposing of one objection after the other, without for a moment suspecting that it was he and not Sheila the arguments were designed to convince.

The arrival of the wedding was to him a day of bewildering and complex emotions. So well did the woman keep him in suspense of her final acceptance, that it was only on the morning of the wedding-day itself that he awoke to the fact that the day would dispose of his own existence.

His first act was characteristic. He rushed in a tempest to the coffee stall, where he announced his departure and his marriage to Nell, to whom for the final time he brought the agony of a destiny despised. Refreshed by this *coup de grace* on the woman he had never forgiven, he hurried chastened and cheerful to Sheila.

At first he had opposed a religious ceremony. He professed himself an atheist. When one ceases to believe in man, one does not believe in God. Sheila, who was really devout, would hear of nothing else. Fargus ceded, but his appearance in church had put him into a frightful humor.

Now in the cab, alone at last with the woman he had so long desired, he discovered all at once that the law, which gave him everything, gave him nothing at all. In his squat hand were the four fingers which she had ceded to him, without resistance and without feeling. He clung to them awkwardly, gingerly, knowing not what to do.

Sheila did not even feel his presence. Withdrawn as far as possible, without appearing to shun him, she nerved herself for the battle which, with sure instinct, she felt approaching. Of the two, she had all the self-possession, plus an excited mentality which stimulated all her forces at the approach of the crisis.

She was in this mood when the cab stopped at the flight of red brick dwellings, before the stoop above which the tin sailor was whirling his paddles. She had a slight surprise. It was not elegance; but she had dreaded worse.

"It's not so discouraging," she thought, as she jumped out full of anticipation. "It is not bad—to begin with."

Astonished to find the shades down, she rang impatiently, then turning to Fargus, who was disputing furiously with the driver, she cried:

"Is this right? Have I made a mistake?"

"In a moment, I have the key," he cried, dismissing the driver and hurrying up.

"Ah!" she thought, drawing breath like a gladiator entering the arena. "I'm to have no servant, then!"

"There, my dear," cried the voice of her husband, proudly, "there you are!"

Forgetting twenty pretty speeches, he threw open the door and stood aside with bashful pride to let her pass.

The beam of light entered the vacant dusk like an intruder. Sheila seized all in one swift glance and her lips set dangerously. She remained without motion, while Fergus, mumbling nervously, stole to the parlor window and flung open the shutters. The hall was bare, the parlor had but a table and a cheap lamp in its emptiness. The walls were destitute of ornament, clothed with an invariable dust-green paper.

She went quickly to the dining-room. The furniture was of the scantiest. She counted the chairs, there were just two. The sideboard and the table were of oak, thinly veneered and not fresh. The two gazed silently, Sheila with swelling throat and clouded eyes, Fergus, to whom each purchase had been a plunge into the abyss of ruin, trembling again with the memory of the pangs each had cost him.

"Well," he asked at last, "it's pretty, don't you think?"

"Oh, the house can be made very pretty," she said pensively and, turning to him with a smile, she added gratefully, "and you were real nice to leave me the furnishing of it."

"The—the furnishing!" he stammered, opening his eyes.

"Wait and see what I can do," she cried with a laugh. "Now I'm going up to see the rest."

She left him stupefied and tripped up the stairs. In their bedroom, which alone was furnished, there was nothing but a bed, a chest of drawers, and two chairs. She felt a profound discouragement, a sudden desire to weep, but it was only the weakness that precedes great victories.

"Now or never!" she thought, as she heard the soft step of her husband on the stairs. She threw herself into an attitude of inspection, gathering her skirts from the dusty floor, set her head critically on one side, and extended her hand as though to calculate the height of the walls.

"What are you doing?" Fergus said, stopping short.

"I was trying to decide," she answered meditatively, "whether to paper all the room in rose or to use a border."

Fargus leaned against the door for support. Then forcing a horrible laugh, he cried with desperate good humor:

"Say, now, you're a good one, and that's a good joke!"

"As for the guest room—green and white," she continued, passing to the back; "green and white is fresh and clean."

The absurdity of a guest room convinced Fargus. He laughed with a light heart and entered the spirit of the jest.

"Green and white is good," he assented, wagging his head.

"The question is whether to have a double bed or two single ones," she persisted.

"Oh, two!" he said gravely, sticking his tongue in his cheek.

"A double bed is cheaper," she said reflectively.

"Bah!"

"I know just the furniture," she said, embracing the room with a sweep of her hand. "Such a bargain! We ought to pick it up at once,—seven pieces, bird's-eye maple too, just the elegant thing."

"Let's go now," he said with exaggerated levity.

"Shall we—O Max!" she answered, clapping her hands. Then nodding seriously, she said in approbation: "You have begun well. You don't know what it means to a woman to have the making of her home. Just think what fun it'll be, picking out carpets and rugs and pictures. But we must decide on the papering right off—because I don't intend to be out of my home any longer than I can help it!"

He eyed her suspiciously. There was that in her enthusiasm which made him doubt her levity. Nevertheless he could not yet bring himself to comprehend such a monstrosity. He answered facetiously:

"How about the stable and horses, my dear?"

Seeing that she must bring matters to an issue she returned to their room, nodded and said pensively:

"This we ought to decide more carefully. I'm for ebony, though. It's nobby. Now," she added, wheeling about, "let's go to the hotel."

"What hotel?" he said dumfounded.

"Why, the hotel we're going to stay at, until the house is ready," she said impatiently.

Then all at once he comprehended that he was caught. He felt for a chair and stumbled into it.

"Then what you said about furnishing was true?" he said in a dying voice. "You meant it!"

"Why, what is the matter with you?" she asked, stopping and looking at him in pretended amazement.

Suddenly he bounded up and said brutally, pointing to the room:

"This is where we stay!"

"Here?" she cried scornfully. "This isn't fit for a servant!"

She had dreamed of luxury so long that the manner came to her naturally. For a moment Fergus was overawed by her sudden stature, then the thought came to him that after all she belonged to him and that he had a right to do as he wished with her.

"Well, that's where you stay!" he cried with that rage which is as closely allied to love as madness to genius. She saw him advance upon her to crush her in his arms. Without giving an inch, she put her hands behind her and looked him frigidly in the eyes. His hands touched her before they fell. She was at once anger and ice; to have continued would have been to embrace a monument. So overcome was he that he remained awkwardly before her, not knowing how to extricate himself.

"Go and sit down," she said coldly, "and let's have an understanding at once!"

He hesitated, with his eyes on the floor, brooding whether to carry it through by violence. She saw and was frightened.

"And let me say at once, Mr. Fargus," she continued hurriedly. "Never attempt again what you tried then! For if you do—I shall know how to protect myself."

The mystery of her threat appalled him. The man in love believes all absurdities. He retreated.

"What furnishing does it need?" he asked sullenly.

"Everything, carpets, curtains, linen, furniture," she said aggressively, now that her moment of danger had passed. "Even to the servant's room nothing is done!"

"Servant!" he cried in terror. "Do you want to ruin me!"

"What!" she exclaimed in turn. "Do you mean I'm to have no servant!"

"What for?"

"Then it's true," she cried vehemently. "You were bringing me to this garret to be your servant! This is the kindness you promised me—this is your generosity!"

"Sheila!" he cried in fear, as she gathered her cape about her.

"This, then, is what your love means!" she continued angrily. "So you expect me to come to this, do you? A kennel! A dining-room without a chair for a friend!"

"I have no friends!"

"So you thought, did you," she said scornfully, "that I would cook for you, wash for you, clean for you, make your bed for you? You call that getting a wife! You are wrong, you don't want a wife—you want a slave! Go and get one!"

"Sheila, one moment,—Sheila!" he cried, seeing her about to depart.

She paused, and then, with a toss of her head, returned and sat down. Presently she said sadly, her eyes filling with tears:

"And this is all you care for me. If you were poor and I loved you, I'd share anything with you. But you are rich—you told me so twenty times. So, if you bring me to this, it can only mean, Max, that you despise me."

"No, no!" he cried, won by the sweetness of the look she gave him. He flung himself at her knees, striving to gain her hand, but Sheila, withdrawing it with firmness, said gently:

"What else am I to think? I haven't concealed from you that I don't love you. I liked you for your kindness, I respected you—yes, I trusted you, when you swore you would know how to earn my love. I consented to marry you telling you all this, for I longed for a home. Is this, then," she continued with a catch in her voice, "is this the way you're going to make me love you?"

He had caught her hand, he felt himself going, slipping from the old moorings, and with a last resistance he cried desperately:

"Sheila, what is it you want?"

"To be treated as your wife!" she said quickly, avoiding the pitfall of the specific. "To be treated as though you were proud of me. Either that or"—she paused a moment and ran her fingers through his hair; "or if money means more to you than to love and be loved, poor man, then let us own our mistake and part—now."

"No, Sheila, no! Don't leave me!" he cried, and sinking his head in her lap, vanquished, he caught her knees while the very rout of his soul made her indispensable to his infatuation.

"Then I am—to stay?"

A sob was her answer.

"Poor fellow," she said compassionately. "What do you know of life? I will teach you how to live."

These terrible words, which filled the flesh of the miser with mortification, aroused in the lover the frenzy of the gambler. He felt that he was throwing his all to the winds and the thought intoxicated him.

"Sheila," he cried, lifting his face, "do what you want! I love you—only you!"

She bent her head hurriedly. There were in her eyes two things she did not dare let him see, the pride of her triumph and that bewildered pity which comes only to the utter victors.

CHAPTER XII

BOFINGER IN SHEEP'S CLOTHING

Fargus, as all those who are forced to surrender without conditions, retained a reservation,—he counted on the future. His nature was too simple and intense to fathom the complexities of marriage. He had the fierce, half-savage conception that the woman resigned her ascendancy when she gave herself into his power. He conceived of woman as a tyrant before marriage and a suppliant ever after. For him the physical submission carried all with it. So even in his surrender he believed that time would restore the balance in his favor.

Sheila, on the contrary, had well understood that the first weeks of marriage must be a battle on which would hinge the fortunes of her whole life. She had this advantage, that Fargus was utterly unprepared and ignorant of the thousand agilities of her sex. She had subdued him by taking him by surprise, but she was not the dupe of her victory. She knew where the danger lay, divining the secret thoughts of her husband. The problem with her was to forever cheat his infatuation. She submitted but she did not give herself to him.

The history of these unending skirmishes, open or ambushed, seldom rising to the dignity of a conflict, was an uninterrupted record of successes for the woman. Fargus, who had counted on the future, found himself each day more willingly subjugated. This infatuation that overturned all his ideas of conduct gave to his love the mad aspect of a forbidden passion. Each time that he ceded to Sheila he had a moment of horror, and then that delirious access of folly and passion which comes only to the man who loves and ruins himself.

Sheila, then, had her way, but she did not abuse her power. She even began to practise economies,—she sewed the curtains with her own needle and marked the linen. Fargus avowed himself touched by such acts of moderation. Nevertheless, there were moments in the night when he awoke with a cry, starting in a cold perspiration from a nightmare where he had

seen himself dragged down into bankruptcy by the follies of his pretty wife. He rose and crept over the house, trying the windows and the locks, listening suspiciously at the door of the servant, an innovation to which he could never accustom himself. Then returning softly to his room he regained his bed. But the night was rare when the creak of a plank did not start him again on his uncanny rounds.

He was not happy. He had believed that in marriage all desires were gratified. Instead he found himself, to his mystification, even more miserable than in the days when he returned in despair to his one room in the slums, there to pursue all night, in his dreams, the elusive figure of the radiant woman. He came at length, slowly, to understand what she adroitly and cruelly intended he should, that the possession at last of Sheila, even under the wide domain of marriage, left him still defeated, and that it was her love alone that would satisfy. After that he was ready for all follies.

When Sheila saw that the victory was complete, she had, naturally, a moment of intense virtue, in which she said to herself that she could well be content, with a man whom she so easily bent to her every desire. Besides, the joy of making a home was to her such a natural impulse, that during its ecstasy Fergus represented to her no more than the husband. This joy was so intense that she came near relenting and showing him some kindness,—a slip against which she was forced to be constantly on her guard. For she saw clearly that her domination lay in perpetual vigilance, and that with such a man nothing could be shared—she would have to be either a tyrant or a slave.

There was on her fair horizon but the ugly shadow of the lawyer. She had almost forgotten him, then she almost doubted his existence, so fantastic seemed the idea of their extraordinary contract. Each month, she had agreed to give him an accounting, delivering him her note for the sum due. But to carry out such a program they must see each other, and she asked herself incredulously how the lawyer could manage.

The month passed without a sign of Bofinger, when, one evening as she was in her bedroom, she heard, to her amazement, the familiar shuffle of Fergus on the stoop, accompanied by a thick, resolute fall of feet. The lock clicked and the voice of Bofinger said loudly:

"See here, Mr. Fargus, your lady won't like being taken by surprise."

She understood that he was sending her a warning. She had indeed need of it. A voice from the dead could not have struck more terror than this sudden apparition of the lawyer. She felt her knees wobble and with an effort seized a bottle of smelling salts. Her repulsion for Bofinger, intensified by fear, was suddenly a hundred times magnified by this uncanny introduction into her home, on the very arm of her husband, at the moment when she fatuously had put him out of her mind.

"Ah, I was so happy!" she cried, sinking limply into a chair.

Nevertheless she realized that the moment was fraught with peril and that she must regain her control.

"Sheila, Sheila!" Fargus called from below.

She shut her teeth savagely over her lip and went down to face her husband's glance.

"Sheila," he said, as she halted in simulated surprise, "I brought an old friend with me,—Mr. Bofinger."

She went hurriedly past her husband, murmuring something, and extended her hand to the lawyer, who, bland and smiling, bowed with stiff legs. Seeing his self-possession, she rallied, brought to calm by the quiet command of his eye.

"Take Mr. Bofinger into the parlor, my dear," Fargus said. "Put him into a comfortable chair and make him at home. I'll be down in a minute."

"Really, Mrs. Fargus," Bofinger said, halting on the threshold of the parlor, "I compliment you on your home. I heard my friend had to sail pretty close this winter, but I guess that must have been rumor. Really, this is elegant; say, this is luxury!"

While pronouncing this glibly he managed to lay his fingers over his lips, sending her a glance of warning. Sheila, at this extraordinary introduction, delivered without a trace of expression to clarify its meaning, stood in stupid bewilderment. When she heard the sound of her husband's step above, she started forward with an impulsive question. With a rapid frown

the lawyer again laid his finger along his lips and, drawing her to a corner, said quickly:

"Not a word to-night. Complain at the table about the size of the house—remember!" Then aloud, quelling her astonishment with a peremptory gesture, he continued, raising his voice purposely, "Mrs. Fergus, I really ought to apologize. I shouldn't have dropped in on you like this, but your husband would have it; and when an old friend gets you buttonholed—you know!"

This assumption of intimacy, avowed alike by the lawyer and her husband, completed her terror. Her wits had deserted her. All her artillery lay in the consciousness of her fascination. As soon as she knew herself loved, she became formidable and arrogant. The unimpressible glance of the lawyer disarmed her and scattered all her artifices. Obeying an imperious sign from Bofinger, she gathered herself together and said hastily:

"Why—I am sure my husband was quite right, and, indeed, it's no trouble."

"So I said," Fergus put in, his nocturnal face appearing at the door when she believed him above. "Sheila, it's all right, I had something sent over from the restaurant."

"Then I'll see to it," she said, escaping quickly, for she felt as yet unequal to retaining her composure before both of them.

The supper, to her relief, passed easily. She dissociated herself from the conversation, resisting all the lawyer's attempts to drag her into it and evading obstinately a dozen openings which he gave her to criticise her home. Keeping a stubborn silence, then, she began anxiously to study his game. Seeing that she had no intention of obeying him, he shifted his tactics. He began a tirade against the extravagance of the modern woman, asserting that she put on her back one fourth of the family income. Sheila smiled, but guarded herself against a retort. Fergus applauded in his taciturn way.

Receiving no answer, Bofinger developed his thesis, to the point of declaring that the nation was becoming effeminate, due to the fact that the wife instead of the husband was the dominating influence in the home. He even ascribed to this cause the increase of domestic infelicity.

"Is he, by any chance, trying to force me to quarrel with him?" Sheila thought in amused perplexity. "Is that his game, I wonder?"

Acting on this assumption, she avoided all expression so skilfully that the lawyer on his leaving immediately after supper shot her a glance full of anger and irritation.

"Come again—come soon," Fergus said cordially. "Sheila, ask Mr. Bofinger to run in and see you some afternoon."

"Why," she stammered, overcome by this new surprise, "I hope he will."

When Fergus returned from ushering out the lawyer, he found Sheila in the parlor, an elbow on the mantelpiece, resting her chin pensively in her palm.

"I thought you had no friends," she said immediately.

"I? So I haven't—not many."

"Mr. Bofinger is a friend then?"

"He is—why, yes."

"You have known him a long time then?"

"Oh, quite a while."

"Five years?"

"Well—around that."

"Why, you've never spoken to me of him."

"Didn't I? So I didn't."

"Tell me this," she said, her anxiety rising above her prudence, "do you rely upon him? Do you trust him?"

"Why, in a way," he answered evasively, adding sharply, "why do you ask that?"

She made a gesture of impatience.

"You don't like him, eh?"

Her shoulders twisted with an indefinable displeasure.

"Why not?"

"I could never trust—that man!" she said desperately. "It's a woman's instinct, that's all."

"Nonsense," he answered with great good humor, "Bofinger's square as they make 'em. He is not a lady's man, I know. But he's got sense—horse sense, and Sheila, my dear, if you ever want advice, go to him."

She opened her eyes very wide at this and said nothing more, turning it over and seeking some explanation in the tangle of the evening.

"I've been a fool," she thought, glancing at the satisfied face of Fargus. "I've played into Bofinger's hands—whereas I ought to have made Fargus jealous."

The truth is, she was too near the dreaded shadow of Bofinger to have regained the clearness of analysis which would have saved her from such a blunder.

CHAPTER XIII

SHEILA RETREATS

The explanation of this extraordinary meeting, which had so mystified Sheila, lay in a last revolt of the miser. Once out of her presence, Max Fargus was constantly terrified at the gradual perversion of his own character. He could refuse his wife nothing, or resisted only long enough to learn anew the completeness of his surrender. From an agony of foreboding he vacillated to an ecstasy of defeat. His own impotence mystified him, for he believed that he resisted with all his being, not realizing that in an infatuation half of the man combats for the woman. Then he could never comprehend the use of money. Money spent was money lost. He would have denied angrily being a miser and would have argued that in allowing his wealth to accumulate he individualized it and turned it into a human agency which returned him the most satisfying of sensations,—power.

For the first time in his life he felt the need of a friend to advise and to steady him. But what he had cried out to Sheila was literally true, he had not a friend in the world, not even an acquaintance to whom he could turn. In all his business dealings he had sought to make himself feared. He disdained conciliation, to prevail by sheer autocracy alone intoxicated him.

In this perplexed mood he found himself one morning, in what seemed to him the most accidental manner, face to face with his former attorney, Alonzo Bofinger. The familiar face evoked the memory of an unexampled moderation. A quick thought was followed by a bow. He stopped, giving him a smiling,

"Good morning, Sir."

The lawyer shifted his glance a moment, then with a blank countenance passed on.

"But I'm not mistaken, it must be him," Fargus said doubtfully, and he called again, "Mr. Bofinger, hello there!"

The lawyer halted, wheeled, and said in a puzzled voice:

"Yes? What? Who is it?"

"Say now," Fargus protested, "you know me."

"Not at all, sir."

"Why, I was your client a month ago."

"Indeed?"

"You remember me now?"

"Not in the street, sir," Bofinger said with a smile. "My memory stops at my office."

"But if I let you," Fargus said, much impressed.

"That is different. How do you do? You may remember I don't know your name."

Such scrupulousness completed the favorable impression of the misanthrope. He nodded approvingly and said:

"Mr. Bofinger, you please me, I like your ways. And if you'll come around to the restaurant, I'd like to consult you—I want some advice. My name's Fargus, Max Fargus—you know that name, I'll bet."

"What, are you *the* Fargus!" Bofinger exclaimed, taking a step backwards.

"The same," Fargus said with a chuckle, flattered by the tribute. "You wonder why I came to you, don't you—on the quiet?"

"I am a little puzzled, I admit it, Mr. Fargus," Bofinger replied, putting a new deference into his address.

"I've been bitten too often," Fargus said with a grim nod. "There's a lot of your profession, Mr. Bofinger, who ain't no better than crooks!"

"Far too many," Bofinger said solemnly. "But I hope a better day will come."

They arrived in the private office. For the third time Fargus fidgeted and repeated:

"I want some advice."

"Well, sir, I hope I can help you," Bofinger said encouragingly.

"Mr. Bofinger," Fargus blurted out, "you remember Miss Vaughn?"

"Perfectly."

"Mr. Bofinger, won't you have something?" Fargus said desperately. The lawyer named his drink. His host, turning from the waiter, faced him with the manner of one about to overwhelm him with his disclosure.

"She is now Mrs. Fargus—my wife."

"Indeed?" the lawyer said politely, shooting up his cuffs, but nodding without astonishment.

"Well, doesn't that surprise you?" Fargus said, opening his eyes. Shrewd and tricky in his little specialty, in the minor experiences of life he was a little dull.

"Yes and no," the lawyer answered, examining the ash of his cigar. "From the standpoint of your attorney, yes. From any other standpoint," he added with a smile, "no."

"Then you suspected all the time?"

"Pardon me," Bofinger said, raising his hand half-way. "It was not my business to suspect, my business was to believe what you said. So Miss Vaughn is your wife?"

"Yes."

"I hope you're happy."

"That's just it," Fargus said, seizing the opening, "that's the point. You put your finger on it without knowing it. I can't say I am happy—altogether happy."

"Well, let's hear about it," Bofinger said with bluff directness.

"The trouble is this," Fargus said doubtfully. "A woman has no idea of money, except to spend it and—you know yourself—it ain't easy to refuse one anything—particularly—well—when you're fond of her."

"Say, now, ain't this about it?" Bofinger said, abandoning his stilted accents for an air of rough and confidential understanding. "This is the trouble. You're in love with a pretty woman, a remarkably pretty and charming woman—a whole lot in love. Now she, like a woman, a pretty woman, thinks more of pleasure than you do, wants to be out and seeing and wants to be out and be seen."

"Yes," Fargus assented, and with a sigh he echoed faintly, "yes."

"And she probably thinks that you're much better off than you are," Bofinger said with a wise nod.

"That's it; there, that is it!"

In his eagerness, Fargus extended his hand until it touched the lawyer on the sleeve.

"Doesn't understand that just because you run a few fine places, that don't mean money—but expenses."

"Ah, Mr. Bofinger!" Fargus said, raising his hands.

"Come, now, you're worried over expenses at home, or rather at what you may be getting into, and you find the trouble is here,—dealing with a woman you're in love with ain't like talking business to a man."

"Mr. Bofinger," Fargus said solemnly, "You've struck the nail on the head. That's my case—you can't handle a woman like a man."

"Of course not. You're not the man to do it either. You'd spend everything on her!"

Fargus, with an effort, allowed the statement to pass without betraying his emotion.

"I'll tell you the best way," Bofinger said, after drumming a moment with his fingers, while Fargus pricked up his ears. "Here, this is it! Get a friend to talk to her."

"How so?"

"Why, a friend—the right sort—could do this," Bofinger continued. "He could tell her confidentially—that he thought—that he rather suspected, well, that he'd heard things weren't going as well with you as people thought. In fact, he feared you were going to have a close squeeze. He needn't say anything direct now, that would make her suspicious, but he might advise *her* to beg *you* to cut expenses down all you could."

"Mr. Bofinger," Fargus cried, slapping his hands together, as Bofinger with a satisfied chuckle turned to him for his approval, "that's an elegant idea! And you're the man to do it!"

"Me?" Bofinger exclaimed, in real surprise at such quick success. "But I'm not exactly, do you think, in the position of a friend?"

"She'd never know it!" Fargus insisted. "I say, you're the man."

"Why, frankly, sir," the lawyer objected, "I can't see I'd do—I really don't—you can't say those things off-hand—I'd have to get acquainted more—"

Bofinger resisted so well and protested so earnestly that, an hour later, Fargus carried him away, under his arm, to that meeting which had come so near to Sheila's undoing.

The situation was a perilous one for the lawyer. There was, he knew, the insane jealousy of the misanthrope to be reckoned with, the danger that Fargus would fear more from his intimacy than from the prodigality of his wife. Fortunately for Bofinger, Sheila's attitude had completely reconciled Fargus, who wanted her to receive advice, but more that it should come from unwelcome lips.

In a fever of trepidation, Sheila awaited the next meeting with the lawyer. The sense of peril had sent her panic-stricken, with almost affection, to the

shelter of her husband. The instinct of safeguarding her home and the memory of her pinched and wandering career impelled her towards all the virtues, in an incentive to flight from the menace of the lawyer.

Many times she debated the consequences which would follow confession and an appeal to her husband's generosity. Invariably she recoiled, as before an impossibility, convinced that he would never pardon the slightest deception. She had divined under the intoxication of love the implacable, dormant fierceness of the misanthrope, and with this perception she came to recognize by what slender bonds she held his savage nature imprisoned. To surrender a moment her supremacy meant at best servitude. Besides, in her ignorance of the law she saw no escape from the marriage contract which lay in the hands of Bofinger.

To her annoyance, it was not until the third afternoon that the lawyer arrived. From her window she discovered him sauntering elegantly toward her, displaying to the street a brilliant tan vest, a pair of lavender trousers, and a smooth gray cutaway. A villain masked has thrice the terror of a villain seen, and to the despairing woman this outward semblance of the negligent dandy magnified immeasurably the lurking venom of the shyster beneath.

She went hurriedly down the stairs, rehearsing the dozen and one evasions she had prepared in making up the account he had come to demand.

"He cannot prove I am lying," she thought defiantly. "Let him make a scene if he wants to. As for the furniture and the expense of fitting up the house, that belongs to Fargus. On that point I won't yield." Then, as his step sounded, she opened the door and said pleasantly, "Well, you've come at last."

"Ah, Mrs. Fargus, I am unlucky! You are going out?" he said, starting back with a frown and speaking punctiliously. "But I may come in, for a moment? Just for a moment, then."

"Fargus is not in," she said, sneering at his sleek hypocrisy, "and no one is around."

"Excuse me, every one is around!" he said savagely, pushing past her. "Neighbors have eyes as well as ears. Oblige me by not coming to the door

until I ring!"

"A pleasant introduction."

He shrugged his shoulders and made a quick survey. Returning to the parlor he took his seat by the window, to command a view of the street.

"Sit there," he said, placing a chair. "Now no one can steal in on us."

He stretched out his legs, quizzing her with a smile, in which he took no pains to conceal his vanity.

"You were a little surprised to see me the other night, just a leettle, eh?"

"How long have you known Fargus?" she said instantly.

"You heard what he said."

"Then you deceived me."

"If what he said is true."

She saw that she would learn nothing from him, so, drawing back, she said angrily:

"Very well. Is this why you came?"

"No," he said sharply, and abandoning his coxcomb attitude he sat erect with a jerk, brought his brows together above his joined fingers, staring at her so fixedly that Sheila nerved herself for the dreaded demand.

"Sheila," he said moodily, "why didn't you complain of this box of a house, as I told you?"

"Because I did not intend to play blindly."

He shifted his glance, gazing moodily out of the window until, with a pucker of his lips, he said condescendingly:

"Blindly, Sheila? I thought you more clever than that. You missed a trick. We must quarrel before him. If you had obeyed me I should have pooh-poohed your extravagant ideas. We would have been at once on bad terms. Do what I tell you another time."

"Why, what is the use?"

"To work into his confidence and get rid of his infernal jealousy, my dear."

"But why make him stingy? Certainly that's not our game."

"That's but temporary," he said after a long pause.

"Now be frank with me," she said anxiously. "What are you trying to do? You've got a new plan, haven't you?"

"None whatever," he said with emphasis. "One may come. On my honor, I have nothing in mind now but to work into his confidence and become the friend of the family. The advantage to us is obvious."

The reply did not convince her. Despite his glibness she felt that he was deceiving her. She pressed him for some time, but without success. Finally, as she persisted, demanding his confidence, he cut her short by rising and saying:

"I mustn't stay too long. It's understood now you are to hate me?"

"Very well."

"Not difficult, eh?" he said with a laugh.

"No."

He turned upon her violently, catching her wrists.

"Don't try any tricks on me, my dear!"

"You hurt," she said in white anger, but without resistance.

"You heard?"

"I hear."

"And remember this," he said without releasing her. "When Fergus asks what we talked about, say that I told you I thought he was hard up and worried over his business."

"I hear."

"And I told you to make him go slow."

"I hear."

"There," he said, smiling and releasing his hold. "Don't be a little fool. Act square and you won't regret it. Au revoir."

It was not until he had gone that she remembered with a shudder of foreboding that he had not once referred to their contract or demanded his account. The thought left her frightened and dismayed. Without a doubt he had changed his plan of campaign. Yet what could be his new purpose and why should he want to cater to her husband's avarice? Did he plan, when he had gained his complete confidence, to carry off by some master stroke what he would have to wait for painfully, year by year? She asked herself twenty such uneasy questions and resolved that, until she had forced Bofinger's confidence she would do nothing to further his purposes.

"Well, have you seen Mr. Bofinger yet?" Fargus asked on his return.

"He called."

"Indeed," he said with a start. "And what did you talk about?"

"Mr. Bofinger preached to me about—economy," she said slowly.

"Well, well," he said, at loss for a comment. "And how do you like him now?"

"Max, I wish you'd tell me something?" she said earnestly, laying her hand on his shoulder. "Is he your lawyer? Does he have charge of anything for you?"

"No, no!" he said, shaking his head. "I look after my own business, thank you! Still, Bofinger is a good fellow; though you're set against him, aren't you?"

"I?" she said in surprise, "oh, I was—"

"Well?" he said fretfully.

"Why, this afternoon I liked him better. Why did you say he wasn't a lady's man? I should say just the opposite."

"Nonsense!" he said angrily. "So you like him?"

"Yes," she admitted thoughtfully. "Yes, I do. He's quite different when you talk to him, alone." She added pensively, "What funny eyes he has,—very handsome, don't you think?"

"What do you mean? What makes you say that?" Fergus said in great disturbance.

"Oh, you silly man!" she said, throwing back her head and laughing. "Don't look so fierce. The idea! A man doesn't make love to you the first time he calls!"

CHAPTER XIV

AS A FLASH IN THE DARK

The card Sheila had played in her desperation succeeded so completely that she became alarmed. She had played on impulse, recking not the danger of crossing the lawyer. The effect on Fargus was so extreme that she suddenly found herself in all the dangers which now arose from her double relation. The very thought that any man might make love to his wife had sufficed to awaken all the demons of jealousy in Fargus and had caused the face of Bofinger to appear the most odious in the world. From that night the name of the lawyer never passed his lips. He avoided him studiously in the streets. He left orders at his restaurants to deny him access. It was no longer only Bofinger he held in fear but all younger men, and he resolved bitterly never again to commit the error of introducing into his home that particular danger.

For six days Bofinger was unable to catch even a glimpse of his coat-tails or to penetrate to his office. Vaguely alarmed, he studied his time and succeeded in surprising Fargus one afternoon at the moment he was leaving for the rounds of his various establishments. Fargus, unaware of his proximity, was startled by a clasp on his arm and the glib voice of Bofinger crying in his ear:

"Here's luck! Where in thunder have you been hiding all the while?"

In dismay Fargus let fall the package under his arm.

"Evil conscience," said the lawyer, laughing as he restored the bundle. "Well, are things going any better?"

"What things?" Fargus stammered. He looked at him darkly, seeing nothing but the eyes that Sheila had found handsome.

"Hello, didn't your lady tell you how I lectured her on expenses?" Bofinger said, examining him with uneasiness. "Guess I must have turned her against me with too much advice."

"Oh yes," Fargus said finally, forced to say something. "I remember."

"It goes better then?"

"Better."

"Well, well, glad to hear it," Bofinger said, withdrawing his arm and shooting a queer look. "Glad to have been of use. Call on me any time. By, by!"

With a nod and a luxuriant wave of his arm he ground on his heel and strode away. Fargus, a little uneasy, plodded along saying to himself that he had shown his ill-humor too abruptly. Next, remembering the little deceit in which they had been fellows, he became genuinely alarmed lest Bofinger, offended, should revenge himself by blabbing to Sheila. At this horrible idea he at once set out for Jefferson Market determined to conciliate the lawyer. The poor man, after a few weeks of marriage, was ready to do anything to escape facing a scene.

Entering hastily he found the office in the sole possession of Hyman Groll. He halted, startled by the unusual figure of the hunchback, and asked:

"Isn't Mr. Bofinger back?"

"Not yet."

"When do you expect him?"

"When I see him," Groll answered, shrugging his shoulders.

"You're his partner?" Fargus said, surveying the hunchback with an interest which Groll returned, each recognizing in the other a common intensity of purpose.

"I'm his partner. Can we do anything for you?"

"No, no," Fargus said hastily; "just tell him I want to see him very much."

"What name?"

"Fargus. He will know."

"You're a client of his, then?" Groll said with aroused curiosity.

"Yes, of course."

"I beg pardon—since when?"

"Why, a couple of months—"

"Indeed—what name?"

"Fargus, Max Fargus."

"Oh, Max Fargus. Thank you, I'll speak to him," Groll answered with just the slightest twitch to his eyebrows.

Excusing himself Fargus hurried directly home, convinced that the lawyer would be beforehand. He arrived at the corner of Second Avenue just in time to perceive the figure of Bofinger passing into his home.

"Oh, the villain," he cried, "he is going to betray me!"

And clutching his cane in the middle, he began to run, provoking the gibes of a group of street urchins, who cheered him on. He reached the door, blown and trembling, and inserting the key entered. Immediately such an explosion of anger greeted him from above that, mystified, he checked the call on his lips and stole cautiously to the foot of the stairs. The voice of his wife was answering in terror:

"I swear I haven't! I've played square!"

"Look here, Sheila, my girl," cried the furious voice of Bofinger. "It won't go. It won't do. What I want to know is what you've been telling the old boy to set him against me!"

The first words had revealed the truth to the misanthrope, as in the storm a flash suddenly reveals the monstrous iniquities of the night. The exclamation was stifled in his throat; crumbling he fell across the banister, clinging to them with desperate fingers, while above the sounds of the altercation continued their overwhelming revelation.

"Are you going to tell me the truth?" cried the lawyer. "Sheila, either you've made a blunder or you're playing double with me."

"I am not."

"You've made him suspicious of me."

"I haven't—I swear it—on my honor."

"Honor!" he cried with a roar of laughter. "Cut that out between us! Now once for all you can't fool me. I know when you're lying, and you're lying now! Ah, my girl, I've placed you long ago. You think you'll play me close and get all for yourself."

"Bofinger, you are mad!"

"See here, cut this short. I'll give you just one chance."

"What's that?" she said, but so faintly that Fargus did not hear it.

"You get me to supper here within four days—or I'll put the screws on!"

"But how can I?"

"That's a good one," he cried, repeating contemptuously her words. "You do it. That's all. We're partners and don't you forget it. Share alike! That was the terms when I could have ruined you with a word—and those, my girl, are the terms now!"

Fargus, crimped to the banisters, listening with parted mouth and terrible eyes, could hear no more. He was suffocated. He reeled to the door and with a last effort opened it without noise. Once in the street he slunk rapidly away, glancing backward fearfully over his shoulder, scarce restraining a mad impulse to break into a run. He scurried under the Elevated and on without stopping, until at last the river barred his way. There he collapsed on a pile of lumber and remained holding his numbed head in his hands, swaying, until a policeman startled him by touching him on the shoulder and questioning him. Then, stumbling to his feet, he fled again towards the south, but haphazard as the rush of a brute wounded to the death.

For mile after mile he scurried thus, striking east and striking west, his mind vacant and stunned, incapable of other thought than to flee as far as he could from the abomination he had left in his home. A dozen times he came near being run over, without knowing his danger or hearing the screams of

warning that followed his crazy progress. In the blank shifting of faces he saw nothing but the leer and the scorn of the mocking world. The blow had been too instant and too astounding. His numbed mind could only feel the acuteness of the anguish, without as yet being able to analyze or recognize the causes. He did not think of Sheila or Bofinger. It was the world which had crushed him, the perfidious, mocking world which in the end had thus taken its contemptuous revenge.



FOR MILE AFTER MILE HE SCURRIED THUS.

He saw everywhere smiles of derision, heard triumphant laughter. Every one was gazing at him, enjoying the discomfiture of the ancient enemy. He saw nothing clearly, he began to stumble in his walk and to waver, clearing

his way through the crowds with his cane, thrusting women and children violently out of his path.

In one narrow street in the Jewish quarter a crowd of boys at play set up a cry of "Madman!"

He turned furiously and shook his fist, cursing them. Then fleeing anew his course became embroiled, crossing and recrossing, until to his dismay, a second time, he encountered the group of urchins, who accompanied him a block, with derisive shouts. Fergus, clasping his temples in his hands, broke away in terror and, by some instinct avoiding his former direction, turned north, winding and twisting helplessly in the labyrinth of the ill-smelling slums. Still everything was confused, his hatred and his agony. It was always the world which pursued him with its jeers. This obsession possessed him so completely that even the noises of the city, the rumble of truck and carriage, the roar of the Elevated, the screams of the street hawkers, the hum and swish of the crowd, struck his ears as so many delirious taunts.

Through this fog and rumble, all at once, he heard a wild shriek of acclaim:

"Madman! Madman!"

Looking up wildly he found himself, to his horror, a third time in the street of his persecutors. This time the hilarity descended on him like a storm, for humanity is pitiless once its sense of ridicule is touched. From the windows women saluted him with gibes and laughter, people crowded to the front of the shops showing him to one another, while the loungers cheered on the ragamuffins who, forming in a company behind him, chanted in unison:

"Mad dog! Mad dog!"

Some one from a window pelted him with an apple. At this moment he was in danger of losing his reason. He began frantically to run, his tormentors with shrieks of delight pursuing him. After two blocks of fruitless flight he turned suddenly on the pack about his heels and clubbed the foremost with such fury that the rest fled. Then forgetting everything but the new fear of the something within his mind which was beginning to snap, he rushed over to the west side, crossing Broadway by a miracle. All at once he heard his name pronounced. A familiar voice was saying conciliatingly:

"Oh, Mr. Fargus, do come in! What has happened to you?"

He came to a halt, stock still, and glared about him. Some strange instinct had led him back to the scenes of his boyhood. He was before the sunken rooms of Nell's Coffee House, and Mrs. Biggs herself was watching him with fear and wonder.

"What, you too!" he cried, and whipped into fury by the sight of his first love he brandished his cane and rushed on her. The woman, with a cry, flung into the restaurant and barricaded the door.

Then a chill began to shake him, his arm fell inertly, his rage, from utter exhaustion, passed like a fever from him. He turned away and instinctively took up the familiar journey to his old home in the tenements.

"Ah, let me think," he said wearily, striking his damp forehead. The perfidy of Bofinger he had guessed from the first words of his wife. He gradually comprehended what had happened, that the lawyer had gone straight to Sheila and with her had formed a compact which had made her his wife. If the details were obscure the truth was blinding. When he had thought this carefully out he said again:

"What am I going to do?"

He returned to the street of his birth and hurried up the well-known stairs. The key of the room was still in his pocket—he had never surrendered the old quarters. It was a superstition and a sentiment unique in his life. He entered the room and looked about solicitously. Nothing had been disturbed. Mechanically, still confused, he went to the trunk and was taking out the bedding when in dismay he recollected himself and shoved it hurriedly back. Then seating himself on the bed, his head imprisoned in his hands, he repeated:

"What am I going to do?"

This time the question had the vigor of an explosion. He no longer could abandon himself to the torrents of his rage. That emotion had left him in weakness and fear. But gradually, in the cold succeeding calm, a germ of a new passion formed and gathered violence,—the germ of vengeance.

At the end of an hour of anguish he leaped to his feet with a shout of victory and, refreshed and alert, again rushed down the stairs and set out resolutely for the upper city.



CHAPTER XV

THE IRONICAL MOMENT

Three hours later Fargus dragged himself home, still limp with the violence of that first uncontrolled burst of vengeance, which, like all the passions, had been too intense in its inception not to necessitate an exhausted reaction. But during these three hours he had already put into motion that conception of a punishment which had come to him like a flash at the end of his maddened flight through the city.

What was hardest was to return home. When he reached the street it was already dark and the light in the second story was showing cheerily, while from the hall the veiled glow spread a feeling of delicious warmth. At the sight of the home he had grown so passionately to love such a lust for murder welled up in him that, not daring to look upon Sheila's treacherous face, he fled again.

It was almost half an hour later that he came again to his own door and forced his reluctant feet up the steps. With the key in his hand he remained a long moment, feeling all at once very old and exhausted. Then with a shudder he opened the door.

"Is that you?" the voice of his wife cried instantly. In the greeting, strangely enough, there was a note of gladness. "What kept you? I have been waiting for ever so long."

"Business," he mumbled.

His delay had frightened her. In moments of danger and deception the slightest deviation from the routine fires the imagination with vague terrors. Reassured, she began to move about quickly, humming to herself. Below Fargus listened, one hand raised, his lips moving involuntarily to her singing, aghast at her composure.

"I'm coming—coming right away," she called down. "Go in and order supper."

Before he had moved, she had run down the stairs.

"Heavens!" she cried, stopping short. "How tired you look!"

"Do I?" he said, looking on the floor. "Yes, a headache or something."

"You must take more rest," she said, laying her hand on his shoulder and looking a moment anxiously in his face, before she took her seat at the table.

He had wondered if he could keep his hands from her fair throat,—she came and he could hardly restrain himself from falling at her feet. When he looked at her at last his heart rebelled. He had believed that her perfidy had ended his infatuation. He found in her loveliness the power yet to wound—he suffered, he loved. It was not only the woman he could not give up, but the half, the happier half, of his own self.

Seeing him so weary Sheila felt a sudden movement of pity, a maternal tenderness she had not believed possible. Across the shining little table, which she contemplated from time to time with an affectionate eye, she saw always the intruding shadow of the lawyer, malignant and inexorable, bringing with it the damp and the chill of the outer night. It was a memory and a threat, the shadow of the cold, starved world of poverty which clung to her. Before this real menace her vanities and her whims vanished, and suddenly, on again looking at the man who had placed her amid this coziness and warmth, the tears dimmed her eyes. All at once she realized how desperately she clung to this home of hers, this one satisfying reality in a stretch of past darkness and future menace. Threatened in this joy of possession her heart was softened towards her husband, whose suffering she now comprehended with her own. She raised her head and said compassionately:

"How tired you are, dear! You aren't ill, are you?"

At this, her first caress, he twitched violently as from a shock of pain, and drawing his hand hastily across his forehead he stammered inaudibly:

"No, no."

He fastened his gaze desperately on his plate; to look at her would have meant surrender. He had an immense impulse to seize her in his arms, to overwhelm the fair, treacherous face with kisses, to forego and to forget and to sink into a shameless, passionate subjection. To himself he repeated again and again:

"Yes, yes, I love her—I want to love her!"

Sheila also was stirred by the responsive emotion one endearing word had brought.

"If he loves me like that," she thought, trembling on the verge of a confession, "he might forgive me anything."

And shaken with the daring of the thought she sought the courage to throw herself on her knees and cry his mercy.

The pause lasted but a moment. Neither suspected what was in the soul of the other or that three destinies hung on a word. A glance of affection would have brought Fergus shamelessly to her knees, a flash of courage and she would have confessed and been forgiven. The ironical moment passed. She did not quite dare. But to distract him she said gently:

"I'm going to tell Mr. Bofinger to give you as good advice as he gave me. And by the way, what has become of him all this time?"

That speech decided two fates. In Fergus every human emotion froze. From the rage of subjection he passed violently to the rage of murder. Where a moment before he had been on the point of stretching forth his hands in supplication he was now shaken with a blinding passion to possess himself with something murderous, with which to rush on her and blot out forever both her treachery and his infatuation.

"Fergus!" she cried in horror. "What is it? Why do you look so?"

"Me?" he mumbled, thrusting away from him the knife by his plate with a gesture she could not understand. "What—what was it?"

"I asked if Mr. Bofinger was away," she said, following him in alarm. "And why you haven't seen him."

"Ah, Bofinger!" he cried, and his fist cracked on the table like the sound of a curse.

"What jealousy!" she thought to herself, and reassured she began to laugh openly.

"Why do you laugh?" he demanded fiercely.

"Monster of jealousy!" she said, smiling. "What a lot of trouble that naughty remark of mine has made!"

"Go on," he said, drawing his eyebrows together. Then to himself he added furiously: "Actress—vile actress, lie now to me if you can."

"I'm penitent, my dear; I own up," she said with mock humility. "Your friend talked economy and poverty to me until I expected he was going to send you back to your old ways. So to be rid of him I made up my mind to make you jealous. You remember?" And looking at him with challenging eyes she burst out laughing. "Since then, you can't bear to hear his name. Isn't that true?"

"No," he said gruffly, cursing her cleverness. "No, I am not jealous."

"Fib!" she said, wagging a finger. "And it's all my fault."

"No."

"You're not made for telling lies," she said with a shake of her head. "Leave that for those who know. Shall we ask Mr. Bofinger to supper then—tomorrow night?"

He did not answer, raging at the skill with which she enmeshed him.

"And you're not jealous!" she cried, clapping her hands triumphantly.

Then rising and coming to his side with the fawning movement of a cat she laid her hand on his arm, saying with a sudden shift to seriousness:

"Forgive me my foolish teasing. I'll feel awfully hurt if you let that come between you and an old friend. As for Mr. Bofinger, you silly man, he oils his hair and his eyes have a squint!"

"Then you want him?" he said, without raising his eyes from her jeweled, supple fingers.

"Please—for to-morrow," she answered with the air of making an atonement. "And—I'll not be so wicked again."

Strangely enough, in the presence of such perfected acting Fergus found new strength and a fierce delight in matching wits.

"Well, well!" he said, forcing a fierce smile. "That was all, was it? And you are sure you want Mr. Bofinger?"

"Please."

"That decides it then!" he said grimly; and to him the words were as the casting of a die.

The emotion of vengeance is supreme among human passions. Beyond love itself, of which it is often the ultimate phase, it is so exacting and absorbing that only the most intense natures can guard it long in their hearts without being thereby consumed. The generality of men prefer to excuse and forget. The man who can pursue a vengeance relentlessly, and at the sacrifice of his own desires, has in him either a little of the woman or of the savage, in whom the egotism of civilization is unknown; or a touch of that madness which distinguishes fanatics and misanthropes, those who are ready to sacrifice themselves for humanity or those who despise it. In measure as this supreme passion dominated Fergus it educated him and, from a first tempestuous upsetting, it calmed him and gave to him the strength of deception, the joy of matching his wits against the woman and a confidence in the ultimate day. His demeanor during the supper at which Bofinger was present surprised him. Forewarned he viewed their adroit maneuvering to develop a quarrel with scorn and amusement. He found in himself another man, the creature of his new purpose, who suffered no longer. But at times the other returned with the intensity of pain.

Two days after the supper with Bofinger, Fergus returned one night with a vigor and a zest that impressed Sheila at once.

"Ah, you're different to-night," she said, looking at him with interest.

"Yes, Sheila, I am," he cried, taking her hand and squeezing it joyfully.

"Luck, great luck!"

Wondering much she followed him up-stairs, where without preliminaries he brought out a bundle of papers and said with a smile:

"Sheila, we're going to have a business talk. Something unexpected has happened. First—there!"

Picking out of the bundle a book he offered it to her with an expectant smile. She took it with a feeling of apprehension, watching him in almost dismay. It was a bank book inscribed with her name.

"For me?" she cried, "but—what—why?"

"You have said you don't have enough money," he answered drily. "You are now to run the house—all expenses except rent. Every three months four hundred dollars will be paid in to your account."

She looked and saw that amount entered to her credit. This development in her husband so overwhelmed her that she could not for a time muster words to thank him. When she started he cut her short.

"Now listen, Sheila, you've been wondering, haven't you, what has worried me these last days." He stopped with a questioning look, reveling in his new power of deception. "Three days ago I was afraid that the chance to make millions was going to escape me. To-day I have it in my hand. Yes, Sheila, millions—millions!"

Across her mind there passed the terrible thought that Bofinger had found an opening, and she said anxiously:

"Is it a secret?"

"Absolutely," he answered. "A secret for every one!"

"It's a plan, then, of Mr. Bofinger's!" she said with conviction.

"Bofinger, heavens no!" he cried in real alarm. "He has no idea of it; and, Sheila, no one must know, no one!"

"Never fear," she cried, relieved. "Not a word shall pass my lips, I promise you! But, Max, you say millions," she added incredulously; "in your enthusiasm don't you—what do you really mean?"

"No, millions!" he cried, smiting his palms. Then leaning forward and grasping a knee in either squat hand he began nervously:

"To-morrow I'm leaving for Mexico. When I come back, if all goes well, there is nothing you can wish for you can't have."

At this extraordinary promise, all of a sudden, like a mist, there rolled up before the woman a glittering vision of luxury and splendor; carriages beautifully fashioned, rolling behind swift horses, boxes at the opera dimmed by apparitions of bewildering satins and silks, which in turn disappeared before the fascination of glistening jewelry. She shut her eyes and with a sigh relaxed in the gentle happiness. Fergus lost not a sign of her emotion. He smiled as a master smiles. He held her. He proceeded rapidly, finding in the thought of her deception a joy which she imagined came from his words.

"Four years ago I staked out a miner who came to me with tales of the Mexican silver mines. I supplied him on condition to have two thirds of his findings. He is not the first I've done that for. He wrote me a week ago that he was returning successful. To-day I saw him and, Sheila, not only has he discovered a mine that promises everything, but he brings me the chance to buy up one which they think is worked out, but which really is filled with millions. There is in this business," he said, nodding wisely, "something queer, a bit of treachery; but let the owners look to themselves. The more fools they be deceived! I shall go to-morrow and investigate both with an expert, on the quiet. Now, in order that I can close as soon as I am sure, I have brought these papers to you to sign."

She received the papers without a glance, saying breathlessly:

"And you really believe there is a chance?"

"A chance? A certainty!"

She leaned over and took his hands, saying with tears in her eyes:

"O Max, if it is only true!"

"There, there, read over the papers," he said nervously, withdrawing his hands. "If everything goes well I shall sell some of my restaurants and cinch the bargain. The papers are a formality—your consent to the sales in case they are made. Of course," he added with a shrug, "if nothing turns up I shan't sell."

"Oh, don't speak of such a thing!" she said with a superstitious shiver. "Where shall I sign?"

"There and there," he said, imposing his finger and hiding his eyes. "Tomorrow we'll go before a notary and you can acknowledge your signature."

"And why that?" she said, signing carelessly.

"To show, my dear, that your signature is given willingly and not by compulsion."

She lifted her head and met his glance. The two burst into laughter.

The next morning the deeds were duly executed at the Union Bank, where Sheila was identified. After lunch she insisted on packing everything herself. She arranged his tie, smoothed his coat, studying him with an affection as sincere and deep as her hunger for the vision of wealth he had so marvelously held out to her.

"Now remember," he said sternly, "if anyone asks, say I'm off on business."

"I will."

"But you don't know where."

"Never fear."

"You might say, if necessary, that it was to look up some oyster beds."

"I will."

"Good-by, then," he blurted out, reaching out his hand.

"Not like that!" she cried in protest, and flinging herself into his arms she kissed him. Then holding herself from him, seizing his shoulders, she cried fervently:

"Oh, Max, bring me only what you promised, and I'll give you all without reserve. All!"

CHAPTER XVI

CASTLES IN THE AIR

It was fully a month before Sheila received word of Max Fargus. The weeks passed in skirmishes with Bofinger, who, dissatisfied with her explanations, continually harassed her. To his insistent demands she answered always that Fargus had left without further explanation than that he was going to investigate the oyster fields.

"And that's all you know?" the lawyer demanded with one of his inquisitorial looks.

"Absolutely."

"He writes to you?"

"Me? I haven't heard a word," she answered truthfully.

"Well, it looks peculiar," he said suspiciously. "He has never done this before that I can find out."

"Perhaps he has a plan to extend his business," she said, committing the mistake of trying to explain.

He looked at her with an antagonistic eye.

"Sheila, I bet something's gone wrong between you two."

She protested in surprise.

"You haven't been cutting up, have you?" he continued angrily. "Doing anything to make him jealous?"

"Me? What could I do?" she answered. "I might as well live in a convent."

"How long is he going to be away?"

"I don't know."

"And he hasn't written?"

"No."

"And that doesn't worry you?"

"Me?" she said, slipping over the dangerous answer. "Why should it?"

Twenty times Bofinger returned to the catechism without discovering in her manner a single flaw. She held the lawyer always in terror, but according to the nature of her sex, which is disconcerted only by the unknown, the daily contact educated her and brought a new confidence. Besides she was defending the millions Fargus had promised her with the instinct of a mother for her children. They had grown very real to her, these children of her hopes. She believed in them because she had always wanted to believe. So now without restraint she began to abandon herself to all the delights of the imagination.

She began the morning by ransacking the society columns for details of the last night's functions, promising herself, with a delicious rage, that the time would soon come when she would read her own name there. She ran the shops, purchasing in her imagination enough to fill their little house three times over. She hung over the shining counters of the jewelers, setting aside for the future day bracelets and brooches unending, and decided, so natural did her new destiny seem to her, that she would wear nothing but rubies and pearls. She remained late abed, having her breakfast served in her room and tired out the morning with preparations for her afternoon parade on the Avenue.

At times her happiness became so intense that she had a superstitious dread lest at the last moment Providence might thwart her. She went thrice a week to church, where she promised to be a faithful and exemplary wife if only Fargus might be permitted to return successful, hoping by this bargain to conciliate God and range him on her side, for she was a bit uneasy over her past. Also it must be admitted that her conception of Paradise had a flavor of upper Fifth Avenue.

The culmination of these weeks of delirium arrived in a visit to the opera. It was an intoxication such as she had never known. Ensconced in the glittering orchestra, the display on the stage, the surge and the sweep of the

immense music, awakened all her senses. Radiant and palpitating she leaned back languidly, her glance traveling among the boxes, back and forth over the bewildering horseshoe, dreaming of the day when she too would take her place among these princesses of fashion,—and it took her quite a while to decide which box she would occupy. During the second entre-acte she joined the parade in the foyer. Feeling that the excitement gave her a moment of unusual brilliancy, she placed herself in prominence, wondering anxiously if she would be noticed among all the gorgeous toilettes. To her delight she drew many glances and on leaving had the delicious satisfaction of hearing a voice say in a whisper half impertinent and half admiration:

"Who is she?"

"Oh, when I can dress as they do!" she thought with a sigh of delight, "they will know who I am!"

The incense of this flattery caused her to imagine the conquests she should then number—little infidelities to Fargus, a number of which, despite all her vows, she committed in that moment of ecstasy. On leaving the opera she took a carriage for the mere vanity of being obsequiously handed through the door. Then, arrived home, she paid the driver double his fare in the embarrassment she felt that he should set her down in such an unfashionable quarter.

The next morning, remembering with alarm the infidelities she had imagined to her poor husband, she hastened to church where she renounced them in trembling, hoping perhaps that the divine Providence had not noticed such a minuscule frailty.

At the end of the month Bofinger, on repairing to Sheila's, stumbled on a messenger who was bringing a telegram to the door. Convinced for a long time that the absence of Fargus held some mystery of which the woman knew the secret he avidly seized on the occasion offered. Slipping a quarter into the palm of the surprised messenger he bade him return five minutes later. Then he went in hurriedly and going at once to the attack said:

"Well, Sheila, what news?"

"About Fargus? Nothing."

"What! Not even a letter?"

"No, indeed."

"But he's telegraphed?" he persisted.

"He'd never think of that," she said with conviction.

"So," he said smiling. "And you're still satisfied there's nothing to fear?"

"Why, I am a little worried," she said, deciding to answer thus. "But then I suppose it's only one of his funny ways."

At this moment the bell rang and Sheila, answering the door, received the telegram.

"Hello, what's that?" the lawyer cried from the parlor.

"Only someone at the wrong number," she said, shutting the door.

Bofinger rose and with two steps reached her side at the moment she was trying to conceal the telegram in her dress.

"Indeed!" he said ironically, twisting the dispatch from her hand. "So this doesn't count?"

Sheila, paralyzed with fear, felt the floor swim beneath her. Bofinger, tearing off the cover, found to his great disappointment only this:

Begin journey tomorrow.

"MAX FARGUS."

Without attempting to conceal his vexation, he was tendering the dispatch to Sheila when all at once snatching it back he scanned it for the source.

"Mexico!" he exclaimed, and, looking at her with the gleam of the lawyer who has entrapped his witness, he raised his voice to a shout, "MEXICO!"

Sheila, who had feared that the contents might reveal the story of the mine, comprehended rapidly that she might yet extricate herself.

"Mexico?" she cried with well acted incredulity, and seizing the telegram she read it. "But—but I don't understand! Why Mexico?"

"You do it well," he said scornfully. "So Fargus has gone to Mexico. Why?"

"My dear fellow," she said, sitting down and studying the telegram, "I am as astonished as you."

"Sheila, you're lying to me."

"You tell me that a dozen times a day," she said with a shrug. "It gets tiresome. Still, I would like to know why he is in Mexico and what he means by beginning his journey. Does he mean his return or what?"

Deceived by her air of candid bewilderment Bofinger tried a new method.

"Sheila," he said, looking at her earnestly, "I believe you. But, my dear girl, if you are deceiving me, you are running big risks. Fargus is too clever for you alone. You need me, whether you find it out now or later."

"Perhaps," she said, glancing at the telegram to escape his scrutiny, "perhaps he has some idea of bringing up a Mexican establishment?"

"You think he's coming back now?"

"Oh, of course."

"You are doubtless right," he added, smiling too graciously not to raise her doubts, "and we'll soon know."

A week later, the mail brought her the following brief letter, with a Southern postmark.

Dear Sheila:

Fargus has been away a leettle too long. You may be satisfied, I am not. I'm off for Mexico.

ALONZO BOFINGER.

"Oh, if he finds him, then everything is lost!" she cried in consternation. "If only I knew how to warn Fargus!"

At the end of three weeks she received a telegram from Bofinger which completed her despair, for he sent but the one word:

"Progress."

Six weeks of torture succeeded, during which she was torn between the fear that the lawyer should learn of the mines and the agony which gradually possessed her as she became convinced that some dreadful accident had happened to Fargus, forever sweeping away her brief vision of fortune. This was the secret of the overwhelming grief which had so mystified Bofinger on the night when he had returned to reveal to the distracted woman the fall of all her hopes and the extraordinary sentence which for seven years she must undergo by the provisions of the common law.

CHAPTER XVII

THE SEVEN YEARS

The human imagination, which responds easily to the narration of an immediate sorrow, is unable to comprehend that suffering which has no end, for the imagination of man is powerless before the stretch of time, which always surprises and mystifies it. Hence the difficulty of making comprehensible the agony of the seven years' waiting in which Sheila suddenly found herself; as though she had suddenly awakened in the embrace of a dungeon, forgotten and without hope. For man can conceive of the future only in the terms of the past, and if time, when reviewed, has the ironical property of amazing contraction, it has, when anticipated, according to the intensity of the desire, the illimitable power of extension with something of the mysterious cruelty of death, incessantly multiplied and incessantly possible.

What is seven years in the human life? In the past it is a breath, in the future it is eternal. In the memory it ceases to exist or stands only as a vague gap which one seeks bewildered and with a sense of loss. In the future, for the convict who awaits his liberty, for the genius who runs the streets unrecognized, for the lover and the heir, seven years stretches beyond the human vision and has something of the quality of eternal punishment.

Seven years to eat out her soul in patience, seven years to mortify unquenchable desires, seven years to contemplate the autumn of her youth arriving, to have all just beyond reach, to gain all just too late, and to suffer each day the pangs of a queen in exile—this was the aspect to the distracted woman of these inexorable seven years on the morning after the revelation of the lawyer. She had not realized it at once. She began to comprehend it in the morning after a night of agony.

When Bofinger returned the next afternoon he found her shattered and inert. She had passed from the horror of waiting to a recoil from the suffering she must begin, as a damned soul might shrink at the brink of the unending atonement. She did the natural thing. She refused to believe that Fargus

could be dead. Then, as though to surrender the thought of the millions was as painful as to wait for the half of one, she found a wretched consolation in the hope that Fargus had found the mines and had pretended death, until by careful espionage he could satisfy himself that she was worthy.

Bofinger had his reasons for keeping her in ignorance of her legal rights. He did not inform her that she could apply to the courts for an allowance, for he wished to keep everything in his hands, fearing specially the danger of her falling into honest guidance. Two things he wished to avoid, her learning the value of her inheritance and, in his selfishness, her spending what would undoubtedly be a liberal allowance. To make more secure his hold he loaned her the sum requisite for her needs, twelve hundred a year, taking notes of acknowledgment at twelve months for double the amount, which by constant exchange he calculated to swell to usurious figures. Also it suited his precautions that she should be forced to live frugally and separated from the world, for he knew the dangers of her nature which, were the opportunity presented, would sacrifice everything for instant luxury. Without his suspecting it, one thing abetted his end. Sheila's account at the bank terminated with her first credit. Seeing that she refused, for some unaccountable reason, to surrender the hope of Fargus's return, he encouraged her in that persuasion, pretending also to fear some ruse of his eccentric nature.

For two years Sheila clung to this obstinate hope, and at times thereafter she returned to it desperately, but at the beginning of the fourth year she abandoned her dream utterly and resigned herself to despair, with the revolt of one who can accuse but fate and sees herself the sport of some divine cruelty. In brief, as the history of such daily grief can no more be told than comprehended, six years passed and, amazed, she beheld the beginning of the last period.

She was entering then her forty-first year. With the six preceding years she had bidden a sullen farewell to the last of her youth and in this cruel martyrdom had watched day by day the imperceptible fading of her bloom, the dulling of her eyes until, doomed to impotently witness the fragrance and the warmth evaporate, she had come rebelling into middle age, having been beautiful, coquette, and pleasure-loving for nothing. What gave a

mysterious horror to this period was the utter impossibility, when she sought back, to perceive even the traces of the journey.

At the beginning of the seventh year she awoke and shaking off all restraint began desperately to anticipate the arrival of her fortune. Bofinger, after a first resistance, seeing her resolved, advanced her the sums she required, surprising her by his generosity and good humor. At thirty-four she had looked upon forty as irrevocable. Now she said to herself that she had yet two years into which to crowd all the defeated longings of her youth. She flung madly into the vanities of luxury. She dismissed her maid of all work and installed a cook and waitress. She made a bundle, so to speak, of all her furnishings; replacing the carpets with oriental rugs, introducing into the dining-room a magnificent sideboard spread with silver. As for the parlor and bedroom, within six months they retained not an object of those treasures which had once seemed to her so luxurious and whose purchase had cost Fargus such pangs.

Each afternoon in a landau, which she rented by the month, prepared by her coiffeur, perceptibly rouged, a little puffy but always noticeable, she rolled away languidly to mingle in the parade of the avenue. In the evenings she lived from theater to theater.

Paradise, to this woman, was to be admired, envied, and coveted. She loved but two ideas, herself and the world. Her feminine nature had never sought the tribute of the individual—the woman who does that returns her love—but the admiration of the mass; an emotion entirely selfish and egoistical. In her appetite for admiration she made no discriminations, the meanest glances had the power of rendering her supremely happy. So each day, as she whirled along up Fifth Avenue and through the Park, she watched anxiously from the corners of her eye, counting the looks that followed her; thoughtful and pained when an old beau, who recognized her artifices, showed her to a friend with a knowing laugh, delighted when a young man, attracted by the mystery of woman's maturity, ogled her with supreme daring.

One consideration alone kept her in her modest neighborhood, a consideration human and quite feminine. Next to the joy of rubbing elbows with the fashionable world, she procured her greatest delight in the triumph

over her neighbors, which she each day achieved as, perfumed and hidden in laces, she was handed into her carriage.

In this unsatisfied, false joy she ran through the last twelve months, eating up the savings of the lawyer, who continued meanwhile all suavity and good nature, calling on her three times a week, serving her in little ways, always agreeable and amusing, acting as her companion whenever it pleased her. Still she was not the dupe of his mildness, understanding very well its end. Only as a disagreeable situation to be met in the future she found it easier to banish the problem from her mind.

Thus arrived the end of January, and the day which brought to an end the seven years. At eight promptly Bofinger arrived bearing a bouquet. Time had not entirely overlooked him. He had turned slightly bald, the wrinkles had invaded every cranny, and his vest had generously rounded out. But despite such telltale evidence, he had not yielded a jot of the dress of a young dandy. He wore a fancy shirt, thin red lines on a lavender background, upright collar of the same decoration. A flowing crimson tie passed through the loop of a large ruby ring, this last the memento of a gentleman who procured such trifles at considerably below their market value. A blue silk vest with a firmament of yellow stars was designed to give the touch of gaiety needed to a suit of ruddy brown cheviot.

Pending Sheila's arrival he waited in the parlor, heels clicked together, stiff legs, bouquet to his bosom, a speech on his tongue. Then, as this attitude began to cramp him, he relaxed, placed the bouquet on the table and stalked about the room, contemplating with his chin in his palm the display of Sheila's extravagance. Many thoughts doubtless passed through his mind, which he summed up by clicking to himself and saying with conviction:

"Damn, she'll take a lot of driving!"

Then instinctively the fingers of his left hand tightened as one who already grips the reins.

Immersed in this reflection he did not notice Sheila's soft entrance. By a caprice, instead of making a toilette for the anniversary she had put on a plain dress of black, either to render herself less desirable or to appeal to his

compassion. She stood a moment silently, her glance bent gravely upon him. Then, advancing with a smile, she said lightly:

"Heavens, Alonzo, you *have* something on your mind!"

Bofinger, startled, turned about in haste, losing all his effect.

"Do you know what night this is?" she asked, stealing his thunder.

"I have come to congratulate you on your widowhood," he said hurriedly.

"Is that why you have gone into mourning?"

"And are those flowers for me?" she asked with a gesture.

"Eh," he cried, and, turning clumsily, hastily presented them. To restore his equanimity he began to smoke, while Sheila, after touching the flowers of the bouquet one by one, finally laid them down on her lap and said:

"Do you know that, until a few months ago, I expected him to turn up at any moment."

"Well, at times I had the same idea," he said with a nod. "A sort of superstition. However, if the waiting was long it's over now. Sheila, own up, I haven't been a half bad fellow, have I? Have you any complaint coming?"

"No," she replied with a smile. "You have been easy on me; but I never thought that it was against your interests."

He frowned, and bringing out a package of notes said acridly:

"Do you know just how much I've loaned you? For seven years I've made you an allowance of \$1,200 yearly, total \$8,400. It may be interesting to note that it has been at a slight personal embarrassment. Beside which, in the last twelve months I have advanced you \$4,800; to do which I have been forced to borrow heavily. Total, \$13,200."

"Finish up the calculation, Alonzo," she said with a shrug, "and tell me just what you expect to make on your generous transactions. However, I don't object, virtue should be rewarded."

"About \$32,000," he said promptly, "which is nothing considering the risks. Yet," he continued, placing the notes on the table before him with a

significant movement, "I'll have something more to say about this later, then perhaps you will give me more credit."

An awkward moment succeeded, what each felt was the end of the skirmishing. It was the woman who finally resolutely went to the attack.

"Alonzo," she said, sinking back in her chair, "we might as well come to the point. I know very well what that is,—you intend to marry me. Well, let us talk it over and as friends. For our feelings have changed and, as I have become a middle-aged woman, I look at things differently. You have had your interests but you have been a good friend to me. So let's talk the situation over, as friends."

"Agreed," he said gravely; "but as we are going to be frank, Sheila, why, I may as well say now, we will be married day after to-morrow."

"Then let us discuss it on that basis," she said with a smile, into which she put all the indifference and weariness of middle-age. "What is the situation? You wish your half of Fargus's fortune; I don't flatter myself there is any other reason for our marriage. Well, you shall have it—freely. I won't hide from you that I did at first rebel. Now you have fairly earned it. But on the other hand I want my liberty. So take your share and leave me free. On your side, at forty-three, you are young. You will want to enjoy life, you won't want to do it with an old woman at your side. You love life, my dear Alonzo, and a wife twenty-five years old is what you need. For me," she said with a tired smile, "I have come to what I never felt possible; I adore pleasure as much as ever, but I have no longer the strength. Yes, I must get used to being old. This last year has tired me dreadfully. It's over, money will no longer mean what it could have meant."

"And what will you do with it?" he asked solemnly.

"Me? I may make a splurge for another six months, for it is hard to give up. After which," she added with profound deliberation, "I think I'll devote myself to charity. Therefore, my dear Alonzo, don't tie up with a middle-aged woman when it isn't necessary."

"My dear Sheila," Bofinger said, adopting the same attitude. "What I am going to say will surprise you; I too have changed. No, I have not the same desires, the same enthusiasms I had seven years ago. I am not young at

forty-three and to play it would make me ridiculous. A time for all things. Now I have other ambitions. But first of all I have gotten to the point in life when a man gets lonely—wants to anchor somewhere."

"Heavens, Alonzo," she cried in vexation, "you're not going to make love to me now!"

"That would not be difficult, my dear Sheila," he said with an admiring glance, "though for some reason you have taken pains to-night to appear at your worst." And tilting his nose in the air, he enjoyed a smile at the expense of the woman, he had not studied in vain.

"What's the use, Sheila? You know it's settled. And when we get as far along as this scenes ain't agreeable. When we're married," he added, sweeping up the bundle of notes, "Sheila, my dear, you may make a bonfire of these without it's costing you more than the price of a match."

"But," she said suspiciously, "if that's been your intention why did you make me sign such agreements?"

"And supposing you had died," he said with a shrug. "What would have been coming to me? Nothing but the papers I held. Now tell me I haven't been generous! And what's more, when we're married, you can choose. I'll take what's coming to me and leave you absolutely free—or—"

"Or what," she asked, at some wonder to hear him speak so soft.

"Or we can pull together. The property has improved, if we wanted higher stakes we could do much together. I'd go into politics; that's the way to invest your money to-day. Yes, Sheila, tastes change and new ambitions come. After forty only power satisfies a man. That is what I want. So, frankly, I should like a home. I feel I'd make a good husband and, Sheila, I shouldn't find it difficult to be proud of you!"

In listening to these soft words and seeing him so settled and phlegmatic, knowing the charity that comes with fortune, she had perhaps a moment during which she was willing to believe that he had really experienced a change of heart. So easily are we persuaded of the best intentions, when we fear the worst.

"But why," she asked after a thoughtful interval, "why is marriage necessary? There is no question of your half, that I promise you."

"My dear," he said with deprecatory candor, "I am too old to change my skin. I know I can trust you, now. Yet, to save my life, I couldn't help doubting it. It's second nature, you know. Seeing is believing, and holding is better. I'm made to risk nothing, to act as though I suspected everything. It ain't personal, Sheila—I can't help it."

She bit her lip and, driven to desperation, said angrily:

"But I don't want to marry you!"

"Why not?"

"Because I'm not in love with you."

"Were you with Fargus?" he said quietly. "It was a question of interest, wasn't it? Well, marry me and it'll be to your interest too. Such a man as I am, knowing the secret ways and who ain't squeamish, only needs capital. Knowledge without capital is what makes the shyster."

"However, you leave me free to choose?" she said.

"Perfectly."

"Then," she said decisively, seeking to provoke from him his true feelings, "since you won't trust me to pay, we'll be married and, as soon as you get your half, you'll arrange for a divorce."

"I regret," he said politely but with a ring of vexation, "that is not possible. In coming into possession of Fargus's estate you must give bonds for the principal until another seven years have elapsed. There also you will need my assistance."

"Then in heaven's name what do I get!" she cried, rising.

"Humph, you get the income," he said with a shrug, "which is tolerable—quite enough."

"Well, what?"

"Well," he drawled, looking askance at her, "somewhere around \$50,000."

"A year?" she said faintly.

"Yes. The property must have bettered considerable—ought to fetch close on to a million now."

"And that, all that is mine!" she said, palpitating.

"All ours," he corrected, and his voice trembled a little, despite himself.

"And half of that won't satisfy you!" she cried.

"Two such halves are better than one," he said, then added hastily, "However, that lies with you. If you say it, it will be a marriage in form only."

"Let me think it over," she said, still under the shock of her surprise.

"Certainly," he answered, rising to depart. "You are perfectly free."

"Thank you."

"But," he added at the door, "be ready for the ceremony, day after tomorrow, at eleven in the morning. Good night. Think over the rest carefully."

Then she comprehended, what at the bottom she had known from the beginning, that, despite all her resources, at the crucial moment he would always be her master, and in the matter of her fortune she would do exactly as he designed.

CHAPTER XVIII

FARGUS IS DEAD

It is rare in the secret life of the city that they who live by preying on society are not themselves preyed upon. Alonzo Bofinger for a long while had been in the clutches of Sammamon, the money-lender. Without his aid he could never have maintained Sheila through her period of waiting. But, to obtain the necessary loans, he had been forced to take him into his entire confidence, paying, of course, the penalty in the usurious rates Sammamon greedily imposed.

Bofinger, indeed, had never lived on his income, but had used it to capitalize his debts, gambling always on a lucky future turn of the wheel of fortune. He frequented what are called "sporting circles," where in the company of jockeys and pugilists he was entirely at home. He had the run of the second-class theaters and enjoyed specially the atmosphere of the wings and the little suppers after midnight where the gaiety was not conventional and the jests were unadulterated. He liked to splurge and, as a consequence, he was constantly floundering beyond his depth. Without losing either his heart or his head he had entered into an attachment with one of the actresses of these sham stages, a connection which flattered his vanity and gave him, he thought, the standing of a man of the world.

When, therefore, after the death of Fargus, he saw the future open before him with all the gratification of his desires, he threw all moderation to the winds, and having in a short while exhausted all his property, he had recourse to Sammamon, with whom he had had one or two previous understandings. His yearly income, about this time, was nearly cut in two by the withdrawal of Hyman Groll from the firm. Bofinger, already in debt, was astounded to learn that his quiet partner had already accumulated a capital of \$50,000 with which he purposed to emerge into larger opportunities. But his chagrin was tempered by the delicious thought that, in a few years, he would be able to turn the laugh. To his annoyance, the dissolving of the partnership showed him, what he had scoffed at before, that with all the glamour and the applause he was only the voice where

Hyman Groll had been the power. In a month he saw his prestige impaired, his alliances shaken, and found himself on the same footing with the half dozen lawyers who scrambled for the pickings of the court. All of which had sent him frequently and deep into the lair of Sammamon.

On the morning after his visit to Sheila, he started for the office of the money-lender to negotiate another loan, which he promised himself should be the last. A frightful run of luck at roulette had depleted him. Besides, he wished to make a handsome present to Sheila before their marriage, desiring above all things to keep her in good humor until the crucial morrow was over. Also he had to appease the actress, and having no doubt as to the scene which would follow his announcement of the marriage, he knew that no small offering would suffice.

Not far from Hester Street, in the heart of the Ghetto, on the first floor of a tumble-down frame building, stooping with age, a dank office bore the sign,

LEOPOLD SAMMAMON

Loans.

Bofinger, whose sensitive nose was offended by the smells of the quarter, lit a cigar, and entered.

The office, on the apex of a triangle formed by the junction of two streets, had an entrance on either side, so that those within seemed to be constantly buffeted by the two streams of humanity. Sammamon came hurriedly forward, a frail man not yet forty whose shoulders stooped as though still bearing the weight of the pack with which he had landed here twenty years before. The body, without vitality, seemed held together by the one impulse of gain that burned in the eyes, which had the strange contradictory quality peculiar to his trade, all fierceness and intensity when examining a client, but wavering uneasily the moment they were subjected to the same scrutiny.

The two entered a cell which served as a cabinet and began to talk, with their foreheads together, both to overcome the noise of the street and to protect themselves against the sharp ears of the three clerks.

"Sammamon, I want two thousand dollars," Bofinger said directly, "two thousand dollars more and that's all, so help me God!"

"Where I get two thousand dollars?" the money-lender protested. "I am bankrupt now with your loans! Ain't the time up to-day—eh? Why you want more money?"

"I am going to marry the woman to-morrow," the lawyer said conciliatingly. "And I've got to hush another one up and do it handsome!"

"Where I get two thousand dollars?" Sammamon repeated with a shrug.

"See here," Bofinger said, tapping him on the knee. "Come to terms now and quit your mumbling. Darn you, you know very well you're making a good thing out of this. Give me the money and I'll sign for three thousand dollars at sixty days and I'll pay the rest then. It takes time to get the thing through the courts."

"I couldn't do it,—so help me! I couldn't do it, I couldn't get the credit, I couldn't get one other cent!"

"Three thousand dollars, Sammamon, at sixty days."

"Think of the risk! If anythings happen, I'm ruined!"

"Well, curse you, what will you do it for? Out with it!"

"I can't do it, Mr. Bofinker, I can't do it!"

"Three thousand five hundred dollars then."

"Imbossible!"

"Well, make your own terms—I'll sign anything."

Sammamon took his chin in his hands, and, after much shrugging of his shoulders and pursing of his lips, finally said, with a gesture that seemed to apologize to his ancestors for his moderation:

"Five thousand dollars at sixty days—not one cent less. And then I don't know where I gets the money."

"Make out the papers," Bofinger said curtly—and did not curse him until the money was safe in hand.

The next day having meanwhile procured the authorization of the courts, he was married to Sheila and went with her to live in her home; for Sheila, seeing there was no escape, and deciding to make the best of the situation, had feigned a willingness to accept his proposal.

Three days later, on a stormy morning, in the company of his wife Bofinger appeared in court to begin the formalities necessary to place Sheila in possession of Fargus's property. Sammamon, who trusted only his own eyes, occupied a distant corner where he listened attentively, seeking unsuccessfully to conceal the agitation which the prospect of his future gains caused in him.

The judge, who, despite the monotony of his profession, kept an interest in the romances of the law, instead of proceeding with the routine of the case, assumed an ex-officio air and said:

"Ah, this is that extraordinary case of disappearance—a very extraordinary one, Mr.—Mr. Bofinger. In my whole experience I don't think I remember another case like this."

"Your Honor," Bofinger said, "I represent my wife, the party in pleading."

"You're a lawyer, then, Mr. Bofinger?" the judge said in some surprise. "I do not remember your name before."

"In fact, I have never had the pleasure of appearing before your Honor."

"And what was the last heard of this Mr. Fargus?"

"Seven years ago, the twenty-sixth of this month," Bofinger said, "according to the depositions I have here."

"Upon which date the lady was free to marry. You are not, therefore, an old married couple."

"Naturally, your Honor."

"I congratulate you," the judge said pleasantly, giving him a shrewd glance.

"It has been a long attachment."

"Quite so," the judge answered with a bow, "and now that your marriage is accomplished you are taking steps to gain possession of the property?"

"Your Honor states the case exactly," Bofinger said drily. "We are come to take the first steps to acquire possession of the property, subject, of course, to the bond which the law requires for another seven years; although it is sufficiently established that Max Fargus is dead."

"Who says that I am dead?"

At this extraordinary interruption every one in the court-room turned in astonishment.

In the back of the court-room a dark undersized figure had entered unperceived and supporting himself heavily on his cane, had advanced to the middle of the room, where a second time he cried:

"Who says that Max Fargus is dead?"

Then with an effort he removed his hat, revealing a face on which, despite a pallor of death, was the mocking sneer which one imagines on the face of Satan claiming the forfeit of a soul.

For a moment there was a tense silence. Then through the court-room the shriek of Sheila reechoed in terror:

"Fargus, Max Fargus!"

The sound of a thud followed as she slipped to the bench and pitched loudly on the floor.

"Your Honor," Fargus said, turning to the judge. "All I wanted to do was to establish my identity. That is done."

Bofinger had a moment of vertigo during which he committed two vital mistakes. The first was to remain sillily muttering over and over, "Max Fargus! Max Fargus!"; the second was in allowing his enemy to escape. When a moment later he recovered himself and rushed forth there was not a trace of the misanthrope to be seen, neither in the halls nor on the sidewalk, nor in the white, storm-swept street. A policeman told him that a cab had

been waiting into which Fergus had tottered and driven off with a companion who had remained inside, concealing his features.

CHAPTER XIX

ROUT AT EVERY POINT

Great dangers, which in the physical world turn the coward at bay into the most dangerous of antagonists, often in the realm of the mind excite a similar phenomenon. Bofinger, before the shock of the revelation, remained but a moment confused and staring. The situation flashed over him,—he divined the conspiracy. Calling hurriedly to the policeman to have his wife sent home, he cleared the sidewalk with a bound and started on the trail of a car, hat in hand, his coat-tails lashing the frosty air. But half-way, meeting a hansom meandering towards him through the storm, he turned with a cry of joy and bounded into it, almost jolting the sleepy driver from his seat.

"Fargus's Broadway Oyster House!" he shouted. "Ten dollars an hour—drive like the devil!"

The hansom shaved the corner, hung a moment on one wheel and rocked up the street. In Bofinger there were two movements, a physical collapse, as he sank back inertly into the corner, and an acute nervous excitation of the mental faculties which, soaring above the surrender of the body, absorbed in a few minutes, with the compressed energy of so many hours, every detail of his perilous situation. His reflections, jumbled and rapid as a kaleidoscope, ran thus:

"Two thirds gone at a blow, two thirds of a million lost forever by his turning up! How in the devil did he manage it? The third, the third, the dower right! What will become of that? Can it be saved? What is the law? Does the second marriage forfeit the dower of the first, if the husband turns up? If so we are ruined. There's not a doubt in the world that there was a plot. Fargus planned it all out. What am I going to do? I must get hold of him—yes—or he'll disappear again. If he goes anywhere he'll go to one of his Oyster Houses to be recognized again. He must have discovered everything seven years ago, but how—not from me. From Sheila? She talked perhaps in her sleep, or he found her accounts and guessed the rest. If he got a clew he could have put a detective on it and everything would have

come out. But what gave him his clew? Not me. Sheila? But she had no reason to ruin herself."

At this point he took his head in his hands and said desperately:

"I'm wasting time. What does it matter how it happened. That's not the point. Two thirds gone and only the dower right left—if it is left; why should it be left? The law is probably the other way. What am I going to do?"

All at once he sat up.

"I have it. Bring an action of conspiracy against Fargus with intent to defraud his wife of her dower rights. Hell, am I losing my wits! Of course. Desertion and conspiracy to defraud. Plain as day! But the devil of it is I must get hold of him. Oh, what a fool I was to let him slip away again! Anyhow I can get an injunction on the property this afternoon, at once. But first for Fargus!"

At the restaurant he found everything in bewilderment. An hour before, Fargus had entered, and after having been recognized by his old employees had departed.

"Oh, the scoundrel!" he cried, rushing out, "he has established his identity and has gotten off."

As he fled from the restaurant his shoulder was suddenly clutched and turning in alarm he beheld the greedy features of Sammammon, who, running out of the court-house at his heels, had caught the address flung to the cabman. The money-lender, panting and distracted, cried to him all out of breath:

"Where you going, Mr. Bofinker? What you going to do? What about my money?"

"Sammamon, you idiot," Bofinger cried with an oath, "don't stop me! I've got to have every moment. You fool, I'm not running away! If you don't believe it, get in there and go with me."

And half lifting him he pounced into the hansom, crying:

"To Fargus's Chop House, Broadway near Fortieth."

"You pay?" Sammamon cried menacingly as the hansom swung into its reckless course. The rapacious fingers instinctively closed over Bofinger's sleeve as he added aggressively: "How you pay now?"

"Sammamon, I've a mind to run you out of business!" Bofinger cried furiously. "Take your hand off me and let me alone! Can't you see I've got enough to think over."

"You pay?" the money-lender persisted doggedly.

"Damn you, of course I'll pay you!" Bofinger cried. "See here, we lose two thirds by that devil's turning up, but there's always the dower right which belongs to my wife,—a third, if you know enough law to know that. A third is a third of a million, and that's safe in real estate, where he can't convert it. You've got nothing to worry over."

"What you doing now?" Sammamon said, but half convinced.

"Trying to get hold of Fargus, of course," Bofinger said irritably, "before he can get away, to delay matters."

The hansom jerked to a stop, Bofinger rushed into the restaurant while Sammamon mounted guard at the door, heedless of the rush of snow. The lawyer quickly returned, having received another setback. Fargus had appeared and departed. With a last hope Bofinger drove to the Westside establishment, relapsing moodily into silence. The grim, persistent figure of the money-lender began to affect him with a foreboding of disaster. At the Oyster Parlors, the same story. Then Bofinger, abandoning any hope of surprising Fargus, returned to the hansom and cried savagely:

"To the Union Bank! Sammamon, where can I put you down?"

"No, no," Sammamon replied with a wily shake of his head. "I go too."

"Sammamon, I'll pitch you out!" the lawyer cried, exasperated.

"You pay? Where you get the money?" the money-lender said defiantly.

"Look here, will you get out!"

"I go too," Sammammon repeated.

Bofinger in a rage, stopped the cab, took the money-lender by the collar and deposited him roughly in the street, a move which later he was to regret. Then changing his mind he drove to the court where he had a warrant issued for Fargus's arrest as well as an injunction on the Union Bank on any sums standing in the name of Max Fargus. Returning to his office he hurriedly put himself in communication with his particular allies in the detective force, imploring them to ransack the city for a trace of Fargus.

Armed with his injunction he went next to the Union Bank, where he had himself announced to Gilday, the president, whom he knew.

Lawrence Gilday was a small, dapper, smiling man, fastidious in his dress, with a general air of bon viveur, which deceived at first. The gamblers and politicians esteemed him greatly for his probity and confided in him without reserve. Thanks to this peculiar personality the Union Bank had built itself up a number of blind accounts, personal and political. To a few who were initiated, Gilday was recognized as the safe intermediary between the upper world of finance and fashion and the leaders of the under regions in the numerous secret occasions where these extremes desire to meet with mutual profit. Gilday, who never surrendered his position of quiet superiority, received Bofinger with quick circumstantial affability and said without rising:

"Well, Bofinger, what can I do for you to-day?"

"Mr. Gilday," Bofinger said, sitting down awkwardly and secretly admiring, despite all his agitation, the neat red tie which he could not have worn without its crying out to the street, "I've got an injunction here that I've got to serve on you immediately."

"Is it a personal matter?" Gilday said, frowning.

"No, no," Bofinger said hastily, "it's simply an injunction on the account of one of your depositors, pending the result of an action at law."

Gilday, divining that there was more in reserve, extended his hand, wondering under what scheme of blackmail the lawyer was now engaged.

"Well, what account is it?"

"The account of Max Fargus," Bofinger replied, "and you'll oblige me if you will notify your cashier at once."

"Have we such an account?" Gilday asked with a doubtful look, which Bofinger thought the perfection of acting. "Max Fargus? The Max Fargus I knew has been dead some time."

"Mr. Gilday," Bofinger said smiling, "I know everything. Besides there is no longer any need of concealment, as Max Fargus has chosen to show himself to-day."

"Max Fargus—the restaurant proprietor?" cried Gilday. "The man who was murdered in Mexico?"

Bofinger, with a shrug of his shoulders, said:

"I wouldn't ask you to break professional secrecy, Mr. Gilday, but I tell you everything has come out and concealment is no longer possible."

Gilday, who had rung, handed a slip of paper to the clerk, saying:

"Is there any such account? Mr. Bofinger," he continued, "I can assure you there is some mistake. Mr. Fargus I knew very well. We have heard nothing from him for many years."

"One question," said Bofinger: "Don't Fargus's restaurants bank with you?"

"There is no reason why I should not answer that," the banker replied carefully. "Certainly they do."

At this moment the messenger returned, saying:

"The account of Max Fargus, sir, expired seven years and two months ago."

"And will you give me your word of honor," Bofinger said with a smile, "that Max Fargus has no account here under any other name? But that, of course, Mr. Gilday, I realize I have no right to ask. However—"

"One moment," Gilday interrupted, "it's true that I should not ordinarily answer such a question; but in the present case, I assure you that we have

no dealings directly or indirectly with Mr. Max Fargus."

Bofinger shrugged his shoulders good-humoredly, as a man who does not hold a falsehood against another, and replied:

"And may I ask how you reconciled that with your statement that the restaurant account is still with you?"

"But what has that to do with Max Fargus?" Gilday asked with a trace of impatience. "The Max Fargus Restaurant Company is an independent firm."

"Since when?" Bofinger said, smiling at what seemed to him the successive blunders of the banker.

"Since seven years ago. I remember the transaction perfectly," Gilday replied. "A month before his departure Mr. Fargus sold outright his various restaurants, stipulating only that the name should be retained for eight years. Mr. MacGruder, a client of mine, bought the property, being only too glad to retain the name which has always been a guarantee with the public. For that reason the deal was a secret one."

"Mr. Gilday," Bofinger said sharply, thinking that the banker had abused his good nature long enough. "Do you forget the simple fact that no man can transfer his property without his wife's consent? To clear matters up, let me tell you now that I represent the widow of Max Fargus, and that she is my wife."

"Thank you, I am aware of such elemental law. I now repeat to you that Max Fargus sold out seven years ago—with the consent of his wife."

"Mr. Gilday, that is impossible!" Bofinger said, losing patience.

"Mr. Bofinger, I assure you, you are laboring under a misunderstanding. Mrs. Fargus, in my presence, gave her written consent willingly and, I may add, eagerly."

Bofinger looked at him, saw he spoke the truth and collapsed. Gilday sprang forward to ring, then, changing his mind, went quickly to the table and seizing a glass of water dashed it in his face. Bofinger, who had had a spell of vertigo, staggered to his feet with such an ashen face that Gilday even was moved to cry:

"In God's name, what is the matter?"

"I'm wiped out!" Bofinger exclaimed, and raising his fists he cried, "Oh, that devil!" Then controlling himself with an effort he asked, "Mr. Gilday, in the name of pity, tell me if you know to what bank Fargus transferred his money."

"Mr. MacGruder paid him with a check," Gilday said after a moment's reflection. "And on the following day Mr. Fargus drew out his entire account."

"Was he paid with a check?"

"In cash."

Bofinger, who thus lost his last hope of tracing the movements of Fargus, started to leave the room without quite realizing what he did or said, when Gilday retained him.

"But how is it possible," he said with a glance replete with curiosity, "that you knew nothing about this? Surely you are a partner of Hyman Groll?"

Bofinger shook his head.

"No—no, not for a long while."

"Ah," Gilday ejaculated, at once mystified and enlightened. Then he added, "Do you lose much?"

"Everything!" Bofinger answered, and disappeared.

Everything for him meant no longer the dreamed-of millions, nor the half, nor the dower right; but, so swiftly had the perspective narrowed, every cent he had in the world. He had entered the bank, thanks to his plan of suing for conspiracy, certain of retaining at least \$300,000, sum substantial and not to be despised. He staggered out with everything swept away into certain bankruptcy, thinking only of one thing, to reach his bank and withdraw the two thousand and odd dollars he had deposited the day before.

Still another shock was reserved for him. At the wicket the paying teller refused to honor his draft, saying:

"Sorry, Mr. Bofinger, but I've been served with an order restraining me from paying anything over to you."

"In whose name?" he cried aghast, and at a loss to divine the direction of the blow.

"Leopold Sammammon."

He withdrew the check saying nothing, accepting the reverse dully, too bewildered not to imagine the finger of retribution, and yielding all at once to that superstitious dread which attacks the scoffer amid the blasts of disaster. At this moment he feared and believed in God.

CHAPTER XX

BOFINGER IN DESPAIR

Towards seven o'clock that evening Bofinger presented himself at the door of a large double-fronted mansion, in one of the side streets of Murray Hill. Since the morning he had eaten nothing. Hunger and fatigue had given him the appearances of an extreme dissipation. His feet burned with cold and from time to time, to resuscitate them, he plunged his hands in his breast. A fine bead of snow had risen on his clothes, fastened to his hair, and caked over the collar, which had rolled up on one side.

The butler, who came to his ring, viewing with disfavor this desperate figure, exclaimed:

"Be off now, we can't do anything for you."

Too miserable to resent the insolence, he took an attitude of supplication.

"This is Mr. Hyman Groll's, ain't it?" he said meekly.

"And if it is?"

"Tell him it's Mr. Bofinger, Alonzo Bofinger."

"Mr. Groll is out," replied the butler aggressively, "and he won't be back to-night."

At this moment, when Bofinger was in despair, a carriage drawn by a team rolled swiftly up and stopped before the house. The butler, leaving Bofinger, ran down to the step and helped out the short, overhung figure of Hyman Groll, to whom he gave his arm to assist up the steps.

In the disordered figure on the stoop the hunchback failed to recognize the person of his former dapper partner. He stopped and, with a questioning glance, said:

"Who is it? What do you want?"

"It's me. It's Bofinger," the lawyer said humbly, removing his hat. "I'm in trouble, partner, I've got to see you."

Groll twitched violently, and drawing back with a start shoved the butler forward until his body interposed. Then after a moment of evident hesitation he said:

"Go in, I'll see you. Humphreys, take him into the library."

Bofinger, ushered by the astonished butler, was shown into a large room at the back where he remained deferentially, surveying the evidences of his associate's sudden rise in the world, at a loss to account for the cause.

In a moment Groll entered, stopped near the door, watched him, and in an almost defensive attitude said:

"Well, my boy, in trouble, eh? What is it?"

"Hyman, I'm done for!" said Bofinger, who at this moment reeled and fell into the chair.

"What's the matter with you, man?" Groll said, hobbling forward.

"I guess I'm weak," Bofinger said, passing his hands over his face. "I haven't had time to eat anything all day. Oh, what a day!"

Seeing that the case was urgent Groll rang, ordered some sandwiches and whisky, and presently, as though reassured, came and sat near Bofinger, eyeing him doubtfully.

"Here, now, eat something and drink this," he said, pouring him out a glass. "Talk afterward."

"Hyman, I'm up against it," Bofinger said, shaking his head.

"You are, eh? You look it. What's the matter?"

"I'm cleaned out."

"Bankrupt?"

"Ten times over."

"Well, let's hear it."

"Hyman, I got over my depth," Bofinger said gravely. "And I don't know where I stand now. That's why I want your advice." He paused, drew a breath and continued with a jerk: "Ever hear of Max Fargus?"

"The restaurant man? Didn't he disappear somehow in Mexico?"

"Disappear—hell, yes!" Bofinger cried with an incongruous laugh. "Look here, I've got to make a clean breast to you. You won't hold a little thing in the past against me, will you? You've done too well."

"Go ahead," Groll said with a nod. He settled in his chair and turned his glance on him; the same cold, emotionless scrutiny which Bofinger knew of old.

"When we were partners down by the old Jefferson Market," he began, withering somewhat under the look, "I struck the trail of Max Fargus by accident. He came to me to look up some girl he was in love with. I went over and struck a bargain with her and turned in a report that made the old boy marry her. Now, I'm making a clean breast," he added, faltering a little and dropping his glance. "I'm knocked out. You're at the top, you won't hold it against me, will you?"

"Go on—go ahead."

"I kept it from you—expecting to make a tidy bit out of it. I was to get half of whatever came to her."

"How much?"

"Half."

"You did well," Groll said with just a tinge of irony.

"Well!" Bofinger repeated with an oath. "I've acted like a fool throughout! And I thought myself so clever. Then I managed to work into the old fellow's confidence and everything went smoothly and I thought I saw a chance of doing something big. He must have been worth close to a million then."

"Go on—" said Groll as he stopped. "I'll ask you some questions later. Only what was the woman's name and who was she?"

"Sheila Vaughn or Morissey, a sort of third-rate actress," he answered.

The quick professional attitude of Groll recalled to Bofinger the traditions of their office. He forgot the personal note and lapsed into a technical voice, as he related the details of Fargus's departure, his suspicions, his discovery from Sheila of her husband's whereabouts, his tracing the miser to the scene of the hold-up, the fruitless efforts to discover the body and his return to Sheila with the news.

"You'll admit," he concluded doggedly, "That the situation was elegant. I had only to marry the widow to scoop in a fat fortune."

Groll raised a hand in objection.

"I mean, of course," Bofinger added hurriedly, "at the end of the seven years, which the law fixes. I can't get things straight to-night."

"Alonzo," Groll interposed with marked interest, "did you apply for a trust for the widow?"

"No, of course I didn't! That's just what I didn't want to do—then. I wanted to keep her in my hands to make sure of her, until I could marry her! Instead," he added, "I put up for her myself and got into the hands of that robber, Sammammon, doing it!"

Groll made a move as though to enter a question, and then relapsed, motioning him to proceed.

"As soon as the seven years were over and I could get the papers through I married the widow. To-day we went into court to begin proceedings for the possession of the estate—and Fargus turned up from the grave!"

"The devil you say!"

"But that's not all, he got away again," he said shamefacedly, "after we had both lost our heads and recognized him! And I haven't had a sign of him since then, though I've put the whole force on his track."

Groll emitted a whistle, which to him was an enormous concession.

"It was a conspiracy of course," Bofinger said sullenly. "Damn him! He planned it out—must have got on to our game somehow. That meant two thirds swept away."

"Why only two thirds?" interrupted Groll.

"There was her dower right, wasn't there?" Bofinger replied, doubtfully. "Surely the law would give her that?"

"I'm not sure of that," Groll objected. "There might be a question there."

"Well, anyhow, if it didn't, I had a plan to save it all right."

"Indeed," Groll said with interest. "How so?"

"I had a warrant sworn for him on a charge of desertion, complicated by conspiracy to deprive his wife of her dower rights. That is clear enough."

"Possibly—possibly yes," Groll said after a moment's drumming on his chair.

"Ah, but the worst is to come!" Bofinger said bitterly. "When I went to attach the property, I found Fargus had sold out everything seven years before!"

"But—"

"With the consent of the woman, of course! Gilday of the Union Bank told me he saw her give her consent himself!"

"The woman played crooked then—or they fooled her," Groll said softly, looking at Bofinger, who bent his head and bit his lips with repressed fury. "Then here's the situation," he began. "You can't get hold of Fargus, no property to attach, and you're in the clutches of Sammammon? How much do you owe him?"

"Over twelve thousand and he has attached all I had in the bank. That's the worst of all!"

"He was quick about it."

"He was slinking around the court, damn him, when Fargus turned up."

"Have you any other property?"

Bofinger took out a few bills and small change, saying:

"That's what I'm worth to-day. Not a cent more; I had banked all on that."

"So you're cleaned out?"

"Gutted!"

"Alonzo," Groll said, "you're in a bad way. Now I want to put some questions to you."

Bofinger nodded.

"I wanted to get things clear in my head. The woman, of course, has been the weak point. What were your relations?"

"Dog eat dog."

"You tried keeping her under by scaring her, then?"

"Yes."

Groll shook his head.

"A mistake, Alonzo. You ought to have made love to her. You can only bully a woman that way. Fear won't hold them! So she was sullen all the time?"

"Yes."

"Then she didn't want to go into the arrangement."

"You bet she didn't."

"It was a hold-up, then?"

"Yes."

"But how could you hold her after she married Fargus?"

Bofinger, in his misery, related without a gleam of pride what had once seemed to him a master stroke.

"I made her sign a common-law marriage with me, had it witnessed, and told her if she squealed I'd produce it and claim her."

"Alonzo," Groll said with a nod of approval, "you've had hard luck."

"Luck! I've been up against a fiend; that's what!"

"That idea of a common-law marriage was clever," Groll said musing. Then he added carelessly, "You squeezed that paper tight!"

"It ain't been out of my safe a moment."

"Now tell me why you didn't investigate the property?"

"I did—every bit of it, Hyman, right after the marriage." Bofinger said with a curse. "How was I to know that she'd given her name!"

"You ought to have looked it up again," Groll said, shaking his head.

"What was the use? I thought it was safe."

"You were wrong, Bo."

"Oh, of course! I know it."

"So you never suspected that she'd signed a paper?"

"Never!"

There was a pause until Groll took up evenly:

"Well, Alonzo, you want facts. Here they are. To begin, there's no doubt that this fellow Fargus got on to your game. He's planned the whole thing to revenge himself on you two, that's plain. He took his precautions in selling out, but fooled you by concealing the sale."

"Yes, that's plain."

"As to your case for conspiracy and desertion," Groll said reflectively, "all right, if you catch him. But by this time he's off and to run him down means

money—a lot of it. When you find him he may be somewhere where you can't touch him. Of course he hasn't left a cent, here, for you to get at."

"No, damn him!"

"Now the point with you is where do you stand?"

Bofinger looked at him, waiting, as a man who knows there can be no favorable answer.

"Well, Alonzo, here's the truth. He's broken you! You owe twelve thousand to Sammammon, who'll get everything you have in the bank. What do you hold in notes on the woman?"

"About thirteen thousand," replied Bofinger, who was too ashamed to mention the higher figure.

"So much waste paper! Has she any debts?"

"I don't know—a thousand or two, perhaps."

"An interesting point might come up there," Groll said musing. "Whether you are liable for her debts. A husband is liable for the debts of the woman he marries. Though it don't make any difference; you'll go into bankruptcy."

"Oh, I'm knocked out!" Bofinger said, biting his lips to keep back the weak tears.

"Yes, Alonzo, you are," Groll said. "Haven't you got anything you can save?"

"Not a thing."

"Hasn't the woman any jewels? Get them if you can, but make sure first that they are free of debt, if you don't want to get in worse trouble."

"You're right," Bofinger said, starting up. "I'll get hold of them before Sammammon can put his claws on them."

"If I were you," Groll said softly as they went to the door, "I think I'd have an understanding with the woman. She's the one who's done you."

"I'll attend to her!"

"Nothing rash, Alonzo," Groll said with more curiosity than feeling. "You won't do anything rash?"

"Rash!" Bofinger cried with a wild laugh. "Oh, no! Nothing rash!"

And leaving Groll in profound meditation on the stoop he plunged down the steps, no longer caring for the cold or the storm.



CHAPTER XXI

SAMMAMON ACTS

At nine o'clock that night Sheila, who had waited all the afternoon in agonized ignorance, beheld Bofinger burst in with the fury of the storm that was raging without. One glance at his wild figure and blood-ridden face told her all. She fell on her knees shrieking,

"Alonzo, don't hurt me!"

"Get up!" he said hoarsely. "Get up quick and sit over there! And answer everything I say or I swear I'll do for you!"

She obeyed instantly, saying hurriedly:

"Alonzo, I'll tell you the truth—every word of it!"

"When did you sign those papers?" he asked, each word interrupted by a gasp.

"What papers?" she cried, for in her ignorance of their import she had totally forgotten the transaction. "What papers, Alonzo—tell me!"

"The papers—those papers—the papers Fargus got you to sign—your permission for the sale of the restaurants."

"Yes, yes, I remember," she said eagerly, "the day he left for Mexico."

"You signed—willingly!"

"Yes."

"Why, in God's name!"

She hesitated.

"Why!"

"I'll tell, I'll tell you," she cried, throwing up her arm, and brokenly she told him of the mine.

"Oh, that fiend! That devil!" he cried, forgetting her for a moment in his consternation at the malignant ingenuity with which he had been ruined. The next moment, turning to her furiously, he shouted:

"And you thought by concealing it from me you could cheat me out of my share! Didn't you—didn't you!"

"Yes."

"You fool!" he cried in a paroxysm, "and what has it cost you? Fergus sold out the next day and you lost every cent of your dower. Ruined, that's what we are! Ruined, without a cent in the world to-day!"

In her fear for her life she thought to moderate his fury by pretending to fall in a swoon. He ran to her angrily, shaking her without drawing from her a sound. Then, leaving her sprawling, he began to pace up and down the floor.

Presently, in terror of what he might do, she half opened her eyes. Imperceptible as was the movement he perceived it and seizing her by the shoulder swept her up into a chair.

"Get your wits back. Hurry up, I haven't any time to lose," he said.

In his present manner was something venomous and cold that terrified her more than all the transports of his rage. From that moment she thought only how she might manage to reach the front door and escape from the house. She opened her eyes with a sigh and sat up weakly.

"Do you owe any bills?" he began.

"A few."

"Where?"

She enumerated half a dozen stores.

"Do you owe anything on your jewelry?"

"Not a cent."

He breathed a little more freely.

"Take off your rings," he commanded.

She slipped off, hurriedly, seven glittering rings.

"Put them on that table."

She obeyed.

"Take off them bracelets."

She flung them on the table.

"And the pins."

In her haste, she pulled off the brooches, pricking her finger and, without waiting his command added the gold chain she wore about her neck.

"Now go up-stairs."

She ran up, trembling to feel him behind her.

"Gather up your jewels, gather up every one of them," he commanded, following her into her room.

She made a pile, putting into it everything, even to the silver on her bureau.

"Take them down-stairs."

Again they descended.

"Put them with the rest."

When all were on the table, he raised his eyes and said:

"So you knew all the time about his going to Mexico?"

"Yes," she said faintly.

"And you played me false all the time?"

She noticed that his hand began to tremble and edged away until with a spring she placed the table between them.

"Come back," he said, glowering at her.

She did not move.

"Come back, I tell you!"

"Don't kill me, Alonzo," she said faintly.

"I'm not going to kill you. Come back you—!" he cried with a vile expression.

Suddenly the door-bell rang, long and violently.

Both halted in throbbing surprise, so incongruous did an intrusion seem at such a crisis.

A second time the bell rang angrily, accompanied by a shower of knocks. Sheila started to the door.

"Stay there!" Bofinger cried, and advancing with a guilty fear he went to the door and opened it.

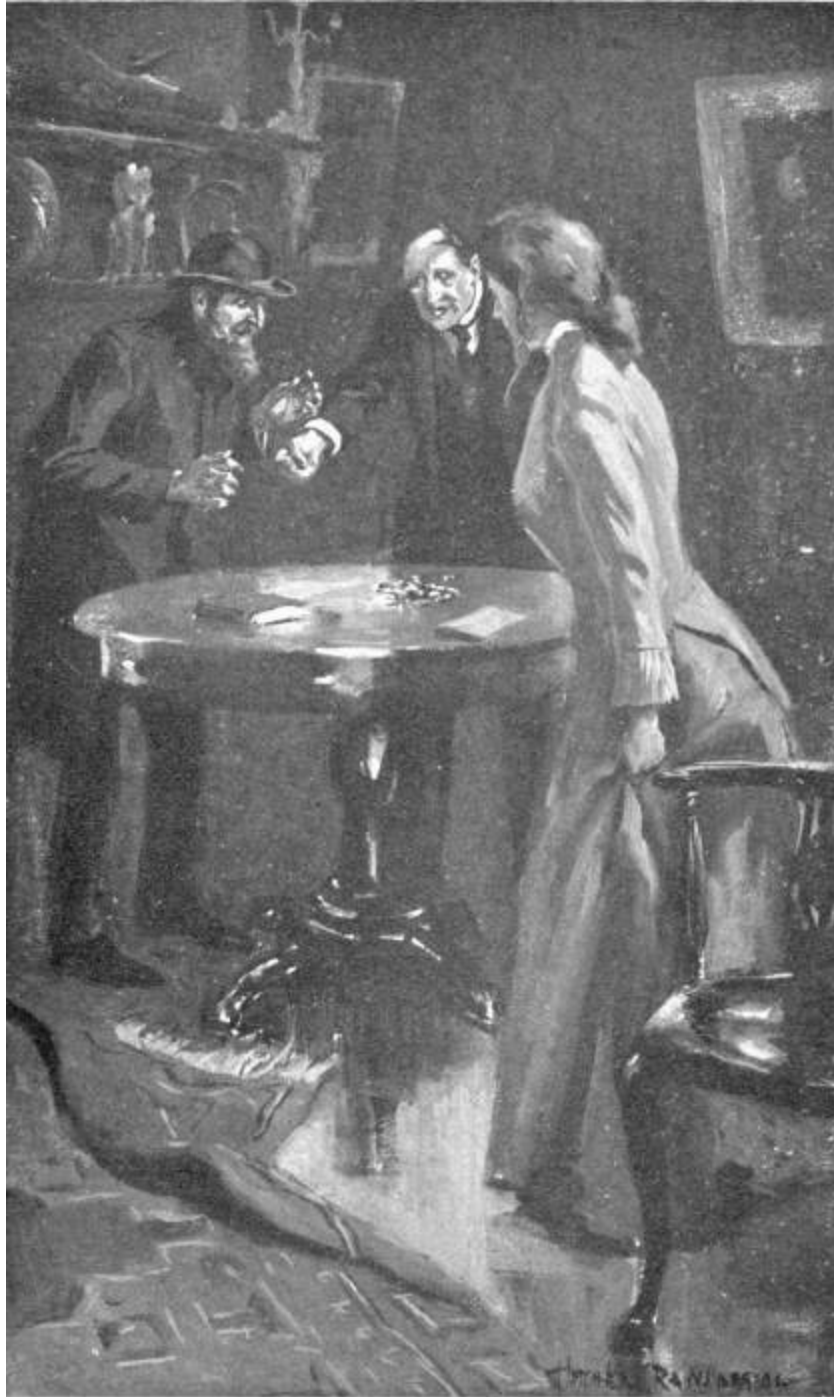
In the midst of a cloud of snow Sammamon rushed in, a warrant in his hand.

"Hell!" Bofinger cried, appalled by the apparition, and rushing to the table he tried to screen the heap of jewelry from the money-lender, shouting desperately, "Sammamon, get out of here! Sammammon, do you hear me, get out! I'll do you harm!"

The money-lender, whom losses had made frantic and courageous, did not flinch a minute. Rushing past him, he spied the jewels and divined the lawyer's purpose.

"You run away with them, eh! You swindler!" he cried violently. "You touch one thing, you go in jail! Everythings here is mine!"

"Keep your hands off," Bofinger cried. "Those belong to my wife, you can't touch them!"



"KEEP YOUR HANDS OFF."

"Touch, eh?" he screamed, "don't she owes me five thousand dollars!"

"Sheila, you owe him—that hound?" he cried, reeling back. "Is that true?"

"He came himself! He offered it to me!" she cried, and turning in terror to the money-lender she pleaded, "Mr. Sammamon, don't leave me, he's going to kill me!"

Sammamon gave no heed,—he was busy inscribing on his cuff the inventory of the jewelry.

"Kill you? That's too good for the likes of you," Bofinger cried, starting forward, "I'll fix you. Out on the street you go where you belong! Get out of here, get out of this house at once!"

"On the streets? To-night?" she cried in terror. "Without a cent?"

"Go out and earn it, the way you're fit for!" he said brutally. Then with an oath he extended his hand and commanded:

"Get out of those clothes."

"Bofinger," she cried in terror, "have mercy!"

"Take it off!" he said with an ugly look. "Not a rag belongs to you. Every stitch you have ought to go towards paying what you swindled me out of!"

She dropped on her knees, stretching out her hands.

"Not like that, Alonzo, not like that!"

"Take it off!" he cried in a fury, and as she made no move he seized the collar in his hands and tore it open. Sheila fell forward. On the bare neck flashed a necklace of small diamonds, which she had bought with the money from Sammamon.

"That was it, was it!" Bofinger cried, beside himself with rage at this new deception. He seized the necklace and tore it from her, flinging it on the floor. On the neck a spot of blood sprang up.

She staggered to her feet and fled to the door. When she had got it open such a blast upset her, driving in the snow, that she shrank back piteously, begging,

"Alonzo, dear, don't turn me out. Let me stay for pity's sake!"

"Ah, you won't go, won't you!" he cried, and the sight of the blood on her bare neck unloosed the brute in him. He ran in a rage to the fireplace and snatched up the shovel. Sheila shrieked and disappeared into the storm and the night.

EPILOGUE

Two years later, of a sunny morning in April, the carriage of Hyman Groll transported him to the familiar street where the Jefferson Market Court casts the shadow of its crushing tyranny over the little meannesses of the opposite row of lawyers' offices. The carriage according to orders drew up near the entrance from which presently the court at the close of the morning session would issue, while Groll, with a glance at his watch, leaned from the window, as though expecting again to see the glass window with its gilt display:

HYMAN GROLL AND ALONZO BOFINGER

Attorneys at Law.

On the threshold of putting into operation his vast scheme for controlling the tribute on vice throughout the city, he had arrived at last to that knowledge of human destinies which even in men of the most practical sense must awaken a power of imagination, if only it begins with self-contemplation. The sordid street filled him with horror. In the grubbing days he had never flinched in the confidence of his destiny. To-day he shuddered at the memory of his former faith, trembling for a quick moment at the possibilities which had never daunted his stubborn beginnings,—an emotion the more poignant now that he looked back over the yawning chasm. He frowned, stiffened and withdrew into the back of the carriage so as to be concealed from the sidewalk.

At this moment the doors opened and the steps were covered with the outflow of the court. With pursed lips he followed the crowd. Some he knew of person—all by intuition;—the crooks, the flashy women, the sleek swindlers come to study the ways of the new magistrate and the pleas that avail. The shabby and the tawdry misery dwindled away. Several policemen hurried away to luncheon; a late clerk scurried off. Then after an interval Alonzo Bofinger, guffawing with two reporters, slouched down the steps and hung himself over the railing, giving and taking banter with that false laughter which is fanned only from the lungs.

Of the once flashing dandy nought remained, not even the bloom of the amazing vests. He had grown quite puffy in the throat and the legs and under the bulbous waistcoat, quite lumpy and neglectful of his dress. The creases were no longer defined in the trousers, while over the shoulders the wrinkles ran with impunity.

The reporters rolled away arm in arm. The laughter faded from Alonzo Bofinger's face and it seemed suddenly to age. He drew a cigar and eyed it in indecision before fumbling in the shabby pockets. Finding no match, he started to pocket the cigar, changed his mind, placed it languidly in his mouth, shoved back his hat and stared on the sidewalk in heavy lassitude.

Hyman Groll, opening the door of the carriage, called energetically:

"Alonzo—eh, Alonzo!"

At the sight of his old partner Bofinger started up with a flush of embarrassment which disappeared in the precipitate obsequiousness with which he hastened to the carriage.

"You were waiting for some one?" Groll said with a slight, amicable nod. "Never mind, jump in."

Bofinger complied quickly, concealing the cheap cigar in his pocket with a sly movement Groll did not fail to perceive. The carriage rolled away.

Without preliminaries Groll said:

"Bo, Sheila's dead."

Bofinger dropped the hand he was raising to his collar, shifted in his seat and said faintly:

"When?"

"Last night."

"Where?"

"Bellevue."

"Here!"

"Yes."

"Were there—"

"You're all right, there were no debts."

"I wouldn't have paid them," he said, in his agitation drawing out the cigar from his pocket.

"You lost track of her after the night you turned her out?" Groll said, offering him a light.

Bofinger frowned, shrugged his shoulders and leaned towards the window.

"And didn't care to—I understand. Well, she was picked up the next morning half frozen," Groll said, glancing at him, "out of her head,—two months at the Charities. After that she got a place in a traveling circus. She hung on as long as she could. She died of quick consumption."

His companion, who had gradually turned towards him, frowned in perplexity and asked:

"How do you know?"

"I was interested in the case," Groll answered carefully. "And Fargus, do you know what became of him?"

Bofinger took a sudden deep breath and turned again to the window with the involuntary distaste of one who wishes to avoid the resurrection of a disagreeable memory. The movement told all to his companion, the bitterness, the humiliation, and the never-ending sting.

"What! Haven't you any curiosity," he persisted.

"No," Bofinger said without looking at him, "I don't care to hear either. All that is over. I botched the job—I got what I deserved."

"You did not understand him," Groll answered.

"He was crazy—mad," Bofinger said bitterly.

"We call mad what we can't understand," Groll objected slowly. "So you don't care what became of him?"

"I do not."

"He died three weeks after his appearance in the court."

"Who told you that?"

"I was interested in the case," Groll repeated softly.

This time Bofinger remained blankly staring at him, struck by a dawning comprehension. All at once, forgetting the distance between them, he seized his partner by the collar crying:

"What do you mean? What had you to do with all that?"

"Everything," Groll said calmly. "Take your hand off and quiet down. I am going to tell you all."

"You—great God, it was you!"

"Right, me, your partner whom you deceived."

An oath shrieked out and Bofinger, dropping his hold, sank back in the limpness of despair.

"My time is valuable, let me get at this," Groll said coldly, abandoning the familiar tone. Then quickly he recounted the circumstances of Fargus's discovery of Bofinger's conspiracy.

"Yes, it was to me he came for his vengeance," he said, gazing at his companion who remained as in a stupor. "The idea was like him—to strike you by the hand of your partner—whom you thought you were deceiving. Not a bad idea that."

"You planned out that business in Mexico!" Bofinger cried hoarsely.

"An ordinary vengeance," Groll said, nodding, "would have meant nothing to him. I had to find him something that would not only bankrupt you both but crush out of you all youth, ambition, and hope. More—Fargus wished not only all that made life blotted out, but that life itself should be the most

unendurable thing to you both. He succeeded. He knew it—strange man! He died happy."

"And he—where was he all that time," Bofinger said dully.

"He—he lay hidden in the safest place in the world," Groll said, looking out at the city with a smile full of malice. "Max Fargus, from the time you began to hunt him high and low—during the whole seven years remained quietly and safely in the house opposite to Sheila."

"Impossible!" Bofinger cried in horror.

"The most possible thing in the world," Groll answered. "Do you know the face of one of your neighbors? I don't."

"Ah, you were well paid for all that!" Bofinger murmured, clenching his fists.

"Of course—of course, naturally. His whole fortune has passed to me."

Bofinger, beside himself with rage, flung himself on the hunchback, crying:

"And if I strangle you, you scoundrel!"

"My dear Bo," Groll said calmly, "open murder fortunately is a transgression we lawyers avoid by instinct. Besides, it is not me you want to throttle but your own fate. What have I done that you wouldn't do if you had the opportunity? There, return to your side and don't make me call for help."

Bofinger gradually released his hold, sunk back and covered his eyes with his hand. At the end of a moment he said pleadingly:

"You're right. I have no kick comin'. You'll do something for me, Hyman?"

Groll puffed away on the cigar he had not ceased to smoke before answering decisively:

"No."

"Why not?"

"I promised him."

"Well, what?" Bofinger said coaxingly. "You ain't going to talk to me of promises and honor—come now!"

"Just that," Groll answered with a nod. "You won't understand. It's a superstition—so be it. But I owe what I am and what I'm going to be to Max Fargus. I shall do what I promised him."

"He's dead."

"It's not him I'm thinking of—it's myself—it's a superstition. I'd be afraid to do otherwise, I have that in me. Besides, I liked him."

"You won't do anything, then?"

"No."

"Honest?"

"Yes."

"What was the use of telling me, then?"

"I promised him to do so, as soon as Sheila was gone."

"Why not before?"

"There might have been complications."

"And do you think me such a fool that I don't know what to do now?" Bofinger cried suddenly. "A third of the estate belongs to Sheila as her dower right."

"And you would bring suit to recover that?" Groll said. The carriage had come to a stop before an office building on Union Square. "I get out here. One moment, are you quite sure that Sheila ever was the wife of Max Fargus?"

"What do you mean," Bofinger cried, halting with one foot on the sidewalk, —aghast at the thought.

"I think, my dear Bofinger," Groll said maliciously, "that a contract of marriage exists between you and Sheila—"

"Trickery!"

"But very difficult to explain away. You have the contract?"

"It is destroyed."

"You are sure?"

"Yes."

"My dear fellow," Groll said suavely, "that contract was in my possession three hours after you had told me of it."

"You stole it, then,—you!"

"I do not object to the word," Groll said. "You see I was careful to protect myself at every point before telling you these things. Moreover, I have the death-bed statement of Sheila herself. She at least believed it a marriage. A little reflection, I think, will show you the danger of your position."

Bofinger looked at the ground as a child does in the sudden lust of murder.

"Will you go back in the carriage," Groll said politely.

"No!"

"You are foolish to take it so hard," Groll said with a shrug. "I have stirred up a mess of nasty memories and you imagine you are the Bofinger of ten years ago. You are not. You will suffer an hour or so and then you will forget. Do you know what is the best thing to do? Get into my carriage and drive back. Make an impression on your clients. Call out, when you get back, 'Mr. Hyman Groll wants you at his office.' Then you'll get a reputation as a man of influence. Get into the carriage and for twenty minutes imagine yourself its master. Here, smoke these—they're good ones."

He drew a couple of cigars and held them out gravely to Bofinger, who at the end of a moment took them, looking on the ground, and entered the carriage.

"Hyman, you'll do something for me?" he said gently.

"I won't give you a cent," Groll said, "but I may have need of you some day." He shut the door and called to the coachman, "Jefferson Market Court!"

When the carriage turned, Bofinger was holding his head in his hands.

"Ugh!" Groll said to himself, gazing after him with a somber glance, "and I might have been like that!"

He remained still, shuddering at the thought which Bofinger's abjection had called up; as in another's death what we weep for is often the imminence of our own.

Two or three persons found the situation unusual enough to turn and glance back.

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